

LAW OF TORTS, MOTOR ACCIDENT CLAIMS AND CONSUMER PROTECTION

MODULE 1:

General Principles of Tort

- 1.1 Tort: Definition, Nature, Scope and object of Tort, Tort in India.
- 1.2 Distinction from Crime, Breach of Contract etc., who may sue, who may not be sued.
- 1.3 Damnum Sine Injuria, Injuria Sine Damnum
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1.1 Tort: Definition, Nature, Scope and object of Tort, Tort in India.

A. INTRODUCTION:

1. The Tort is of French origin. The root is 'Tortum' in Latin which means 'twist'. It implies a conduct which is 'tortious', or, twisted.. The equivalent word in English is "Wrong". In Roman it is "delict" and in Sanskrit it is "Jimha" which means 'crooked'.

Definition of Tort

The term tort is the French equivalent of the English word 'wrong' and of the Roman law term 'delict'. The word tort is derived from the Latin word tortum which means twisted or crooked or wrong and is in contrast to the word rectum which means straight. Everyone is expected to behave in a straightforward manner and when one deviates from this straight path into crooked ways he has committed a tort. Hence tort is a conduct which is twisted or crooked and not straight. As a technical term of English law, tort has acquired a special meaning as a species of civil injury or wrong. It was introduced into the English law by the Norman jurists.

Tort now means a breach of some duty independent of contract giving rise to a civil cause of action and for which compensation is recoverable. In spite of various attempts an entirely satisfactory definition of tort still awaits its master. In general terms, a tort may be defined as a civil wrong independent of contract for which the appropriate remedy is an action for unliquidated damages. Some other definitions for tort are given below:

Winfield and Jolowicz- Tortious liability arises from the breach of a duty primarily fixed by law; this duty is towards persons generally and its breach is redressible by an action for unliquidated damages.

Salmond and Hueston- A tort is a civil wrong for which the remedy is a common action for unliquidated damages, and which is not exclusively the breach of a contract or the breach of a trust or other mere equitable obligation.

Sir Frederick Pollock- Every tort is an act or omission (not being merely the breach of a duty arising out of a personal relation, or undertaken by contract) which is related in one of the following ways to harm (including reference with an absolute right, whether there be measurable actual damage or not), suffered by a determinate person:-

- a) It may be an act which, without lawful justification or excuse, is intended by the agent to cause harm, and does cause the harm complained of.
- b) It may be an act in itself contrary to law, or an omission of specific legal duty, which causes harm not intended by the person so acting or omitting.
- c) It may be an act violation the absolute right (especially rights of possession or property), and treated as wrongful without regard to the actor's intention or knowledge. This, as we have seen is an artificial extension of the general conceptions which are common to English and Roman law.
- d) It may be an act or omission causing harm which the person so acting or omitting to act did not intend to cause, but might and should with due diligence have foreseen and prevented.

e) It may, in special cases, consist merely in not avoiding or preventing harm which the party was bound absolutely or within limits, to avoid or prevent.

Nature of Torts

A. Tort and crime

Historically tort had its roots in criminal procedure. Even today there is a punitive element in some aspects of the rules on damages. However tort is a species of civil injury or wrong. The distinction between civil and criminal wrongs depends on the nature of the remedy provided by law. A civil wrong is one which gives rise to civil proceedings. A civil proceeding concerns with the enforcement of some right claimed by the plaintiff as against the defendant whereas criminal proceedings have for their object the punishment of the defendant for some act of which he is accused. Sometimes the same wrong is capable of being made the subject of proceedings of both kinds. For example assault, libel, theft, malicious injury to property etc. in such cases the wrong doer may be punished criminally and also compelled in a civil action to make compensation or restitution.

Not every civil wrong is a tort. A civil wrong may be labeled as a tort only where the appropriate remedy for it is an action for unliquidated damages. Thus for example, public nuisance is not a tort merely because the civil remedy of injunction may be available at the suit of the attorney general, but only in those exceptional cases in which a private person may recover damages for loss sustained by him in consequence thereof. However it has to be born in mind that a person is liable in tort irrespective of whether or not an action for damages has been given against him. The party is liable from the moment he commits the tort. Although an action for damages is an essential mark of tort and its characteristic remedy, there may be and often other remedies also.

Scope of Tort Law

The main aim of implementing tort law was to use it as a tool to make people to follow the behavior of a reasonable prudent man and to make them respectful towards each other's rights and duties. In order to achieve its aim law of torts allows the victim to claim compensation for the infringement of his right.

But here it is needed to be mentioned that only certain accepted pattern of behavior is recognized by law which when infringed by others becomes redressal under tort law. Hence all expectations of individuals or group of individuals are not redress able as only recognized interests are protected by law. Thus to summaries the scope of tort one can conclude that every wrongful act is not a tort. To constitute a tort,

- a) Commission of wrongful act by a person;
- b) The nature of the wrongful act should be such to have a resort to legal remedy and
- c) Unliquidated damages should be the legal remedy for the wrongful act.

I. Wrongful Act

An act becomes a wrongful act if only it violates a legal right of another individual.

In *Rogers v. Ranjendro Dutt*, the Judges opined that the act for which the plaintiff is complaining should be a legal wrongful act. Thus, mere harm in to another person's interest is not sufficient but the act should be in prejudice to his legal right.

'A legal right, as defined by Austin, is a faculty which resides in a determinate party or parties by virtue of a given law, and which avails against a party (or parties or answers to a duty lying on a party or parties) other than the party or parties in whom it resides. Rights available against the world at large are very numerous.

They may be divided again into public rights and private rights. Every right carries a legal duty or obligation to perform some act or refrain from performing an act. Therefore, liability for tort arises, when the wrongful act complained of amounts to either an infringement of a legal private right or a breach or violation of a legal duty.'

II. Damage

Generally, a tort consists of some act done by a person which causes injury to another and for which damages are claimed by the latter against the former. One must have a clear notion with regard to the words damage and damages to understand this.

Ordinarily to convey any loss, injury or if anyone is deprived from anything the word damage is used, whereas damages mean the compensation claimed by the injured party and awarded by the court. Damages are claimed and awarded by the court to the parties.

Objectives Of Law of Torts

1. **Compensation:** Self-evidently, Compensation is one of the most fundamental ideas behind Tort Law. The whole Law of Torts focuses on compensating the victim or the grieved party through various available remedies.
2. **Safeguarding Interests:** Another primary objective that the Law of Torts serves is safeguarding or protecting an individual's interest in his integrity or his property.
3. **Deterrence:** Deterrence theory about law says that the threat or the fear imposed by law will demotivate and discourage people from committing certain acts which are tagged as unlawful. This eventually prevents the further commission of unlawful acts. Although the Law of Torts doesn't penalize the guilty, the unliquidated nature of the damages or the compensation which s/he might have to pay acts as a deterrence.
4. **Vindication:** The Law of Torts provides enough room for dear opportunities to a person who deems himself/herself as innocent to prove the same in front of the court. This gives room for the charges of Libel, Slander, and malicious prosecution.
5. **Scattering Losses:** Law of Torts also aims at being an instrument to distribute the burden of the losses suffered by the plaintiff. The loss incurred by the plaintiff is usually divided between the defendants and the insurance companies (if any, in the facts of the respective case).
6. **Moral Objective:** The Law of Torts also serves the very integral principle of society and one of the founding theories of Law i.e., punishment for misconduct. Complete justice is believed to be delivered in a righteous mode when the wrongdoer gets punished for his unlawful act or is mandated to undo the harm of such acts by any means.

The Law of Torts in India

Under the Hindu law and the Muslim law tort had a much narrower conception than the tort of the English law. The punishment of crimes in these systems occupied a more prominent place than compensation for wrongs. The law of torts in India is mainly the English law of torts which itself is based on the principles of the common law of England. This was made suitable to the Indian conditions appealing to the principles of justice, equity and good conscience and as amended by the Acts of the legislature. Its origin is linked with the establishment of British courts in India.

The expression justice, equity and good conscience was interpreted by the Privy Council to mean the rules of English Law if found applicable to Indian society and circumstances. The Indian courts before applying any rule of English law can see whether it is suited to the Indian society and circumstances. The application of the English law in India has therefore been a selective application. On this the Privy Council has observed that the ability of the common law to adapt itself to the differing circumstances of the countries where it has taken roots is not a weakness but one of its strengths. Further, in applying the English law on a particular point, the Indian courts are not restricted to common law. If the new rules of English statute law replacing or modifying the common law are more in consonance with justice, equity and good conscience, it is open to the courts in India to reject the outmoded rules of common law and to apply the new rules. For example, the principles of English statute, the Law Reform (Contributory Negligence) Act, 1945, have been applied in India although there is still no corresponding Act enacted by Parliament in India.

The development in Indian law need not be on the same lines as in England. In *M.C. Mehta v. Union of India*, Justice Bhagwati said, we have to evolve new principles and lay down new norms which will

adequately deal with new problems which arise in a highly industrialized economy. We cannot allow our judicial thinking to be constructed by reference to the law as it prevails in England or for the matter of that in any foreign country. We are certainly prepared to receive light from whatever source it comes but we have to build our own jurisprudence.

It has also been held that section 9 of The Code of Civil Procedure, which enables the civil court to try all suits of a civil nature, impliedly confers jurisdiction to apply the Law of Torts as principles of justice, equity and good conscience. Thus the court can draw upon its inherent powers under section 9 for developing this field of liability.

In a more recent judgement of Jay Laxmi Salt Works (p) ltd. v. State of Gujarat, Sahai, J., observed: truly speaking the entire law of torts is founded and structured on morality. Therefore, it would be primitive to close strictly or close finally the ever expanding and growing horizon of tortious liability. Even for social development, orderly growth of the society and cultural refinances the liberal approach to tortious liability by court would be conducive.

Essential Elements of A Tort

Three essential elements need to be fulfilled to constitute a Tort, they are:

Existence of a Duty of Care

Every individual is bound to follow certain duty imposed upon it by the law of the land to practice certain tutelage and adequate rationale over his acts which might turn out to be harmful to any other individual. Such duty of care needs to be proved in the court to induct the charges of Tort.

Commission or Omission of an Act

To charge a person for Tort, it must be proved that s/he has either committed an act which is contrary and disobliging to the provisions of the law of the land or has failed to do an act which was his/her duty as per the law of the land to do.

Illustration A: 'X' publishes a defamatory statement against 'Y'. The same would lead to the Tortious wrong of Defamation on X's part as the law forbids the publication of defamatory statements against a person.

Illustration B: 'X' fails to set up proper fencing surrounding his garden which has poisonous trees to warn people to stay away from it. A child dies as a consequence of eating fruit from one of the poisonous trees from X's garden.

Here, 'X' failed to perform his reasonable duty of care towards the people which amounts to omission. It'll lead to a Tort.

Legal Injury

To prove that the wrongful act or omission of the defendant is a Tort, the plaintiff must show that such act or omission caused an injury to him. An injury here means violation of a legal right vested in the plaintiff and recognized by the law of the land. The legal maxims 'Injuria sine Damno' and 'Damnum sine Injuria' encapsulate the damage and injury part.

The first maxim, Injuria sine Damno means Injury or infringement of a legal right without any actual Damage i.e. substantial loss suffered by the plaintiff. Mere violation of a legal right or proof of a legal injury is enough to constitute a Tort. The reader can deduce the maxim further from the case of Ashby v. White.[6]

The second maxim, Damnum sine Injuria means damage to the plaintiff in absence of a legal injury or violation of any legal right. A case for Tort cannot be made up in absence of a legal injury. The Gloucester Grammar School case[7] can be referred to understand the maxim to its bottom.

Legal Remedy

As the last condition to constitute a Tort, the unlawful act or omission of the defendant must fall under a category of unlawful acts which have a civil action for damages as their remedy. The law of torts bases itself on the maxim, 'Ubi jus ibi remedium' which means

'where there's a right, there's a remedy. The remedy required to constitute a Tort can be action for damages, injunctions, restitution actions, or equitable remedies (specific performance).

The court applies certain tests such as the test of foresee ability, the test of directness, etc. before determining the remedies to be awarded in a case. The nature of the damages is unliquidated.

1.2 Distinction from Crime, Breach of Contract etc., who may sue, who may not be sued.

a. Distinction between Crime and Breach of Contract

(1) In crime, the injured party cannot sue for damages. The injury to the victim is deemed as an injury to the society. It is the violation of public right. Hence the State prosecutes the accused. The burden of proof lies upon the State. If the wrongful act is proved, the accused is put in imprisonment or imposed fine, or both. Such fine is not paid to the victim. It is credited into the State's account. But, in case of breach of contract, the injured party has right only for liquidated damages i.e. presettled or actual damages.

(2) The object of the criminal law is to project the peace of the society, while the object of law on the breach of contract is to protect the rights of the parties in a contract.

(3) Mens rea (ill intention) is an important factor in imposing the Criminal liability upon the wrong-doer where-as, in breach of contract, the motive is not an essential factor. The defaulting party has to pay the pre-settled and actual damages.

(4) A wrongful act is an infringement of right in rem. The wrongdoer has a 'Duty in rem' i.e., he should not do harm or injury to any person. It is a statutory duty. But, a breach of contract is an infringement of a right in personam i.e., a right available only against some determinate person or body and for which the community at large has no concern.

(5) The Criminal law which deals with crimes and offences is a separate branch, whereas breach of contract is a species of law of contract, which belongs to civil law.

(6) The criminal law is completely codified one while the law relating to contracts considers certain trade customs, though it has been codified.

(7) In crime, the victims are not paid damages. The accused is sent to jail or imposed fine or both. The fine goes to the State. However, in breach of contract, the party is entitled only for actual damages.

b. who may sue, who may not be sued.

Introduction

In the concept of a tort, usually a person who suffers injury has a right to file a case against the person who caused him harm, but there are certain categories of people who cannot sue a person for their loss and also there are some people who cannot be sued by any person.

So, the question arises why these categories of people are restricted from filing a case and also why do certain people are protected from such suits.

Who can/can not Sue?

Who can sue?

Any rational person including businessman, organisation, government and other individuals can sue, provided that, they are of sound mind and are not disqualified by law.

Who cannot sue?

There are seven categories of persons cannot sue, only subject to certain limitations:

An Alien enemy

Convict

Bankrupt

Husband and wife

Corporation

An Infant/Minor

A foreign state

An Alien Enemy

An Alien enemy is the person of enemy nationality or residing in the enemy territory. Such a person doesn't have the right to sue for tort.

According to English law, the person cannot maintain the right of sue unless allowed by order in council.

According to Indian law, the person cannot maintain the right to sue unless obtains the permission of the central government under section 83 of the civil procedure code is obtained.

Illustration

If A is a resident/citizen of an enemy country and wants to sue B, a resident of India, he cannot do that unless he obtains the permission of the central government.

Convict

A convict is a person against whom a judgment of death or imprisonment has been pronounced by the court of law.

According to English law, the person whose sentence is unexpired does not have the right to sue for any damages to his property or for recovery. But this concept was removed by criminal justice act, 1948. In India, until 1921, in the offence of forfeiture of the property, the offender is disabled from right to sue for any injury. But today, a convict in India may sue for torts, both to his property and his body.

Illustration

Situation 1: Before 1921, if A is a convict and want to sue B for injury regarding the property, in that situation he cannot sue the person in the offence of forfeiture of the property.

Situation 2: After the 1921 changes in IPC, if A is a convict and want to sue B for injury regarding property or body, he gets the right to sue for both injury to property as well as to the body.

Bankrupt

A bankrupt is also under the disability to sue for the act against his property.

According to the Indian law, All his property is vested in possession of bank or official assignee and in English law all property is vested to the trustee. All the offences against the property, the right to action is vested with the trustee or the assignee. But in the case of personal wrong, the person has a right to sue.

In the situation, where a tort causes injury to both the person and the property, so the right of action will split between the two.

Illustration

Situation 1: If A is a bankrupt and his property is vested in the possession of official assignee i.e. C by the bank. If B trespasses his property, the right of action is vested on official assignee i.e. C.

Situation 2: But if B trespasses A's body then in that situation the right of action is vested on A.

Husband and wife

Back in times, in English law, the husband and wife cannot sue. By the virtue of the married women's property act, 1882, a wife can sue her husband. But the husband cannot sue his wife. A wife could not sue her husband for the antenuptial tort or personal wrong.

The law reform (husband and wife) act 1962 made a drastic change and allowed both to sue. In India, both the spouses have the right to sue in any offences.

Corporation

A corporation does not have right to sue for the personal injury as because of its nature it is clear, that a corporation cannot be injured personally but a corporation can sue for the tort affecting its property.

The qualification is:

The tort must not be impossible in nature.

In the case of defamation, the corporation can sue the other person if, it can prove that the injury has the tendency to cause actual damages.

A corporation may sue for a libel or any other wrong affecting its property or business.

In *Manchester v. Williams*

In this case, it was held that a corporation has a right to sue, not only for the property but also for its personal reputation.

An Infant/Minor

A minor can sue for the tort committed against him, subject to that by his next friend or guardian. But he cannot maintain a remedy for the injury sustained when he was in his mother's womb.

In *Walker v. Great Northern Railways*

In this case, a pregnant woman injured due to a train accident, as a result of which her child was born deformed. The Court held that the minor cannot maintain a remedy for the injury sustained when he was in his mother womb.

But in a case having similar facts, the supreme court of Canada provided the remedy to the infant.

A foreign State

In England, a foreign state cannot be sued in any court unless the action is recognised by her majesty.

In India under section 84 of the civil procedure code, a foreign state can have the right to sue provided that such state has been recognised by the central government.

Who can/cannot be sued?

Who can be sued?

Any rational person like a businessman, an organisation can be sued for the act committed by them or their servant in the course of employment.

Who cannot be sued?

The Government

Foreign sovereign'

Ambassadors

Public Official

Infants/Minor

Lunatic

The Corporation

Trade Union

Married Woman

The Government

Under Article 361 of Indian Constitution, the president, Governor, Rajpramukhas of the state are not answerable to the court:

For exercise and performance of the power and duties of their office. For any act done by them in the exercise of their power and duties.

Five rules regarding the liability of the government

1. The government is liable for the act done by its servant in the course of transaction in which a private person is engaged.

In *Secretary of state of India v. Shivranji*

2. The government is liable for the loss caused by the improper interference of the forest officer in the removal of the timber by the plaintiff who had purchased a forest.

3. The government cannot be sued in respect of the act done by the servant in the exercise of its sovereign powers. Like, act done at the time of war, use of land to practice bombing, act done during riots etc.

Illustration

If A, a policeman, during the riots gives the order of lathi charge. In that process, Z got injured and sued A. Here A is not liable as he is acting under sovereign power.

4. Liable to restore the property or money wrongfully obtained by its servant on its behalf.

Illustration

If A, a government servant restores B's property wrongfully on behalf of the government. Here the government is liable to restore the property.

5. The government is not liable if the act is done by its servant in the course of his duty unless expressly authorised to him.

In *kastorilal v. state of U.P.*

In this case, the policeman detains the gold of the petitioner. The gold is misplaced from the custody of the police. The plaintiff filed the case against the government as the policemen are the servant of government of India. Here the court stated that the government is not liable for the act done by its servant in the course of his duty unless expressly authorised to him.

If a tortuous act committed by the servant there are two situations relating to the liability of the government:

The action for the damages for the loss cannot arise if the servant did the act under the sovereign power of the state.

But, if committed in discharge his duty assigns to him, not by the virtue of the delegation of sovereign power, there arises the action for damages.

In *U.O.I. v. Sugrabai*

A military driver of the school of Artillery, once assigned a task to transport the machine, hit B, as a result, B died. Here the government is liable as the work is assigned to him and the act committed during the discharge of the duty.

Foreign sovereign

A foreign Sovereign cannot be sued unless they themselves submit to the jurisdiction to the local government.

By residing in a foreign country, one does not waive his right to the jurisdiction from the local government.

Under the civil procedure code, a foreign sovereign can be sued in the Indian court only with the consent of the central government.

The conditions under which the Central Government gives permission:-

If the foreign sovereign has instituted a suit in the court against the applicant.

If the foreign sovereign, by himself or by agent, trades within the local limits of the Indian court.

If the foreign sovereign's immovable property, in respect of which the applicant wants to sue, is situated in India.

As per provisions of Ss. 86 and 87 of CPC, a suit against a foreign sovereign without the consent of the Central Government is only permissible where the plaintiff is a tenant under the foreign sovereign and the suit relates to lands held by him.

Otherwise, the permission of the Central Government is mandatory, and when permission has been applied for and refused by the Government, it is not open to the court to question the propriety of the order refusing consent.

Illustration

A wants to sue B, a foreign sovereign. He can sue only by taking permission from the central government.

Ambassadors

Foreign ambassadors, their family, servants also, cannot be sued, unless they waived their privilege by submitting to the jurisdiction of the court. An ambassador cannot be sued during his term of office.

Foreign ambassadors can be sued in the Indian court only with the consent of the central government.

In Harbhajan Singh Dhalla v Union of India

The petitioner, in this case, carried out building maintenance, reconditioning and renovations at the Algerian Embassy and the residence of the Algerian Ambassador in New Delhi. He tried to collect his dues but failed and then requested the Ministry of External Affairs to grant the permission to sue the Algerian Embassy. The Ministry refused to grant the permission on “political grounds” and also contended that under section 86 petitioner failed to make the prima facie case. And if permission has been applied for and refused by the Government, it is not open to the court to question the propriety of the order refusing consent.

Public Official

No action lies against the public official in their official capacity with respect to torts committed by them. But, they can be sued for the act committed by them in their private capacity.

If the act by the servant of the government is done under sovereign power no action lies against the government.

In U.O.I. v. Bhagwati Prasad

In this case, the train collides with the taxi. For these, Bhagwati prasad files a case against the U.O.I, of negligence. It was held that a suit for the damages can be filed against the act of the official in their private capacity but not for the act done under sovereign power.

Infants/Minor

The infant/ minor can be sued for the act committed by them as an adult. Thus a minor can be sued for assault, false imprisonment, libel, slander, fraud etc. but where intention, knowledge or some other condition of mind are essential ingredients of liability then in that cases minor/ infant can be exempted due to their mental incapacity.

In Walmsey v. Humonick (1954 2 D.L.R. 232)

Two little boys were playing cowboy related games. One boy hit the arrow and it hit another boy in his eye. The court gives the judgement in defendant’s favour as a five-year child doesn’t even think about it. Hence the defendant is not liable.

Lunatic

There are two conditions related to lunatic:

If the act was done by a lunatic, when he is not in the condition of a stable mind, in that condition the lunatic cannot be sued.

Illustration

If A commits battery against B when he is not in a condition of stable mind. He cannot be sued.

2. But, if the act was done by a lunatic when he is in the condition of a stable mind, he can be sued.

Illustration

If A has a disease where he becomes lunatic for some period but, becomes a normal person after some time. If he commits battery against B when he is normal. In that situation A can be sued.

Corporation

A corporation cannot be sued, unless

The act done was within the scope of agent employed by the corporation

The act done was within the purpose of the incorporation.

In *Poulton v. London and S.W. Rly. Company* (1867 L.R.2 Q.B. 534)

The railway master was employed by the defendant company, arrested a man for not paying the freight charges of the horse he is carrying with him. The petitioner filed a case against the corporation. It was held that the railway master was employed to arrest the person only if the person does not pay the freight of himself. No order was given to him to arrest a person if he is not paying the freight charges for the goods carried by him. Here, he is acting in his private capacity so a corporation cannot be held liable, only the station master can be held liable

Trade Union

In India, under the Indian Trade Union Act, 1926, a registered trade union cannot be sued. But the changes in the Act in 1939, now a trade union can be sued in its registered name.

Illustration

If one of the members of a trade union named XYZ commits a tort then:

Situation 1: As per the Trade union act, 1926, XYZ cannot be sued

Situation 2: After changes in 1939, XYZ can be sued.

Conclusion

A person who suffers injury has the right to file a case against the person who caused him harm, but there are certain categories of people who cannot sue a person for their loss and also there are some people who cannot be sued by any person, like foreign ambassadors, public officials, infants, sovereigns, alien enemy. But there are certain limitations where these categories of people can sue and can be sued, subject to the permission of the central government and unless they themselves waived their privilege by submitting to the jurisdiction of the court.

1.3 Damnum Sine Injuria, Injuria Sine Damnum

Introduction

The law of torts is a collection of all the circumstances in which court gives a remedy by way of damages, for legally unjustified harm or injury done by one to another person. There are three elements which need to be proved before constituting a tort:-

There must be an act or omission on the part of the defendant.

That act or omission should be in violation of a legal right vested in the plaintiff.

The wrongful act or omission thus done by the defendant is of such a nature to give rise to a legal remedy.

Both the maxims are divided into three parts as follows:-

Damnum/Damno means substantial harm, loss or damage with respect to the money, health, etc.

Injuria means an infringement of a right given by the law to the plaintiff.

Sine means without.

These 2 maxims fall under the category of qualified rights, & in the cases of qualified rights there is no presumption of damages and the violation of such rights is actionable only on the proof of damages.

Damnum Sine Injuria

Damnum sine Injuria is a legal maxim which refers to as damages without injury or damages in which there is no infringement of any legal right which are vested with the plaintiff. Since no legal right has been infringed so no action lies in the cases of damnum sine injuria. The general principle on which this maxim is based upon is that if one exercises his common or ordinary rights, within reasonable limits, and without infringing other's legal right; such an exercise does not give rise to an action in tort in favour of that other person. Damages can be in any form either in the form of any substantial harm or loss suffered from respect to the money, comfort, health, etc.

It is an implied principle in law that there are no remedies for any moral wrongs, unless and until any legal right has been infringed. Even if the act or omission such done by the defendant was intentional, the Court will not grant any damages to the plaintiff. As was cited in the case of *Mayor & Co. of Bradford vs. Pickles* (1895) in which the corporation of Bradford filed a suit against the defendant alleging that the act of defendant by digging a well in the adjoining land owned by the defendant has cut the underground supply of water in the corporation's well hence causing them monetary losses since there was no adequate supply of water to discharge for the people living under the jurisdiction of the corporation. It was held that the defendant is not liable since they had not violated any legal right of the plaintiff.

In another case of *Gloucester Grammar School* (1410) in which a schoolmaster, set-up a rival school to that of the plaintiff and since because of the competition the plaintiff had to reduce their fees from 40 pence to 12 pence per quarter. Thus claimed for compensation from the defendants for the losses suffered. It was held that the plaintiff had no remedy for the losses suffered, since the act though morally wrong has not violated any legal right of the plaintiff.

The court presumes in cases where the legal right has been infringed that damages have to be awarded, but in cases where no legal right has been infringed, the maxim *Damnum sine Injuria* applies & no remedies are available for the same. So, it can be rightly said that an act which is lawfully or legally done, without negligence, & in the exercise of a legal right, such damages as comes to another thereby is damage without injury.

Injuria Sine Damno

Injuria sine damno is a violation of a legal right without causing any harm, loss or damage to the plaintiff and whenever any legal right is infringed, the person in whom the right is vested is entitled to bring an action. Every person has an absolute right to his property, to the immunity of his person, and to his liberty & infringement of this right is actionable per se. A person against whom the legal right has been infringed has a cause of action such that even a violation of any legal right knowingly brings the cause of action. The law even gives the liberty that if a person merely has a threat of infringement of a legal right even without the injury being completed, the person whose right has been threatened can bring a suit under the provisions of Specific Relief Act under Declaration and injunction.

For Example:- If a person is wrongfully detained against his will, he will have a claim for substantial damages for wrongful imprisonment even if no consequential loss was suffered on the detention.

As was cited in the case of *Ashby Vs. White* (1703) wherein the plaintiff was a qualified voter at the parliamentary elections which were held at that point of time. The defendant, a returning officer wrongfully refused to take the plaintiff's vote. The plaintiff suffered no damage since the candidate which he wished to vote already won the elections but still, the defendants were held liable. It was concluded that damage is not merely pecuniary but injury imports a damage, so when a man is hindered of his rights he is entitled to remedies.

Injuria sine Damno is even applicable in the cases of trespass as was observed in the case of *Sain Das Vs. Ujagar Singh* (1940) that nominal damages are usually awarded and the principle of injuria sine damno is applicable to an immovable property when there has been an unjustifiable intrusion on the property in possession of another. It was also concluded that the rule cannot be extended to every case of attachment of property irrespective of the circumstances.

So in total, the maxim Injuria Sine Damno refers to the remedies which are provided in the form of damages or compensation in violation of any legal right such that if the legal right is violated then action lies even if there is no harm to another. In other words, it is an infringement of a right where no loss is suffered but it creates a cause of action.

Difference between Damnum Sine Injuria & Injuria Sine Damnum

S.No	Damnum Sine Injuria	Injuria sine Damnum
1.	Damnum sine Injuria refers to the damages suffered by the plaintiff but no damage is being caused to the legal rights as there is no violation of it	Injuria Sine damnum is the legal injury caused to the plaintiff without any damage to the physical injury.
2.	It is the losses suffered without the infringement of any legal right hence creating no cause of action.	It is an infringement of a legal right where even if no loss has been suffered by the plaintiff still creates an actionable cause of action.
3.	No compensation in the form of damages is awarded by the court.	Compensation in the form of damages is awarded by the court.
4.	This maxim is for the moral wrongs which have no action in the eyes of the law.	This maxim is for the legal wrongs which are actionable if the person's legal right has been violated.
5.	The principle of this maxim is that a person exercises in such a manner within reasonable limits which does not ground action in tort merely because it causes damages to other people	The principle of this maxim is that whenever there is an invasion of a legal right there creates a cause of action and the person whose right is vested is entitled to bring an action.
6.	In this, the plaintiff suffers a loss but has suffered no legal injury.	In this, the plaintiff suffers legal injury doesn't matter they have suffered any loss on that account.
7.	Damages without injury are not actionable	This is actionable since there is a violation of a legal right.

Case Laws

The following case laws are provided for the better understanding of both the maxims:

Case law on Damnum Sine Injuria

Mogul steamship co. ltd vs. McGregor, Gow & co.

In the following case of Mogul steamship co. ltd vs. McGregor, Gow & co., the plaintiff was an independent ship-owner who used to send his cargo port to obtain cargo from China to England. An association of 4 ship-owners, also the defendants in the following case offered a special concession to customers to oust their rival, the plaintiff in this case. The plaintiff under these circumstances suffered loss and sued all four of them for compensation of the losses he suffered. Since, the general principle of Damnum Sine Injuria expresses that 'if one exercises his common or ordinary rights, within reasonable limits, and without infringing other's legal right; such an exercise does not give rise to an action in tort in favour of that other person.'

Thus, though morally wrong there are no legal obligations for the acts of the defendants. This case typically concerns the economic tort of conspiracy to injure the rights of the plaintiff. It was held that the combination of workmen and an agreement among them was a lawful act according to the common law and perhaps enforceable inter-se but not indictable.

The court of appeal and the House of Lords held that defendants had done nothing unlawful. The House of Lords observed that the defendants have done so to extend their trade to increase their profits, although with the intention of injuring plaintiff.

The court of appeal held by a majority that the action taken was all done within the terms of the law. It was held that the plaintiff in the case did not complain of any trespass, violence, force or any act which infringes the legal right of the plaintiff. Hence, the defendants have done nothing more against the plaintiff than to pursue the bitter end of competition waged in the interest of their own trade. Nor there is an element of illegality in the fact of combination among the defendants.

In this case, it was observed that the damages were done to the plaintiff morally but with legal perspective hence no legal injury was done to the plaintiff which follows the general principle of the maxim “damnum sine injuria” which states that no legal remedies are awarded for moral wrongs unless their legal rights are violated.

The plaintiff failed to prove that any legal injury was suffered by the acts of the defendants and hence in presence of no legal injury the defendants are not applicable for any damages suffered to the plaintiff since all the actions done by the defendants were morally wrong but all the acts were done in a lawful way.

Case law on Injuria sine Damnum

Bhim Singh Vs. State of Jammu & Kashmir

In the following case of Bhim Singh vs. State of Jammu & Kashmir, Mr Bhim Singh, an MLA of Jammu & Kashmir was arrested & detained in police custody & was deliberately prevented from attending the sessions of the legislative assembly to be held. There was also a voting session which was going to be held and since he was not allowed to go. At the assembly session where his vote was very important. Though the person to whom he wanted to vote won but his right to vote was infringed.

He was arrested and was not even presented before the court for four days and was kept in a hidden place. The case is all about the violation of personal liberty where the police though obtaining remand of the arrested person, not producing him before the magistrate within the requisite period. There was a gross violation of rights under Article 21 & Article 22.

It was held that there was an arrest with the mischievous & malicious intent & the plaintiff was entitled to the compensation of Rs. 50,000 since there was an arrest of a member of the legislative assembly while he was on his way to the legislative assembly which resulted in the deprivation of the right to attend the impending assembly session. In the particular cases of Injuria Sine Damnum, the court has the jurisdiction to compensate by awarding suitable monetary compensation.

It was concluded that the member of the legislative assembly was arrested while en route to the seat of assembly & in consequence of the member was deprived of his constitutional rights to attend the assembly session & responsibility for the arrest & hence is entitled to reasonable compensation.

Conclusion

The conclusion of the two maxims are such that one is a moral wrong for which the law gives no remedy even though they cause great loss or detriment to the plaintiff's but on the other hand other one is a legal wrong for which the law does give a legal remedy though there be violation of a private right, without actual loss or detriment in that particular case.

The main aim of the maxim Damnum Sine Injuria is that no ground of action or no cause of action lies for a person who is acting within reasonable limits even though the other person is suffering losses on that account while the main aim of the maxim Injuria Sine damnum is that if the legal right of a person is violated then a cause of action arises and the person whose legal right has been infringed is entitled to bring a suit against the person who has done it. In these cases, a qualified right has been violated which is different from absolute rights.

1.4 Volenti non-fit Injuria, Ubi jus ibi remedium

Volenti non fit injuria: Normally, when a person suffers an injury at the expense of someone else's lack of care or breach of duty, the person who displays such breach of duty is liable to pay damages to the victim. Volenti Non Fit Injuria is a defence that could be used by the defendant to avoid such damages.

Volenti Non Fit Injuria is a widely used as a defence in Tort Law. It is often referred to as the defence of consent. The burden of proof lies upon the defendant. The defendant by claiming the defence of Volenti Non Fit Injuria tries to indicate that the plaintiff voluntarily agreed to suffer harm, therefore, later he must not complain about the same as he consented to it. His consent acts as a strong defence. The consent given could be implied or express and can even be inferred from the conduct of the party.

In law of tort, it is said that no person who has voluntarily waived or abandoned a right can enforce that right later. In Latin, Volenti Non Fit Injuria literally translates to 'to a willing person, injury is not done'. One cannot invite a guest to their home and later sue them for trespass of their property. Likewise, a sportsman after signing the contract for a specific season cannot sue the other party for getting injured if the contract explicitly indemnifies the other party of such foreseeable injury or risk. It could be said that the maxim presupposes a tortious act by the defendant. This maxim has wide applicability and we passively witness it in our daily life. Often, people are confused whether this maxim revolves around a legal contract. The answer to this would be no, the application of 'volenti non fit injuria' is not restricted to a legal contract, rather the determining factor lies upon the competence of the decision making capacity of the person at the time the consent was given.

Therefore, a minor, who would otherwise possess no legal capacity to consent, would be considered to be capable of making a reasonable assessment of the advantages and disadvantages of a treatment proposed by a physician or a surgeon, and he could give a valid consent.

When the defence of Volenti Non Fit Injuria is available?

For a defendant to plead the defence of 'volenti non fit injuria', it is necessary to show that the person (plaintiff) who consented to doing the act gave his consent freely. The consent of the plaintiff would not serve as a good defence if it had been obtained by fraud or under compulsion or under some mistaken impression. Emphasis must also be put on the fact that the act done by the defendant must be the same for which the consent is given.

In order to understand this, we may take the help of a case law. In *Lakshmi Rajan v. Malar Hospital Ltd.*^[i], the complainant was a married woman. She noticed development of a painful lump in her breast. Although, the lump had no effect on her uterus, during the surgery, her uterus was removed without any reason whatsoever. It was held that the hospital, was liable for deficiency in service. The court held that the patient's consent for the operation did not imply her consent to the removal of the uterus.

When the defence of Volenti Non Fit Injuria is not available?

1. Consent obtained by Fraud If the consent is obtained by fraud, it would not serve as a good defence. But it is essential to make note of the fact that mere concealment of facts would not amount to fraud as held in the case of *Hegarty v. Shine*^[ii]. In law of crime, it is said that fraud vitiates consent, if it induces mistake as to the real nature of the act done. Hence, in a case where the accused, a music teacher, induced the victim to engage in sexual intercourse with him on the pretext that the said sexual act would improve her vocals, the accused was held to be guilty of rape.

2. Breach of duty or negligence

The defence of volenti non fit injuria would not stand, if the act is due to a breach of statutory duty. Hence, an employer may not seek the defence of 'volenti non fit injuria' if he himself caused the injury suffered by the employee due to a statutory breach of duty. Nevertheless, where the negligence or breach of statutory duty is on the part of the employee, who knowingly accepts the risk that follows from such breach and the employer is not guilty of negligence or breach of statutory duty, the defendant may seek the defence of volenti non fit injuria.

In case of negligence on the part of the defendant, his defence under this maxim would not hold. In *Slater v. Clay Cross Co. Ltd.*^[iii], the plaintiff was hit by a train due to negligence on part of the defendant's servant (driver of the train). The defendant had instructed their drivers to slowdown and blow a whistle while entering the tunnel in order to alert the people walking through the tunnel. Since the driver failed to do so, the plaintiff suffered injuries. The court held the defendant to be liable.

3. Consent Obtained Under Compulsion

In *Bowater v. Rowley Regis Corporation*[iv], the court held that <a man cannot be said to be truly willing unless he is in a position to choose freely, and freedom of choice predicates, not only full knowledge of the circumstances on which the exercise of choice is conditional, so that he may be able to choose wisely, but the absence of any feeling of constraint so that nothing shall interfere with the freedom of his will.= A person cannot be said to give consent when he is compelled by some circumstances to take up risky work which he would not have done if he had a free choice. For instance, a labourer may undertake a particular task which he otherwise would not have undertaken. In such situations, the labourer takes up such tasks in order to save his job as he fears that the refusal to comply and take up tasks would deem him unfit for the job in the eyes of his employer and his job would be at stake.

4. Knowledge alone does not equate Consent If the defendant wishes to apply this maxim, he must prove that the plaintiff knew about the risk and that he agreed to suffer the harm or risk. These two form the pre requisites for claiming this defence. They are the key elements for claiming this defence. These two elements go hand in hand and the absence of the second condition would deem the first condition as an inconclusive defence. Therefore, simply proving that the plaintiff had knowledge of the harm would not be sufficient.

maxim **Ubi jus ibi remedium** It is a Latin maxim which means that where there is a wrong, there is a remedy. If any wrong is committed then the law provides a remedy for that. The maxim can be phrased as that any person will not suffer a wrong without a remedy, it means that once it is proved that the right was breached then equity will provide a suitable remedy. This principle also underlines the fact that no wrong should be allowed to go without any compensation if it can be redressed by a court of law. The law presumes that there is no right without a remedy; and if all remedies are gone to enforce a right, the right in point of law ceases to exist.

Development of Ubi jus ibi remedium

The law of tort is said to be the development of the maxim *Ubi jus ibi remedium*. The word <jus= means legal authority to do something or to demand something. The word <remedium= means that the person has the right of action in the court of law. The literal meaning of the maxim is where there is a wrong there is a remedy.

This maxim also says that there is no remedy without any wrong and the persons whose right is being violated has a right to stand before the court of law. This principle also states that if the rights are available to a person then it is required to be maintained by that person only and remedy is available only when he is injured in the exercise of duty or enjoyment of it; It is useless to imagine and think a right without a remedy. It is necessary to keep in mind that both rights violated and the remedy sought or to be obtained should be legal. There are many moral and political wrong but are not actionable or it does not give many sufficient reasons to take legal action as they are not recognized by law. The maxim does not mean that there is a legal remedy for each and every wrong committed.

For example, a contract which was required to be made on stamped paper may be made orally; in such circumstances, irrecoverable harm may be caused to other person and yet no legal remedy is available.

Thus, the maxim does not mean that there is a remedy for every possible wrong. It is appropriately said by Justice Stephen that maxim would be correctly stated if maxim were to be reversed to say that <where there is no legal remedy, there is no legal wrong.

Where there is a right, there is a remedy

Law of equity highlights the facts that if there is a breach of right then the right which is breached is incomplete without availability of proper remedy. The common laws were restricted to a limited number of remedies until the concept of law of equity was developed. In case of breach of rights, there are only a

few writs which can be filed and if in any case the suit is not covered under the writs then the suit will be dismissed. There are so many rights available but no remedy is available in case of its breach. To remove this deficiency the concept of a court of chancery came into existence and have the jurisdiction to decide matters relating to equity and justice.

Essentials of Ubi jus ibi remedium

The maxim ubi jus ibi remedium can be applied only where the right exists and that right should be recognized by the court of law; A wrongful act must have been done which violates the legal rights of a person clearly. This maxim can be used only when sufficient relief has not been provided by the court to the person who sustained the injury. This maxim is applicable if any legal injury had been caused to any person, if no legal injury has been caused then the maxim *damnum sine injuria* will be used which means damage without any legal injury. Limitations of ubi jus ibi remedium The maxim ubi jus ibi remedium does not apply to moral and political wrong which are not actionable. This maxim is not applied to those cases in which proper remedy is given in case of breach of right under common law. If there is no legal damage which has been caused to any person then this maxim will not be applicable.

No remedies are available in case of breach of marriage vows or personal commitment as these all are the promises made without consideration and are based on trust. This maxim is also not applicable in case of public nuisance unless and until a plaintiff shows that he suffered more injury than other members or peoples of the society. This maxim is not applicable where the plaintiff is negligent or there is negligence on the part of the plaintiff.

1.5 Extinguishment of Liability in Tort

Definition

In the extinction of a tort, the circumstances are such that the liability exists but its remedy does not. The meaning of discharge of tort or liability is reaching an end of the tort. It is a process by which tort stops to exist and the wrongdoer is no longer liable.

Basis for Extinction of Liability

1. Death of the Parties

In case of death of a wrongdoer, the legal heir can ask damages from the defendant for tort against the property. It includes trespass, nuisance, negligence, waste, fraud, etc. But in case of personal tort, legal heirs cannot sue the defendant.

Personal torts are those torts, which affects the mind, and body of a person. It includes assault, battery, false imprisonment, defamation, etc. In case of personal tort legal heir of the wrong doer is not liable. But in some case of proprietary torts, legal heirs are liable.

2. Accord and satisfaction

Accord means an agreement in which a person agrees to accept some valuable consideration. It is generally in exchange for the right of action that he has against the other. Satisfaction states the actual payment of an amount of consideration.

The consideration can be in the form of money or compensation which is accepted by a wrong person or his legal heirs. It leads to the settlement of the case and they do not proceed to the court.

3. Release

A release is the leading or giving up the right of action which a person against another party. The aggrieved person gives up the entire claim or right which he has against the wrongdoer. Such release must be voluntary and should not be obtained by coercion, compulsion or force.

The release should be in writing but it is valid even without consideration and in writing. A lease which is executed under mistake or ignorance is nil or invalid. A covenant not to sue one of the 2 tort-feasors does not function as a release so as to give up the other.

Solved Question on Extinction of Liability

Question: Explain 'Judgement' as a basis of extinction of liability.

Answer: If the matter is decided conclusively by the authoritative court then for the same cause of action among the same parties the matter cannot be agitated again and a further or fresh suit is stopped. This principle relies on the maxim of 'res-judicata' u/s 11 of civil procedure. Forever, 1908, means things once thought about cannot be regulated, more than one action does not lie on the same line of action. The doctrine of 'Res-Judicata' rests upon the principle that one should not be punished twice for the same work and there should be the conclusion of litigation. It also prevents a new investigation for the same case. A person cannot be harassed again and again in various proceedings for the same cause of action.

1.6 General Defenses and Discharge of Torts

General Defenses

Introduction

Whenever a case is brought against the defendant for the commission of a tort and all the essential elements of that wrong are present, the defendant would be held liable for the same. Even in such cases, the defendant can avoid his liability by taking the plea of the defenses available under the law of torts.

Some defenses are particularly relating to some offences. In the case of defamation, the defences available are fair comment, privileges and justification, etc.

Let's see what are these defenses available to a person under the law of tort and how can it be pleaded along with some of the important cases.

Meaning of General Defenses

When a plaintiff brings an action against the defendant for a tort committed by him, he will be held liable for it, if there exists all the essential ingredients which are required for that wrong. But there are some defenses available to him using which he can absolve himself from the liability arising out of the wrong committed. These are known as 'General defenses' in the law of tort.

The defenses available are given as follows:

- Volenti non fit injuria or the defense of 'Consent'
- The wrongdoer is the plaintiff
- Inevitable accident
- Act of god
- Private defense
- Mistake
- Necessity
- Statutory authority
- Volenti non fit injuria

In case, a plaintiff voluntarily suffers some harm, he has no remedy for that under the law of tort and he is not allowed to complain about the same. The reason behind this defense is that no one can enforce a right that he has voluntarily abandoned or waived. Consent to suffer harm can be express or implied.

Some examples of the defense are:

- When you yourself call somebody to your house you cannot sue your guests for trespass;
- If you have agreed to a surgical operation then you cannot sue the surgeon for it; and
- If you agree to the publication of something you were aware of, then you cannot sue him for defamation.
- A player in the games is deemed to be ready to suffer any harm in the course of the game.
- A spectator in the game of cricket will not be allowed to claim compensation for any damages suffered.

For the defense to be available the act should not go beyond the limit of what has been consented.

In Hallv. Brooklands Auto Racing Club[1], the plaintiff was a spectator of a car racing event and the track on which the race was going on belonged to the defendant. During the race, two cars collided and

out of which one was thrown among the people who were watching the race. The plaintiff was injured. The court held that the plaintiff knowingly undertook the risk of watching the race. It is a type of injury which could be foreseen by anyone watching the event. The defendant was not liable in this case.

In Padmavati v. Dugganaika[2], the driver of the jeep took the jeep to fill petrol in it. Two strangers took a lift in the jeep. The jeep got toppled due to some problem in the right wheel. The two strangers who took lift were thrown out of the jeep and they suffered some injuries leading to the death of one person.

The conclusions which came out of this case are:

The master of the driver could not be made liable as it was a case of a sheer accident and the strangers had voluntarily got into the vehicle.

The principle of Volenti non fit injuria was not applicable here.

In Wooldrige v. Sumner[3], a plaintiff was taking some pictures standing at the boundary of the arena. The defendant's horse galloped at the plaintiff due to which he got frightened and fell into the horse's course and was seriously injured. The defendants were not liable in this case since they had taken due care and precautions.

In the case of Thomas v. Quartermaine[4], the plaintiff was an employee in the defendant's brewery. He was trying to remove a lid from a boiling tank of water. The lid was struck so the plaintiff had to apply an extra pull for removing that lid. The force generated through the extra pull threw him in another container which contained scalding liquid and he suffered some serious injuries due to the incident. The defendant was not liable as the danger was visible to him and the plaintiff voluntarily did something which caused him injuries.

In Illot v. Wilkes[5], a trespasser got injured due to spring guns present on the defendant's land. He knowingly undertook the risk and then suffered injuries for the same. This was not actionable and the defendant was not liable in the case.

Similarly, if you have a fierce dog at your home or you have broken pieces of glass at the boundaries, all this is not actionable and is not covered under this defense.

The consent must be free

- For this defense to be available it is important to show that the consent of the plaintiff was freely given.
- If the consent was obtained under any compulsion or by fraud, then it is not a good defense.
- The consent must be given for an act done by the defendant.

For example, if you invite someone to your house for dinner and he enters your bedroom without permission then he will be liable for trespass.

In the case of Lakshmi Rajan v. Malar Hospital[6], a 40 year old married woman noticed a lump in her breast but this pain does not affect her uterus. After the operation, she saw that her uterus has been removed without any justification. The hospital authorities were liable for this act. The patient's consent was taken for the operation not for removing the uterus.

If a person is not in a condition to give consent then his/her guardian's consent is sufficient.

Consent obtained by fraud

Consent obtained by fraud is not real consent and does not serve as a good defense.

In Hegarty v. Shine[7], it was held that mere concealment of facts is not considered to be a fraud so as to vitiate consent. Here, the plaintiff's paramour had infected her with some venereal disease and she brought an action for assault against him. The action failed on the grounds that mere disclosure of facts

does not amount to fraud based on the principle *ex turpi causa non oritur actio* i.e. no action arises from an immoral cause.

In some of the criminal cases, mere submission does not imply consent if the same has been taken by fraud which induced mistake in the victim's mind so as to the real nature of the act.

If the mistake induced by fraud does not make any false impression regarding the real nature of the act then it cannot be considered as an element vitiating consent.

In R. v. Williams[8], a music teacher was held guilty of raping a 16 years old girl under the pretence that the same was done to improve her throat and enhancing her voice. Here, the girl misunderstood the very nature of the act done with her and she consented to the act considering it a surgical operation to improve her voice.

In R. v. Clarence[9], the husband was not liable for an offence when intercourse with her wife infected her with a venereal disease. The husband, in this case, failed to inform her wife about the same. Here, the wife was fully aware of the nature of that particular act and it is just the consequences she was unaware of.

Consent obtained under compulsion

- There is no consent when someone consents to an act without free will or under some compulsion.
- It is also applicable in the cases where the person giving consent does not have full freedom to decide.
- This situation generally arises in a master-servant relationship where the servant is compelled to do everything that his master asks him to do.

Thus, there is no applicability of this maxim *volenti non fit injuria*, when a servant is compelled to do some work without his own will.

But, if he himself does something without any compulsion then he can be met with this defense of consent. Mere knowledge does not imply assent

For the applicability of this maxim, the following essentials need to be present:

- The plaintiff knew about the presence of risk.
- He had knowledge about the same and knowingly agreed to suffer harm.

In the case of Bowater v. Rowley Regis Corporation [10], a cart-driver was asked to drive a horse which to the knowledge of both was liable to bolt. The driver was not ready to take that horse out but he did it just because his master asked to do so. The horse, then bolted and the plaintiff suffered injuries. Here, the plaintiff was entitled to recover.

In Smith v. Baker[11], the plaintiff was an employer to work on a drill for the purpose of cutting rocks. Some stones were being conveyed from one side to another using crane surpassing his head. He was busy at work and suddenly a stone fell on his head causing injuries. The defendants were negligent as they did not inform him. The court held that mere knowledge of risk does not mean that he has consented to risk, so, the defendants were liable for this. The maxim *volenti non fit injuria* did not apply.

But, if a workman ignores the instructions of his employer thereby suffering injury, in such cases this maxim applies.

In Dann v. Hamilton[12], a lady even after knowing that the driver was drunk chose to travel in the car instead of any other vehicle. Due to the negligent driving of the driver, an accident happened which resulted in the death of the driver and injuries to the passenger herself. The lady passenger brought an action for the injuries against the representatives of the driver who pleaded the defence of *volenti non fit injuria* but the claim was rejected and the lady passenger was entitled to get compensation. This maxim was not considered in this case because the driver's intoxication level was not that high to make it obvious that taking a lift could be considered as consenting to an obvious danger.

This decision was criticized on various grounds as the court did not consider contributory negligence while deciding the case but the court's reason for not doing so is that it was not pleaded that is why it was not considered.

A driver's past negligent activities do not deprive him of this remedy if someone travels with the same driver again.

Negligence of the defendant

In order to avail this defense it is necessary that the defendant should not be negligent. If the plaintiff consents to some risk then it is presumed that the defendant will not be liable.

For example, when someone consents to a surgical operation and the same becomes unsuccessful then the plaintiff has no right to file a suit but if the same becomes unsuccessful due to the surgeon's negligence then in such cases he will be entitled to claim compensation.

In Slater v. Clay Cross Co. Ltd.[13], the plaintiff suffered injuries due to the negligent behaviour of the defendant's servant while she was walking along a tunnel which was owned by the defendants. The company knew that the tunnel is used by the public and had instructed its drivers to give horns and drive slowly whenever they enter a tunnel. But the driver failed to do so. It was held that the defendants are liable for the accident.

Limitations on the doctrine's scope

The scope of the maxim *volenti non fit injuria* has been curtailed in the following cases:

Rescue cases

The Unfair Contract Terms Act, 1977

In these cases, even if the plaintiff has done something voluntarily but he cannot be met with the defence of 'consent' i.e. *volenti non fit injuria*.

Rescue cases

When the plaintiff voluntarily comes to rescue someone from a danger created by the defendant then in such cases the defence of *volenti non fit injuria* will not be available to the defendant.

In Haynes v. Harwood[14], the defendants' servant left two unattended horses in a public street. A boy threw a stone on the horses due to which they bolted and created danger for a woman and other people on the road. So, a constable came forward to protect them and suffered injuries while doing so. This being a rescue case so the defence of *volenti non fit injuria* was not available and the defendants were held liable.

However, if a person voluntarily attempts to stop a horse which creates no danger then he will not get any remedy.

In the case of Wagner v. International Railway[15], a railway passenger was thrown out of a moving train due to the negligence of the defendants. One of his friends got down, after the train stopped, to look for his friend but then he missed the footing as there was complete darkness and fell down from a bridge and suffered from some severe injuries. The railway company was liable as it was a rescue case.

In Baker v. T.E. Hopkins & Son[16], due to the employer's negligence, a well of a petrol pump was filled with poisonous fumes. Dr. Baker was called to help but he was restricted from entering the well as it was risky. He still went inside to save two workmen who were already stuck in the well. The doctor himself was overcome by the fumes and then he was taken to the hospital where he was declared dead. When a suit was filed against the defendants, they pleaded the defence of consent. The court held that in this case the defence cannot be pleaded and the defendants, thus, were held liable.

If A creates danger for B and he knows that a person C is likely to come to rescue B. then, A will be liable to both B and C. Each one of them can bring an action for the same, independently.

If someone knowingly creates danger for himself and he knows that he will likely be rescued by someone, then he is liable to the rescuer.

In Hyett v. Great Western Railway Co.[17], the plaintiff got injured while saving the defendant's cars from a fire which occurred due to negligence on the part of the defendants. The plaintiff's acts seemed to be reasonable and the defendant was held liable in this case.

Unfair Contract Terms Act, 1977 (England)

The Unfair Contract Terms Act, 1977, limits the right of a person to exclude his liability resulting from his negligence in a contract.

Negligence Liability

Sub-section 1 puts an absolute ban on a person's right to exclude his liability for death or personal injury resulting from the negligence by making a contract or giving a notice.

Sub-section 2 is for the cases in which the damage caused to the plaintiff is other than personal injury or death. In such cases, the liability can only be avoided if a contract term or notice satisfies the reasonability criteria.

Sub-section 3 says that a mere notice or agreement may be enough for proving that the defendant was not liable but in addition to that some proofs regarding the genuineness of the voluntary assumption and plaintiff's consent should also be given.

Volenti non fit injuria and Contributory negligence

Volenti non fit injuria is a complete defence but the defence of contributory negligence came after the passing of the Law Reform (Contributory Negligence) Act, 1945. In contributory negligence, the defendant's liability is based on the proportion of fault in the matter.

In the defense of contributory negligence, both are liable – the defendant and the plaintiff, which is not the case with volenti non fit injuria.

In volenti non fit injuria, the plaintiff knows the nature and extent of danger which he encounters and in case of contributory negligence on the part of the plaintiff, he did not know about any danger. Plaintiff the wrongdoer.

There is a maxim "Ex turpi causa non oritur actio" which says that "from an immoral cause, no action arises".

If the basis of the action by the plaintiff is an unlawful contract then he will not succeed in his actions and he cannot recover damages.

If a defendant asserts that the claimant himself is the wrongdoer and is not entitled to the damages, then it does not mean that the court will declare him free from the liability but he will not be liable under this head.

In the case of Bird v. Holbrook[18], the plaintiff was entitled to recover damages suffered by him due to the spring-guns set by him in his garden without any notice for the same.

In Pitts v. Hunt[19], there was a rider who was 18 years of age. He encouraged his friend who was 16 years old to drive fast under drunken conditions. But their motorcycle met with an accident, the driver died on the spot. The pillion rider suffered serious injuries and filed a suit for claiming compensation from the relatives of the deceased person. This plea was rejected as he himself was the wrongdoer in this case.

Inevitable accident

Accident means an unexpected injury and if the same accident could not have been stopped or avoided in spite of taking all due care and precautions on the part of the defendant, then we call it an inevitable accident. It serves as a good defense as the defendant could show that the injury could not be stopped even after taking all the precautions and there was no intent to harm the plaintiff.

In Stanley v. Powell[20], the defendant and the plaintiff went to a pheasant shooting. The defendant fired at a pheasant but the bullet after getting reflected by an oak tree hit the plaintiff and he suffered serious injuries. The incident was considered an inevitable accident and the defendant was not liable in this case.

In Assam State Coop., etc. Federation Ltd. v. Smt. Anubha Sinha[21], the premises which belonged to the plaintiff were let out to the defendant. The tenant i.e. the defendant requested the landlord to repair the electric wirings of the portion which were defective, but the landlord did not take it seriously and failed to do so. Due to a short circuit, an accidental fire spread in the house. No negligence was there from the tenant's side. In an action by the landlord to claim compensation for the same, it was held that this was the case of an inevitable accident and the tenant is not liable.

In Shridhar Tiwari v. U.P. State Road Transport Corporation[22], a bus of U.P.S.R.T.C. reached near a village where a cyclist suddenly came in front of the bus and it had rained heavily so even after applying breaks the driver could not stop the bus as a result of this the rear portion of the bus hit another bus which was coming from the opposite side. It was known that there was no negligence on the part of both the drivers and they tried their best in avoiding the accident. This was held to be a case of inevitable accident. The defendant i.e. U.P.S.R.T.C. was held not liable for this act.

In the case of Holmes v. Mather[23], the defendant's horse was being driven by his servant. Due to the barking of dogs, the horse became unmanageable and started to bolt. In spite of every effort of the driver, the horse knocked down the plaintiff. This makes it a case of an inevitable accident and the defendants were held not liable for the incident.

In Brown v. Kendall[24], the dogs of the plaintiff and the defendant were fighting with each other. The defendant tried to separate them and while doing so, he accidentally hit the plaintiff in the eye causing him some serious injuries. The incident was purely an inevitable accident for which no claim could lie. So, the court held that the defendant is not liable for the injuries suffered by the plaintiff as it was purely an accident.

In Padmavati v. Dugganaika[25], the driver of the jeep took the jeep to fill petrol in it. Two strangers took a lift in the jeep. The jeep got toppled due to some problem in the right wheel. The two strangers who took lift were thrown out of the jeep and they suffered some injuries leading to the death of one person.

The conclusions which came out of this case are:

The master of the driver could not be made liable as it was a case of a sheer accident and the strangers had voluntarily got into the vehicle.

The principle of *volenti non fit injuria* was not applicable here.

It was a case of a sheer accident which no one could foresee.

In Nitro-Glycerine case[26], A firm of carriers i.e. the defendants, in this case, was given a wooden case which was to carry from one place to another. The contents of the box were unknown. There was some leakage in the box and the defendants took the box to their office so that they can examine it. After taking out the box, they saw that it was filled with Nitro-Glycerine and then it suddenly exploded and the

office building which belonged to the plaintiffs got damaged. The defendants were held not liable for the same as the same could not be foreseen.

In the case of Oriental Fire & General Ins. Co. Ltd. v. Raj Rani[27], the front right spring and other parts of a truck broke all of a sudden and the driver could not control it and dashed into a tractor that was coming from the opposite direction. The driver and the owner of that truck could not prove that they had taken all reasonable precautions while driving the truck. The court held that this case comes under negligence and has nothing to do with the inevitable accident and the defendant was liable.

Act of God

Act of God serves as a good defense under the law of torts. It is also recognized as a valid defence in the rule of 'Strict Liability' in the case of Rylands v. Fletcher[28].

The defense of Act of God and Inevitable accident might look the same but they are different. Act of God is a kind of inevitable accident in which the natural forces play their role and causes damage. For example, heavy rainfall, storms, tides, etc.

Essentials required for this defense are:

Natural forces' working should be there.

There must be an extraordinary occurrence and not the one which could be anticipated and guarded against reasonably.

Working of natural forces

In Ramalinga Nadar v. Narayan Reddiar[29], the unruly mob robbed all the goods transported in the defendant's lorry. It cannot be considered to be an Act of God and the defendant, as a common carrier, will be compensated for all the loss suffered by him.

In Nichols v. Marsland[30], the defendant created an artificial lake on his land by collecting water from natural streams. Once there was an extraordinary rainfall, heaviest in human memory. The embankments of the lake got destroyed and washed away all the four bridges belonging to the plaintiff. The court held that the defendants were not liable as the same was due to the Act of God.

Occurrence must be extraordinary

Some extraordinary occurrence of natural forces is required to plead the defense under the law of torts.

In Kallu Lal v. Hemchand[31], the wall of a building collapsed due to normal rainfall of about 2.66 inches. The incident resulted in the death of the respondent's children. The court held that the defense of Act of God cannot be pleaded by the appellants in this case as that much rainfall was normal and something extraordinary is required to plead this defense. The appellant was held liable.

Private defense

The law has given permission to protect one's life and property and for that, it has allowed the use of reasonable force to protect himself and his property.

The use of force is justified only for the purpose of self-defense.

There should be an imminent threat to a person's life or property.

For example, A would not be justified in using force against B just because he believes that some day he will be attacked by B.

The force used must be reasonable and to repel an imminent danger.

For example, if A tried to commit a robbery in the house of B and B just draw his sword and chopped his head, then this act of A would not be justified and the defense of private defense cannot be pleaded.

For the protection of property also, the law has only allowed taking such measures which are necessary to prevent the danger.

For example, fixing of broken glass pieces on a wall, keeping a fierce dog, etc. is all justified in the eyes of law.

In Bird v. Holbrook[32], the defendant fixed up spring guns in his garden without displaying any notice regarding the same and the plaintiff who was a trespasser suffered injuries due to its automatic discharge. The court held that this act of the defendant is not justified and the plaintiff is entitled to get compensation for the injuries suffered by him.

Similarly, in Ramanuja Mudali v. M. Gangan[33], a landowner i.e. the defendant had laid a network of live wires on his land. The plaintiff in order to reach his own land tried to cross his land at 10 p.m. He received a shock and sustained some serious injuries due to the live wire and there was no notice regarding it. The defendant was held liable in this case and the use of live wires is not justified in the case.

In Collins v. Renison[34], the plaintiff went up a ladder for nailing a board on a wall in the defendant's garden. The defendant threw him off the ladder and when sued he said that he just gently pushed him off the ladder and nothing else. It was held that the force used was not justifiable as the defence.

Mistake

The mistake is of two types:

Mistake of law

Mistake of fact

In both conditions, no defense is available to the defendant.

When a defendant acts under a mistaken belief in some situations then he may use the defense of mistake to avoid his liability under the law of torts.

In Morrison v. Ritchie & Co[35], the defendant by mistake published a statement that the plaintiff had given birth to twins in good faith. The reality of the matter was that the plaintiff got married just two months before. The defendant was held liable for the offence of defamation and the element of good faith is immaterial in such cases.

In Consolidated Company v. Curtis[36], an auctioneer auctioned some goods of his customer, believing that the goods belonged to him. But then the true owner filed a suit against the auctioneer for the tort of conversion. The court held auctioneer liable and mentioned that the mistake of fact is not a defence that can be pleaded here.

Necessity

If an act is done to prevent greater harm, even though the act was done intentionally, is not actionable and serves as a good defense.

It should be distinguished with private defense and an inevitable accident.

The following points should be considered:

In necessity, the infliction of harm is upon an innocent whereas in case of private defense the plaintiff is himself a wrongdoer.

In necessity, the harm is done intentionally whereas in case of an inevitable accident the harm is caused in spite of making all the efforts to avoid it.

For example, performing an operation of an unconscious patient just to save his life is justified.

In Leigh v. Gladstone[37], it was held that the forcible feeding of a person who was hunger-striking in a prison served as a good defence for the tort of battery.

In Cope v. Sharpe[38], the defendant entered the plaintiff's premises to stop the spread of fire in the adjoining land where the defendant's master had the shooting rights. Since the defendant's act was to prevent greater harm so he was held not liable for trespass.

In the case of Carter v. Thomas[39], the defendant who entered the plaintiff's land premises in good faith to extinguish the fire, at which the fire extinguishing workmen were already working, was held guilty of the offence of trespass.

In Kirk v. Gregory[40], A's sister-in-law hid some jewellery after the death of A from the room where he was lying dead, thinking that to be a more safe place. The jewellery got stolen from there and a case was filed against A's sister-in-law for trespass to the jewellery. She was held liable for trespass as the step she took was unreasonable.

Statutory authority

If an act is authorized by any act or statute, then it is not actionable even if it would constitute a tort otherwise. It is a complete defense and the injured party has no remedy except for claiming compensation as may have been provided by the statute.

Immunity under statutory authority is not given only for the harm which is obvious but also for the harm which is incidental.

In Vaughan v. Taff Valde Rail Co.[41], sparks from an engine of the respondent's railway company were authorized to run the railway, set fire to the appellant's woods on the adjoining land. It was held that since they did not do anything which was prohibited by the statute and took due care and precaution, they were not liable.

In Hammer Smith Rail Co. v. Brand[42], the value of the property of the plaintiff depreciated due to the loud noise and vibrations produced from the running trains on the railway line which was constructed under a statutory provision. The court held that nothing can be claimed for the damage suffered as it was done as per the statutory provisions and if something is authorized by any statute or legislature then it serves as a complete defence. The defendant was held not liable in the case.

In Smith v. London and South Western Railway Co.[43], the servants of a railway company negligently left the trimmings of hedges near the railway line. The sparks from the engine set fire to those hedges and due to high winds, it got spread to the plaintiff's cottage which was not very far from the line. The court held that the railway authority was negligent in leaving the grass hedges near the railway line and the plaintiff was entitled to claim compensation for the loss suffered.

Absolute and conditional authority

The authority given by a statute can be of two types:

Absolute

Conditional

In the case of Absolute authority, there is no liability if the nuisance or some other harm necessarily results but when the authority is conditional it means that the same is possible without nuisance or any other harm.

In the case of Metropolitan Asylum District v. Hil[44], the hospital authorities i.e. the appellants were granted permission to set up a smallpox hospital. But the hospital was created in a residential area which was not safe for the residents as the disease can spread to that area. Considering it a nuisance an injunction was issued against the hospital. The authority, in this case, was conditional.

Conclusion

This article is to emphasize the important role played by General Defenses in avoiding one's liability in torts. While learning about tort it is necessary to learn about General Defenses in the law of Tort. General defenses are a set of 'excuses' that you can undertake to escape liability. In order to escape liability in the case where the plaintiff brings an action against the defendant for a particular tort providing the existence of all the essentials of that tort, the defendant would be liable for the same. It mentions all the defenses which can be pleaded in cases depending upon the circumstances and facts.

In order to plead a defense it is important to understand it first and then apply the suitable defence accordingly.

Discharge of Torts

There are seven different modes through which tort is discharged and no remedy will lie for tort. It is a process through which the tort comes to an end. A wrongdoer is not liable for his actions.

Following are the methods of discharge of torts.

Death of the parties

Here the maxim 'actio personalis moritur cum persona' applies which means if the person dies his personal right of action dies with him.

Actio personalis moritur cum persona this is the important maxim, it means if the person who commits a tort or the person against whom the tort is committed dies, the personal right or the right to receive the damages or the right of action dies with the person.

There are two situations where this maxim applies

Death of the person against whom tort was committed i.e., Petitioner.

when the person against whom the tort was committed i.e. the plaintiff who approached the court and filed a case died, so his personal right of action dies with him only.

Illustration

If A files a case against the act of tort done by B. If A dies during the course of trial and the case is still pending before the court. Due to the death of the A, the tort gets discharged, as the right of action of A dies with him only.

Exceptions to the maxim of 'Actio personalis moritur cum persona' with respect to Petitioner

In India there are laws which constitute the exception to the above maxim like;

The Legal Representative Suits Act, 1885

As per this Act, the legal representative or the executors of any person, after his death can represent the deceased person in the court of law.

Illustration

If A died during the procedure of trial of court. His legal heir or representative can represent him in the court of law.

Similarly, in different laws/act like Fatal accident act, the Indian Succession Act, Workmen Compensation Act etc. the representative of the plaintiff can represent him in the court of law.

Death of the person who commits tort i.e. Defendant

It means the person who commits the act of tort against any other person i.e. the defendant dies, the tort gets discharged.

Illustration

If Ram commits the act of tort against Geeta, if Geeta files a complaint against Ram, but if during the course of trial Ram died, then his right of action also dies with him i.e. the discharge of tort.

In Prusti v. Mohanty

In this case, the defendant received some amount by misrepresentation of fact, but the defendant died. The High Court of Orissa held that where a money decree was passed against a person in respect of the amount received by him from the decree-holder by misrepresentation of the facts, the liability would be personal and could not be extended to his son under the law, as whatever the relief a decree-holder has against the father ended with the father's death.

Exceptions to the maxim of 'Actio personalis moritur cum persona' with respect to Defendant.

In India there are various laws which constitute the exception to the above maxim like;

The Legal Representative Suits Act, 1885-

As per this act, if any person involved in any type of tortuous act, died during the course of the trial. The right of action passes to the legal representative of that person.

Illustration

If A does an act of trespass to the good against B in past. Now if A dies and it is proved that he was liable for damaging B's good. So the damages for damaging B's good has to be paid by his legal representative.

Similarly, in different laws/act like the Fatal Accident Act, Indian Succession Act, Workmen Compensation Act etc. The representative of the defendant has to represent him in the court of law

By Waiver

The second method of discharge of tort is by the waiver. The concept of waiver is when a person has more than one remedy available to him, as a result, he has to elect one of them. He cannot apply for both the remedy except in the case of defamation and assault.

Illustration

If A files a case against B that B has committed a tort against A. If A has right to get more than one remedy he has to choose any one of them, i.e. if he has the remedy in both tort and contract law, now he has to choose one between them.

The main two principles lying in the doctrine of Waiver are:

The person has to choose any one remedy.

If the person fails to get the remedy he chooses, the court of law does not allow him to go back to an alternative remedy.

Illustration

If A files a case against Z and has two remedies for which he can approach the court of law. If he chooses the first remedy and loses the case. A cannot approach to the court for the alternate remedy i.e., remedy number 2.

The Waiver can be Implied or Express

In Express waiver, the person expressly communicates about his choice in the court of law.

Illustration

If A file a case and he has the remedy in both, contract as well as Tort. When the court asks him he has to communicate his choice to the court.

In the Implied form of waiver, the person impliedly communicates about his choice for which remedy he is applying.

Illustration

If A has two remedies available to him like one under contract and one under Tort. if he applies for Contract, it becomes clear, he elects the remedy under the contract.

Accord and Satisfaction

Concept of accord means when the parties of the tort i.e. the person who commits the tort and the person against whom the tort has been committed, come to an agreement and settle the dispute. Such an agreement is known as Accord. In general term, it means settling the issue by accepting some consideration in lieu of the right of action.

Satisfaction means the actual payment of consideration agreed by both, the person who commits a tort and the one against whom the tort committed.

When both the accord and satisfaction once completed, it results in the discharge of tort and the dispute does not proceed in a court of law.

Illustration

If A dies due to injury caused by B's car. If A's family comes to an agreement that B will pay Rs. 1,50,000 as compensation to them, that's the situation of Accord. When they received the actual payment of 1,50,000 Rs. from B, that's the situation of Satisfaction. So, by settling the issue and accepting some consideration A's family lost their right of action and the act of tort discharged.

The only condition in the concept of Accord and Satisfaction is the consent of the party should be free and not from fraud, coercion or undue influence.

Illustration

If A, a son of a successful businessman brutally hit one of his servant i.e. trespass to the body and if A tries to make his servant enter into accord by using some type of undue influence on him. Due to that influence, the servant gave his consent, this is not considered as free consent and the accord and satisfaction are not valid.

Release

A Release means giving up the right to the action. It means when a person by his own choice discharged the tort. This right is only provided to the person against whom the wrong has been done.

Illustration

Situation 1: A is the person against whom B does any act of Tort and if A, by his free consent want to release B from the liability, he can do so.

Situation 2: A is the person against whom B and C both commit an act of tort and A by his choice release B from the liability, this does not mean that C is also released from his liability.

The release should be voluntary and given by free consent from the injured person. If the consent is taken by coercion, undue influence, or any other unlawful means then that release should not be counted as a release and the tort is not discharged.

Illustration

If a person is a police inspector, commits an act of tort against another person. By using his position and by threat, take the consent of the injured person and release himself from the liability, that release is not a valid release.

Judgment

In this method, the discharge of tort happens by the judgement given by the court. If once the court gives judgment on the matter, the tort gets discharged, no appeal for the same act of tort can be claimed for the same remedy in the court of law.

The concept of this method of discharge of tort is based on the legal maxim of Res-Judicata, it means, if any cause of action decided previously by the court, the same cause of action should not be entertained by the court twice.

Illustration

If A gets the remedy against B for the accident committed by him previously by the judgement of the court. Later he found that he needs to go through a further operation. He cannot claim another remedy for the same again in the court of law.

In Fitter v. Veal, (1701 12 Mod. Rep. 542)

In this case, the plaintiff files a case against the defendant demanding damages against the act of assault by the defendant and finally he gets the remedy from the defendant as the court of law allows the remedy to

him. Later he discovered that he has to go through a number of surgeries. He filed another petition against the defendant demanding more remedy against the act of assault again in the court of law.

The court denied the petition and state that, If once court gives judgement on the matter, no further appeal for the same act of tort can be filed in the court of law as the tort gets discharged.

Exceptions

If the petition was between the same party but is for different remedy or the action taken in respect to the violation of another right. Then the petition can be allowed.

In Brunsdon v. Humphrey:

In this case, the plaintiff was a cab driver and already received compensation against the damage to his cab. Later discovered, due to the injury caused in the accident, he got a fracture in his hand. He has the right to apply for the remedy against the trespass to his body as well.

If the person who is liable for the act previously does the same act another time.

Illustration

If A commits the tort of trespass against B previously and held liable by the court of law. If he again commits the same crime against B. If A plea defence that the court cannot punish him for the same offence twice. The defense is not valid because this case was considered as a fresh one.

Acquiescence

In this method, the tort gets discharged because of the incapacity of the plaintiff himself i.e. if he has no time to go to court, no money to pay the court fees, or any other incapacity. When any person is entitled to enforce his right, and he doesn't enforce his right for a long time, this makes other party waived from his liability.

Illustration

If A is entitled to enforce his right against B. If A neglects to enforce his right for a long time, it automatically waived B from his liability.

Law of limitation

Under this method the tort gets dismissed due to the limitation i.e. when the prescribed time limit to file the case gets over, in this situation the tort gets dismissed and no person is entitled to enforce his right.

Like, in the case of false imprisonment or libel the limit to file a case is 1 year, in case of trespass to immovable property, the limit set is 3 years etc after the time limit gets over, no person can enforce his/her right.

Illustration

If a tort of trespass to the property has been committed by B against A, if A fails to apply against it within 3 years in the court of law, then he cannot apply as he lost his right to apply due to limitation.

Conclusion

A tort is an act/conduct that is twisted. It means the violation of a legal right of a person by the act of the other person i.e. the breach of the legal right of the other person. But the right of action of the party can become discharged in certain conditions like the death of any of the party, by Waiver, by Accord and Satisfaction, by Release, or by the judgment of the court of law. Through the above methods, the tort becomes discharge and no remedy will lie for tort.

MODULE 2:

Torts against person, property, Freedom & Reputation

2.1 *Trespass to Person: Assault, Battery, Mayhem, False imprisonment.*

2.2 *Torts affecting Property (Movable & Immovable): Trespass, Trespass ab initio etc.*

2.3 *Torts related to Reputation (Defamation) & Personal Relations*

2.4 *Torts affecting person & Property: Nuisance, Negligence, Fraud*

2.5 *Joint Tort-Feasors, Nervous Shock and Malicious abuse of Legal Process.*

2.1 Trespass to Person: Assault, Battery, Mayhem, False imprisonment.

Concept of Trespass to Person

Trespass to person is a tort which is frequently committed in everyday life. It is basically unreasonable interference with body of a person which can be committed either by causing actual harm or by just causing an apprehension of force....

Critical Analysis on The Concept of Trespass To Person

Trespass to person is a tort which is frequently committed in everyday life. It is basically unreasonable interference with body of a person which can be committed either by causing actual harm or by just causing an apprehension of force.

The tort of trespass to person has developed as it is today is a result of many changes and modifications. In early English law, a physical interference with the person was given special protection, partly to avoid the unhappy consequences of people taking the law into their own hands by revenge attacks. Until the abolition of the old forms of action in the 19th century; direct attacks upon the person were protected by the action of trespass, which required no proof of damage. Indirect interference with the person was protected by the action on the case, which did require proof of damage.

Today, the basic position is that direct and intentional acts of interference are still dealt with by the tort of trespass, while indirect and unintentional acts fall under the tort of negligence. However, the situation is more complex than this suggests and some authorities suggest that even in trespass the claimant must now establish intention or negligence in addition to the act of interference.

This appears to suggest that there is a form of negligent trespass, which is almost a contradiction in terms.

Trespass To Person:

Definition:

Interference, however slight with a person's elementary civil right to security of person, and self-determination in relation to his own body, constitutes trespass to person. Trespass may be done intentionally, deliberately or negligently. The fundamental principle plain and incontestable law is that every person's body is inviolate.

Trespass to person may be categorized as:

1. Assault, which is "any act of such a nature as to excite an apprehension of battery";
2. Battery, "intentional and unpermitted contact with the plaintiff's person or anything attached to it and practically identified with it"; and
3. False imprisonment, the "unlawful obstruction or deprivation of freedom from restraint of movement."

Thus, it can be summarized that any unreasonable interference with a person without any lawful justification amounts to trespass to person. The basic idea behind trespass to person is that every person's body is inviolate.

Relevance of Intention In Trespass To Person:

Under the old law, whenever injury was caused to another by a person by direct and immediate application of force, the plaintiff could sue the defendant in trespass to person, without alleging negligence, whereas if the injury was only consequential he had to sue in case.

But now instead of dividing the action for personal injuries into trespass (direct damage) or case (consequential damage) the cause of action itself is divided. The thing which is now taken into account is whether the act of trespass was done intentionally or unintentionally.

Thus a person in order to establish a suit for trespass to person need to proof just one thing whether there was an intention to commit the trespass or not.

LORD DENNING in LETANG V. COOPER has recognized the relevance of intention in trespass to person.

Facts

Mr. Cooper (the defendant) negligently ran over Mrs Letang (the plaintiff) in his car while she was sunbathing on a piece of grass where cars were parked. The plaintiff filed a claim in trespass to the person, because the claim in Negligence was time-barred. Trespass to the person is a tort involving wrongful direct interference with another person and traditionally included both intentional and negligent acts.

Judgment

The Court of Appeal, consisting of Lord Denning MR, Diplock LJ and Danckwerts LJ, held unanimously that since Mr. Cooper's actions were negligent rather than intentional, the statute of limitations barring claims actions for damage caused by negligence applied. Mr. Letang could not recover her damages because her claim was late.

Effect

The effect of this case was that an action for trespass to the person can now only be brought for intentional torts, such as assault, battery, false imprisonment, trespass to land or chattels, etc. A claimant wishing to recover damages to his person or property that were caused by the defendant's negligent action must prove all the elements of the tort of negligence.

Essentials Of Trespass To Person:

Intention:

An act does not constitute trespass to person unless it is done with intention. Thus intention is the chief criteria for trespass to person.

If there is an intention behind committing a trespass then it is actionable per se and the plaintiff need not proof any specific or particular damage.

In negligent commission of trespass to person, plaintiff need to proof that injuries so complaint of are reasonably foreseeable. In case of direct trespass or intentional trespass proof of actual damage is not necessary but in negligent torts, proof of damage becomes essential.

Note:

• Trespass On A Case:

It is actionable per se.:

• Trespass Upon A Case:

They are consequential, indirect and unintentional.

Types of Trespass To Person:

Trespass to person is constituted basically in three different ways:

- (1) Assault
- (2) Battery
- (3) False Imprisonment

They have been discussed as:

(1) ASSAULT: The act of putting another person in reasonable fear or apprehension of an immediate battery by means of an act amounting to an attempt or threat to commit a battery amounts to an actionable tort of assault.

Probably mere words don't constitute an assault ; However insulting or menacing; the intent to do violence must be expressed in threatening acts , and not merely in the speech.

The apprehension must be genuine . If there is no reasonable fear there is no assault. For example when a gun is pointed behind his back, then no apprehension lies in this case. Thus, the plaintiff must have the reason to believe that the defendant has capacity to carry out the threat in near future.

Threats on telephone may be an assault provided the plaintiff has reason to believe that they may be carried out in the sufficiently near future. Malicious silent telephone calls also amount to assault.

Thus, no physical contact is essential for committing the tort of assault. It's essence is conduct which leads the plaintiff to apprehend the application of force.

Essentials of Assault:

1. Intent
2. Apparent ability to carry it out
3. Apprehension
4. Knowledge of threat

The above essentials have been explained through the following cases.

Stephen v. Myers:

In *Stephen v Myers* (1830), the Claimant was a chairman at a meeting sat at a table where the Defendant was sat. There were six or seven people between the Claimant and Defendant. The Defendant was disruptive and a motion was passed that he should leave the room. The Defendant said he would rather pull the chairman out of his chair and immediately advanced with his fist clenched towards the Claimant but was stopped by the man sat next to the chairman. It seemed that his intention was to hit the Claimant. The Defendant argued that there was no assault as he had no power to carry out his threat as there were people in between. The court said that not every threat is an assault. There needs to be a means of carrying that threat into effect: it must be a realistic threat of personal violence . The judge directed the jury (as juries were still in use at the time) that if the Defendant could have reached the chairman and hit him there was an assault. But if the Defendant did not have the intention of hitting the Claimant, or it was not realistic that he could reach the Claimant, then there is no assault. The jury found for the Claimant.

Read v. Coker:

In *Read v Coker* (1853) the Claimant was told to leave the premises where he conducted his business. He refused and the Defendant collected some workmen who stood near the Claimant with their sleeves rolled up and told him that they would not break his neck if he didn't leave. He did leave and later brought a successful claim for assault as there was a threat of violence and the means to carry it out. However, not every conditional threat will be an assault.

Indian Case:

Bavisetti Venkat Surya Rao v. Nandipati Muthayya:

In this case, the plaintiff, a well to do agriculturist, was in arrears of land revenue. The village music , who had duty to collect amount , went to the plaintiff's residence for the collection of the amount. On demand being made the plaintiff pleaded his inability to pay the amount that as the wife had locked the house and

gone out for a few days. The defendant insisted to have the payment the very day, that being the last day of the year for collection of the revenue the plaintiff was told that on his failure to pay, his movable property will be distained. Since the plaintiff's house was locked and no other movables were readily available, the defendant told him that the earnings which the plaintiff was wearing would be distained. The village gold smith was called. On the arrival of the gold smith, one of the persons present there paid off the amount due from the plaintiff by borrowing the same from another person. The defendants then went away quietly. The plaintiff sued the village music stating that apart from other wrongs the defendant had committed assault.

Judgment: It was held that since the defendants, after the arrival of the gold smith said nothing and did nothing and the threat of use of force by the gold smith to the plaintiff was too remote a possibility to have put the plaintiff in fear of immediate or instant violence. There was no assault.

(2) Battery: The application of force to the person of another without lawful justification amounts to battery.

1. Battery constitutes to bring any material object into contact with another person. (intentionally). Example to throw water or spit on somebody.
2. To take something forcibly from another person.
3. To project heat, light, noise or vapours onto another person so as to cause physical injury or personal discomfort.

Essentials of Battery

1. There should be a physical touch (directly or indirectly).
2. Intention must be present.
3. The physical contact must be without lawful justification.
4. Use of force
5. Battery must be voluntary.

Test of Battery:

Whether the physical contact so persisted in circumstances gone beyond generally accepted standard of conduct.

Exception To Battery:

Defenses available to Jostler, backslapper, and the hand shaker.

Cases on Battery:

Fagan v. Metropolitan Police Commissioner:

In Fagan v Metropolitan Police Commissioner [1969], a criminal case, Fagan was asked by an officer to park his car. He didn't realize that the car had rolled onto the police officers foot at which point he was asked to move the car. He responded with verbal abuse and turned off the engine before complying with the request. The majority of the Court of Appeal held that there was a continuing positive act starting from when he moved the car to when he turned it off and as such there was a battery. Whereas Bridge J dissented saying it was an omission as he parked on the foot accidentally (and thus there was no intent at that stage) and then simply omitted to move the car, and so there was no battery.

Wilson v. Pringle:

The Claimant and Defendant were both schoolboys involved in an incident in a school corridor which resulted in the Claimant falling and being injured. The Defendant argued that there was no battery as this involves deliberate touching with hostility and the intent to inflict injury and horseplay did not involve such intent. The Claimant argued that there merely had to be an intentional touching. The court held that battery involved an intentional touching with hostility, but no intent to cause injury. The court considered

whether a better test would be implied consent or a test based on how common the actions are in daily life. These will be useful considerations but ultimately the touching must be 'hostile'.

Indian Case:

Pratap Daji V. B.B. And C.I. Ryl.

The plaintiff entered a carriage on the defendant's railway but by oversight failed to purchase a ticket for his travel. At an intermediate station he asked for the ticket but the same was refused, at another place, he was asked to get out of the carriage since he didn't have a ticket. On his refusal to get out, force was used to make him get out of the carriage. In an action by him for his forcible removal, it was held that the use of force was justified as he, being without a ticket was a trespasser. The defendants were therefore, not liable.

(3) False Imprisonment: A false imprisonment is complete deprivation of liberty for any time, however short, without lawful excuse.

Exception:

A mere partial interference with freedom of locomotion doesn't amount to imprisonment.

Essentials Of False Imprisonment:

1. The total restraint of the liberty of a person.
2. The detention must be unlawful

Note

1. Use of physical force is not important in false imprisonment.
2. Knowledge of plaintiff is not necessary.

Drunk, asleep or lunatic can also be imprisoned falsely .Lord Atkin has stated that in all such cases damages will be reduced and such award of damages may be affected on whether the plaintiff is conscious about it.

Cases on Trespass:

Bird v. Jones:

In Bird v Jones (1845), the Defendant's employer had appropriated part of Hammersmith Bridge to watch a race on the river. The Claimant tried to pass through the appropriated part and managed to enter the enclosure. The Defendant put two police officers to block his path and prevent him from entering further into the enclosure. He was told that he could go back but not forward. After half an hour the Claimant tried to push past whereupon he committed an assault on the Defendant and was arrested. The court said that it is false imprisonment for a person to be forced to stay in a place just as much as locking them in a room. There need not be any touching either. However, it cannot be an false imprisonment to prevent a person from going forward but allowing them to return the way they came, even if it is unlawful to stop them. The person no doubt suffers a wrong but not false imprisonment possibly assault or battery if he is threatened or touched as he tries to get past. "Imprisonment is a total restraint of the liberty of the person, for however short a time and not a partial obstruction of his will, whatever inconvenience it may bring him."

Meering v. Graham:

Meering was held in a room and questioned, because his employer thought him to be a thief. It was a false imprisonment and he got more money because he knew he was being kept there False imprisonment. He got more money because he knew he was being kept there.

False imprisonment:

- if they know that they are held they get more money as if they were unaware
- they can sue even if they were drunk, unconscious, asleep.

Defenses to Trespass To Person:

1. Consent Of Plaintiff
2. Contributory Negligence
3. Self-Defence
4. Prevention Of Trespass
5. Parental Authority
6. Statutory Authority
7. Necessity
8. Inevitable Accident
9. Preservation Of Public Peace

• Consent of The Plaintiff

If the claimant consented either expressly or impliedly to the torts of assault and battery, there will be a complete defense.

However it is unclear whether consent is a true defense or whether it is for the claimant to prove lack of consent in order to succeed in the first place as was decided in *freeman v. home office*.

Facts and Judgment:

A prisoner serving a life term claimed that psychoactive drugs were administered forcibly to him by officials; further, that even if he had consented, his consent was not legally adequate because he was not told the nature of the treatment or the risks involved. The court rejected the claim of coercion and ruled that the plaintiff had consented to the administration of drugs, since he had been informed in broad terms of the purpose of the treatment

The patient who consents to receiving medical treatment is consenting to the torts of assault and battery and possibly false imprisonment in some cases. This is not the same as consenting to a negligent treatment.

Patients who are about to undergo surgery are asked to sign a standard consent form. Patients who go to the doctor or attend hospital for treatments other than surgery, for example, for treatment with medicines or various forms of therapy are taken to have given implied consent merely by consulting the doctor.

There are two possible claims available to patients who allege that they have been treated without consent:

1. If a doctor treats patients against their will or by giving a different treatment to that for which consent has been given, he or she commits the torts of assault and battery. It is only in very limited circumstances that these tort claims are available. Thus, if a patient refuses treatment which doctors consider necessary, it has become the practice to seek the advice of the court.

Thus in order for consent to be real, the patient must be broadly aware of the type

Of treatment and when and where it will be given freely, without duress or misrepresentation as to nature of the treatment..

In *Appleton v. garrett* in which a dentist carried out extensive and unnecessary treatment.

If the case is one in which the patient has been made aware of the type of treatment but the doctor has failed to give a sufficient detail of the risks involved, the patient would only have a remedy in negligence.

• Contributory Negligence

Contributory negligence is generally assumed to be a defense for trespass to person but there is authority the other way.

• Self Defence

It is lawful for any person to use a reasonable degree of force for the protection of himself or any other person against any unlawful use of force. The key to successful defense of self-defence is the element of reasonableness, as the defence will operate if the force used by the defendant is proportionate to that being applied by an attacker.

Force is not reasonable if it is either

• Unnecessary- i.e. Greater than is requisite for the purpose.

• Disproportionate to the evil to be prevented.

The relationship of parties may be relevant to the reasonableness of force used.

In revill v. newbury, it was held that the firing of a shot through a hole in a door in the direction of a trespasser, causing serious injury, was excessive force and the defence of self- defence could not apply.

The defense is probably limited to situations in which the defendant reasonably believes that an attack is likely.

Bici v Ministry of Defence (2004)

Three British soldiers in Kosovo shot two men and wounded two others traveling together in a car. The Ministry of Defence was vicariously liable as the soldiers' employer.

Baci and Baci brought claims in trespass to the Person and negligence, while the soldiers defense was self-defense.

In the case of trespass to the Person, the court held that even though the soldiers had managed to shoot a man they were not aiming at, it was a case of transferred intent and that battery had been committed. The claim for assault on the other men failed because in the eyes of the court there had been no actual intent to make the rest of the party fear for their lives(!). They had missed their target (the man carrying the gun) and shot someone else, but not intentionally.

• Prevention of Trespass

It is unlawful for any occupier of land, or for any other person with the authority of the occupier, to use a reasonable degree of force in order to prevent a trespasser from entering or to control his movements or to eject him after entry.

This right of using force against a trespasser is available only to the occupier of the land or his authorized agent.

In April, 2003, Tony martin, a landowner who shot and killed a burglar who was trespassing on his property was convicted of murder and sentenced to life imprisonment.

• Parental Authority and Other Authority

A parent is not guilty of an assault if he physically interferes with his child by way of reasonable restraint or chastisement, or for therapeutic reasons-e.g. to take a blood test.

There are special cases which pose particular problems in relation to consent to medical treatment. The case of children under age 16 years don't have sufficient maturity and understanding to take decisions relating to medical treatment or, any other things beneficial for them. If the child lacks such

understanding, the parents may be asked to provide the consent on behalf of the child, but the court has jurisdiction in some cases to give or refuse consent on behalf of the child.

In a particular case the court decided that immunization is parents' right considering the scientific evidence and risk.

Statutory Authority

Apart from the statutory powers of arrest, parliament has authorized medical examinations or tests which would otherwise constitute a serious battery. E.g. Breath tests under the road traffic act 1988, section 6, or blood test under sections 20 and 23 of the family law reforms act 1969.

The two things to be taken into consideration:

Consent to the taking of bodily samples from detainees

A number of procedures carried out at police stations to assist criminal investigations can only be undertaken with the consent of the suspect or the permission of a senior officer, at least the rank of superintendent. Intimate samples, such as swabs from bodily orifices may only be taken with the permission in writing, of suspect. Non intimate samples, such as finger nail scrapings can only be taken after the suspect has given written permission

As long as the correct procedures are followed, there will be a defence to an action brought against the police for assault and battery, and the strict rules concerning written consent are important safeguards for suspects.

Wrongful arrest, detention and stop and search

Lawful arrest doesn't amount to false imprisonment whether it is a citizen's arrest or is carried out by a police officer. Under section 1 of PACE 1984, the police have a power to stop and search persons whom they reasonably suspect may be carrying stolen or prohibited articles. Such a power to stop people in the street in full view of the public is regarded as a serious infringement of personal freedom and is seen by many as being unjustifiable.

In *Murray vs. Ministry of Defense* it has been explained as what constitutes a lawful arrest.

Thus requirements of arrest includes:

• An arrest made within the powers granted by statute and common law.

• A reasonable suspicion on the part of the person making the arrest. This requirement is also present in case of search and stop

• Force which is used must be in proportion to the amount of force exerted by the suspect.

People may only be kept in custody during the investigation of crimes according to the conditions and time limits laid down in the legislation, until such time as it is possible to charge them. If there is not enough evidence to charge the suspect when regular custody reviews are made, and it is unlikely that further questioning will lead to a charge, the custody officer must order the suspect to be released. If a person is charged with an offence, he or she must be brought to court as soon as possible and will be remanded in custody or on bail, or, alternatively may be released on police bail.

If excessive force is used in making an arrest, even if the arrest itself is lawful in that it complies with common law or provisions of PACE 1984, there will be grounds for a claim of assault, battery or false imprisonment.

Farell vs. Secretary of State for Defense

The reasonableness of force in a question of fact. This particular fact has been explained in this case.

Ÿ Necessity

Necessity could also amount to defence to a claim for false imprisonment. The test for deciding whether measures falling short of arrest could lawfully be taken against individuals was whether there was a reasonable suspicion that that individual was presenting a particular threats. The burden of proof was on the claimant to show that the exercise of discretion to detain was unreasonable.

Fayed vs. metropolitan police commissioner

The claimant's detention didn't amount to a deprivation of liberty within article 5(1) but in this instance it would be justified under article 5(1)© because the detention was imposed with the purpose of arresting people whom it would be lawful an practicable police to consider that everyone in the cordon , including the claimants , were demonstrators and might be about to commit a breach of the peace. The claimants had been falsely imprisoned, but that measure that had been necessary for the protection of everyone involved , in order to contain the crowd until safe dispersal could be arranged. Although the claimants were vindicated in part, judgment was entered for defendants.

Ÿ Inevitable Accident

Inevitable accident provides a good excuse for a prima facie trespass which is otherwise actionable. An inevitable accident has been defined as an event over which the defendant had no control and the effects of which could not have been avoided by the exercise of the greatest care and skill. This may be said to be the generally accepted view since Stanley v. Powell

In this case the defendant while firing at a pheasant accidentally and without negligence shot the plaintiff, who was employed to carry cartridges for a shooting party, with a pellet which ricocheted from a tree at a considerable angle. This case might have been decided on the ground that the plaintiff had voluntarily accepted the risk by joining the party. But it was held that even if the action was in trespass, not case, the injury being accidental the defendant could not be liable.

Ÿ Preservation of Public Peace

A person who disturbs public worship or a public meeting or a lawful game may be lawfully removed. Here the force used shouldn't be more than what is necessary. Every citizen in whose presence a breach of peace is being or reasonably appears to be about to be committed has the right to take reasonable steps to make the person who is breaking or threatening to break the peace refrain from doing so; and those steps in appropriate cases will include detaining him against his will.

Remedies:

Damages:

The usual remedies sought for trespass to the person is damages, and as has seen there may be an award of aggravated and exemplary damages in an appropriate case. Justification for an assault, a person is liable for the direct consequences flowing from the wrongful injury caused. When the assault has been carried to the extent of maiming or crippling or of wounding a person, damages will be greater than those awarded for a mere assault or battery.

In the case of a joint assault, the true criterion of damages is the whole injury which the plaintiff has sustained from the joint act of trespass.

Lord delving while dealing with a case of false imprisonment has observed that the court is not in this category of case confined to awarding compensation for loss of liberty and for physical and mental distress as it thinks may have been caused. It is also proper for it to make any departure from constitutional practice, even only a slight one, by exemplary damages.

The more highhanded and less reasonable the detention is the larger may be the damages; and conversely the more nearly reasonably the difference may have acted, the smaller will be the proper assessment. The assessment will include compensation for indignity, mental suffering, disgrace, and loss of social status and reputation.

Self-Help:

It is also a very important remedy available in the case of trespass to person. For example, a person who has been falsely imprisoned may escape, and someone who has been falsely imprisoned may escape, and someone who has been unlawfully arrested may resist arrest by use of reasonable force.

Habeas Corpus:

The ancient prerogative remedy of habeas corpus is theoretically available for false imprisonment, though this is remedy sought today. This would mean an application to the divisional court for an order to release the person unlawfully detained, and is only sought in emergency cases.

Conclusion:

Trespass to person is a general tort which is faced in our day to day life. People suffer a lot of difficulties because of this acts but due to unawareness they don't file suits of trespass to person even though when a suffer harm due to this interferences. In fact, in Indian society people are so much unaware of their rights that they go on facing problems without protesting. In contrast to these the American society is so litigant society that people file suits even for minor trespass cases also. Since the body of every person is inviolate any person don't has the right to interfere with the body of an individual either directly or indirectly.

In this project an attempt has been made to cover almost each and every aspect related to trespass to person. Every concept has been elaborately explained so that there does not remain a single doubt related to Trespass to person. Special emphasis has been given on the defenses to the trespass to person. Further the most important thing I.e. the relevance of intention has also been explained in this case.

Trespass to person is a tort which is sometimes confused with other torts like Negligence. So in this case it becomes essential to file a right suit to get a right remedy.

Moreover, the defenses to trespass to person is even a more important concept. In Concerning these difficulties certain defenses has been provided under the tort of nuisance which provides immunity to the tort-feasors and to carry out their work smoothly. In everyday life there arises situations when a little bit of physical contact should be tolerated e.g. in a crowd if a person is pushed by another person or while traveling in a bus due to rush a person is pushed all this contact will not amount to trespass to person. Further tort for personal injuries resulting from a medical negligence is not a case of trespass to person. It is assumed that in all physical contact generally acceptable in the ordinary conduct of everyday life there exists implied consent. If the contact or interference complained of do not cover the exigencies of everyday life then only a case of trespass will lie where the excuse is to be established by the defendant. E.g. when a person is injured and he requires immediate medical treatment then providing him the medical facilities will not amount to trespass to person.

Thus, it is very necessary to understand the difference between the situations where an act may amount to trespass or where it may not. Through this way only we will be able to exercise our rights and duties.

Thus, knowledge about trespass and its defenses is one of the important concept knowledge of which will be fruitful for the individuals as well as for the society.

Keeping these facts in mind this project is an attempt to explain the various concepts related to trespass to person and its defenses has been explained so that the concept will help people to exercise their rights and duties.

2.2 Torts affecting Property (Movable & Immovable): Trespass, Trespass ab initio etc.

Tort Relating to Movable Property

Introduction

The term property means all the physical or virtual entity that is owned by an individual or jointly by a few individuals. The properties are further divided into the movable property and immovable property

Movable Property

Any property of an individual or group of people, which can be moved from one place to another comes under the movable property. Like a car, bike, laptop, pen, even a stick etc. comes under the movable property.

Immovable Property

Any property of an individual or a group of people, which cannot be moved from one place to another place, comes under the scope of immovable property. Like land, building etc.

What type of movable property covered under the Tort

All the movable property like a car, bus, bike, horse, cat, dog, laptop, standing crops of one's field even the fruits on the tree of one's garden, even the wood of one's tree etc. i.e. all the things on which a person has legal right to possess and is the rightful owner of that movable property is covered under tort law.

Tort related to Movable Property

As we already discussed the concept of the Movable Property and what movable properties come under the scope of tort related to movable property. Generally, there are four categories in which tort relating to movable property falls:

Trespass To Goods

Trespass ab initio

Detinue

Conversion or Trover

1. Trespass to Goods

First, we will discuss what is trespass?

Trespass means wrongful conduct where a person enters or disturb the possession of another person's property whether movable or immovable or caused any damage to his body without the consent of the person. The word intention here means voluntary.

Different type of Trespass?

1. Trespass against Person

It means when a person with wrong intention and unreasonably interfere with one's body. It includes the usage of force causing damages and impairment in the body. Trespass to the person consists of any type of contact with one's person or body without one's consent which causes legal harm to the person.

Illustration: A friend of B hit B on his head without the consent of B then A is liable for trespass to the body.

2. Trespass to Property:

It means when a person with the wrong intention and unreasonably without the consent or permission or without any lawful authority enters someone's property or causing disturbance with someone's property, whether movable or immovable.

Ø Trespass to Movable Property/Goods

When a person with a wrongful intention cause any damage to the movable property of other is said to commit the act of trespass to movable property.

It means unlawful causing the disturbance with someone's movable property or goods without one's consent.

Illustration, If A, a friend of B enters B's car and A scratched the hood of B's car without B's permission. A is liable for the act of Trespass to Movable Property.

Muthuswami Gounder vs Thulasi Ammal

In this case, the driver of the car driving negligently, and stuck with auto and caused damage to the auto. Court, however, state that it was not only the case of an accident but also a trespass to another's movable property and the damage to the property. Thus the defendant is liable for trespass to movable property.

Ø Trespass to Immovable Property

It means when a person with wrong intention and unreasonably without the consent or permission or without any lawful authority causes disturbance on someone's immovable property like land, property, house, office etc.

Illustration, if Ram put a notice board written "No Entry without permission" on the front gate of his garden. One fine day Chetan enter the garden without the permission of Ram. Chetan commits the act of Trespass to Immovable Property.

Trespass to Goods

The act of Trespass to Goods is to take place when there is an actual direct or indirect damage to the person's good or wrongfully taking away any good from the rightful owner without his/her consent. In other words, the act of Trespass of Goods means the unlawful and intentional disturbance with the possession of the goods by taking it away from the possession from the rightful owner wrongfully.

Illustration, If A friend of B, B is the owner of the motorcycle showroom. One fine day A is waiting for B to come out From his house. A without the consent of B, remove the tyre of one of the B's Motorcycle. Thus A does the act of Trespass to Goods of B.

Jadu Nath, Dundput, Sripati v. Hari Kar And Ors

In this case, the defendant wrongfully enters the plaintiff land and wrongfully cut and carried away the standing crops from the plaintiff land. As in this case, the defendant is liable for the act of Trespass to land as well as Trespass to Goods, because the defendant damaged the goods which are in rightful possession of the plaintiff.

Essentials of the Tort of Trespass of Goods

At the time of Trespass, the good should be in the possession of the person.

Illustration:

If Shayam took Ram watch without the consent of Ram from Ram's house. Shayam does an act is of Trespass to Goods. As at the time when he took the watch, the watch is in the rightful possession of Ram. The person unlawfully and intentionally disturbs the possession of the goods.

Illustration:

if A gave his watch to B for repairs, and then, if A silently took the watch without B's Consent then even if A is the rightful owner, he is liable for the act of trespass to Goods as at the time when A took the watch, the watch was in the rightful possession of B. and he is disturbing possession of watch.

Defences to an action for Trespass to Goods:

Self Defence:

If a person wrongfully tries or attempt to take the good which is in the possession of the person then the person having rightful possession can use the act of Self Defence.

Illustration: if Ram tries to take the goods from B's hand so B can apply force for his defence

Exercise of Absolute Rights

Any person can take any good from the possession of the rightful owner if the person has the absolute right and authority. The person acting in his capacity will not be held liable for the act of Trespass of Goods. Like seizing of car, property by the Government officer acting as per his orders.

Illustration: If A, a customs officer, seize the vessel of B as B didn't pay the tax. So here A has a right to seize the goods because he has the absolute right and he works in his capacity.

Wrongful Act of Plaintiff himself

If the plaintiff is involved or done any wrongful act and it is necessary to act against him then that act doesn't create liability.

Illustration: If A parked his car wrongfully in front of B's house and denied to move his car then, B can act and remove A's car even without A's consent. And that act of B doesn't amount to trespass to good.

2. Trespass ab initio

A person who legally takes the movable property in his possession, but later abuse it or waste it i.e. wrongfully disturbs his own possession, render himself liable as according to Trespass ab initio.

The plaintiff must show:

He has rightful possession (actual or constructive)

His possession was wrongfully disturbed.

Illustration:

If A gives his car to B for repairs. Now B has legal possession of that car but later if B abuses or wrongfully disturb the possession of car then he is liable for the trespass ab initio. Here in this situation B has the legal/rightful possession of car but if he later abuses that possession that makes him liable.

3. Detinue or Detention

The act in which a person wrongfully holds the movable property of another. The Remedy provided by English law is an action in detinue, i.e. specific recovery of the detained movable property from the person's possession. The person who wrongfully detained the movable property is known as a wrongful detainer.

For the purpose of recovery of detained movable property the plaintiff has to prove:

That he has the lawful right to possess the movable property.

That the defendant wrongfully detained the possession of the movable property.

Illustration: if A gives his pressure cooker to B for repairs. Later A pays for the service to the B, but even after receiving of the payment B denied to give the cooker to A. this act of B is the act of detention.

4. Conversion or Trover

Originally the concept of conversion used as a remedy used by the court as to convert the possession of the movable property to the rightful person i.e. if a person who found the property of another and refused to give it back to the rightful owner then by conversion the court provide the remedy to plaintiff.

But as the time change, the conversion is used for wrongful taking or using the property of another and the remedy which is available to the plaintiff is to be known as the action of conversion.

To maintain the action of conversion, the plaintiff should have to prove:

That he has the lawful right to possess the movable property.

That the defendant wrongfully converts the possession of the movable property.

4.1. Methods of Conversion or Trover

There are 6 types of methods:

1. When the movable property is wrongfully taken and result in Conversion:

If the person wrongfully took the movable property of another, he can be sued for conversion.

Illustration :

If a person sees the branch of a tree of others garden overhanging in his garden. He cut that extra part which was hanging in his area. Later he ate all the fruits of that branch then he will be liable for conversion. But if he returns the branch to the owner then he is not liable.

If a person found some type of good on the street and refused to give back to the owner as he has doubt about the ownership then he is not liable for conversion, but if it is discovered that the person demanding the property is the rightful owner and even then he refused to give back the property to the owner then he will become liable for conversion.

2. When movable property wrongfully sold and result in Conversion:

A wrongful sale of the movable property is also considered as a conversion.

For example A deposit his good in C warehouse and ask to deliver them to D and C's servant delivered that goods to J, when D demands the goods from A. thus C should be stopped from denying that he had the goods and is liable to D for conversion of the good on which D has rightful possession.

A deposited his movable property in C's warehouse and ask him to deliver them to D. But C wrongfully sold it to Z, so here, C is responsible for the wrongful sale of A's movable property.

3. When movable property wrongfully detained and result in Conversion:

When any person wrongfully detained the possession of the movable property of another person then he is liable for conversion.

Illustration, if A gives his bike to V for repairing and later when A demand it back and paid V for his service as well but, V denied, the denial of V results in wrongful detention of good.

In *Armory v. Delamirie* (1721) 1 str. 505, In this case, a sweeper boy, found a gold jewel in the garbage. He went to a goldsmith, to sale the gold. The goldsmith in order to take advantage of the boy simplicity told him that, it is not gold and try to buy the gold from the boy in a nominal amount. The boy refused to sale and demand the gold back the goldsmith denied to give it back. Thus, the boy approached the court and the court held the goldsmith liable as he wrongfully detained the good of the sweeper boy.

4. When movable property wrongfully destroyed and result in Conversion:

When the person destroys the movable property of another person then he is liable for conversion.

Illustration, if A took the bottle of wine from C's collection and destroy all the wine from it and refill it with water that act of A is the act of conversion.

Kanhaiyalal vs Badrilal And Anr.

In this case the plaintiff handover one she-buffalo with a calf and another she-buffalo to the defendant. And ask the defendant to keep them safe and feed them from time to time. But defendant fails to keep them safe and feed. Result in death of the calf and both the buffalo become weak. The plaintiff files a case against the defendant and demands the damages. The court held that this case was of trespass to goods of the plaintiff and the defendant has to pay the damages to the plaintiff.

4.2. Remedies for the Tort of Conversion:

1. Re-capture:

A person is entitled to retake and possess his movable property, also he can use reasonable force if necessary.

Illustration: if A took B's watch and denied to give him back. B is entitled to take the watch back from A and can use a reasonable amount of force on A as well.

2. Order of Restoration:

The court can pass the order of restoration i.e. the court ask the defendant to give the possession of the property to the original owner.

Illustration: if Ram wrongfully and without the consent of Geeta take her car for a ride. He likes that car and refuses to give it back to Geeta. Geeta can approach the court and ask for the remedy. And if Geeta successfully convinced the court that she has a legal right to possess the car then court by passing the order of restoration provides the remedy to Geeta.

3. Suits for Damages

If the property were destroyed or damaged by the defendant then the plaintiff is entitled to receive full value of the good.

Illustration, if A, a friend of B damaged B's watch without his consent and now it is impossible to repair that watch. So B can get the full value of that watch from A.

Conclusion

Property means any virtual or physical things that are owned by an individual. The property is of two types: movable or immovable. Movable properties are those properties which can be moved from one place to another place like, a car, bike, fan, etc. even a standing crop in someone's property is considered as movable property. And immovable properties are those properties which cannot be moved like, land, building etc.

In Tort relating to movable property, any person does any act like trespass to goods, or trespass ab initio, or conversion or wrongfully tries to disturb the possession of the movable property of another person without his consent, he has committed the act of tort to movable property.

Torts relating to immovable property

Introduction

A is a farmer and his farm is next to the land of B who has cows. One day, B's cows enter the farm of A and cause damage to his farms. Here the owner of cows i.e. B will be liable for the tort of trespass which is a tort relating to immovable property. In order to show that a tort of immovable property has been caused, one needs to fulfil the following conditions:-

There is a right to hold or possess

There is either disturbance or usurpation (seize) of such right

Such disturbance or usurpation may be caused by actual physical damage to property or by interference with or impairing of the enjoyment of it

Torts relating to immovable property consist of the following categories:

Trespass

Injury to reversionary rights

- Waste
- Dispossession
- Wrongs to natural rights and easement
- Nuisance

Trespass

There are two kinds of trespass:

Trespass quare clausum fregit- unlawful entry upon land

Trespass de bonis asportatis- the wrongful taking of goods

In order to constitute the tort of trespass one does not need to prove-

- Force
- Unlawful detention
- Actual damage
- Breaking of an enclosure

Trespass is actionable per se which means it does not need any proof of actual damage caused to the property.

Trespass may be committed by any of the following ways-

By entering wrongfully upon the land of the plaintiff- the slightest crossing of the boundary is sufficient for committing trespass. A man is not liable for trespass committed involuntarily, for instance when he is thrown upon the land by someone else (Smith v. Stone). Moreover, it is presumed that if a person owns the surface of a piece of land then he owns all the underlying strata.

By remaining there in the land- if a person has lawfully entered on the land of the plaintiff but remains there even after his right of living there has ceased commits trespass; for instance, a tenant living on the land of the plaintiff even after the time period of the agreement is over.

By interfering with the land or by constructive entry- every interference with the land of the another is deemed to be a constructive entry which amounts to trespass. For instance, throwing a stone upon the plaintiff's land or piling of garbage against his wall is a trespass to land.

Remedies available to the plaintiff

A person whose land is trespassed has the following remedies:

An action can be brought by him against the wrongdoer.

Force can also be used by the plaintiff in order to defend his possession or eject the trespasser from his land.

An injunction can also be obtained by the plaintiff from the court under the Specific Relief Act, 1963 to restrain a continuing or threatened trespass.

Defenses available to the defendant or the wrongdoer

- Prescription
- Leave and license
- Authority of law
- Act of public necessity
- Self-defense
- Re-entry on land
- Re-taking of goods and chattels
- Abatement of nuisance
- Special property or easement

Trespass ab-initio

When a person has the authority of the law to enter upon the land of the another but later is guilty of an act such as misfeasance or misconduct making his original entry tortuous. Here he is liable for damages for both entering the land and further misconduct.

The following conditions must be fulfilled in order to apply the doctrine of trespass ab initio-
The authority must be given by law. The subsequent act must be misfeasance.

The Six Carpenters' Case 1610

In this case, the six carpenters entered an inn by the authority of law and consumed food and had fine but refused to pay. They were held not liable under this doctrine and the court laid down three major principles–

If a man abuses an authority given to him by law, he becomes a trespasser ab initio.

In an action of trespass, if an authority is pleaded, the subsequent abuse of that authority may be removed.

A mere non-fiancé does not account to such abuse as renders a man a trespasser ab initio

Injury to Reversionary Rights

A reversionary is a person who has a lawful interest in land but not its present possession, e.g. landlord and a reversionary interest is any interest, vested or contingent, the enjoyment of which is postponed. Reversionary interests are injured by either the strangers or by tenants.

Waste

It is spoil or destruction of houses, gardens, trees or unlawful damage caused to the immovable property by the person who was just given lawful possession of that property. Such damage must be of permanent nature and should cause prejudice to the owner or the reversionary.

Essentials of waste

An act or omission

Such act/omission must be done by the tenant or anyone in possession

It must cause prejudice to the owner/reversionary

Damages & Injunction for waste

In a suit against waste, the plaintiff may recover the actual damage caused to the immovable property and can also obtain an injunction on the actions of the wrongdoer of the defendant.

Dispossession

An owner is said to be dispossessed of his immovable property when the defendant does an act which declines the overall dominion of the plaintiff over the property. An owner can also be said to be dispossessed of his property when the defendant acquires settled possession of the land with the intention of acquiring exclusive control over the immovable property of the owner (Sundara Sastrial v. Govinda Mandaroyan, 1908).

Remedies available to the owner for the dispossession caused

To recover possession of the land– action can be brought by the owner of the immovable property against the defendant to recover the possession of the land. In India, one can file a suit under S.6 of the Specific Relief Act, 1963 for recovering the possession which was dispossessed because of the acts of the defendant within a period of six months.

Jus tertii– the owner can also recover the possession of the immovable property through the doctrine of jus tertii i.e. by showing that the plaintiff has a better right than the defendant to acquire the possession of the property.

Defenses available to the defendant in a suit filed by the owner

Jus tertii– that the defendant has a better title than the plaintiff

That the plaintiff's title over the immovable property comes to an end as the defendant has held or enjoyed the interest in the immovable property for twelve years or more.

The defendant can also plead under S.5 of the Specific Relief Act, 1963 that the plaintiff was not in possession within six months of the date of filing the suit or he himself was dispossessed in due course of law.

Wrongs to Natural Rights and Easements

An easement right is a non-possessory right to use the property of others without having the possession of such property. When any such right is infringed or interfered by any stranger or owner of that property then that amounts to tort and is actionable.

Remedies available for infringing the right of easement

Damages to compensate for the injury or the loss

The injunction obtained from the court to prevent such repetition.

There are certain natural rights which are attached to every land and are necessary for the peaceful enjoyment of the immovable property. One can enjoy his property in any way he wants but cannot infringe the legal rights of the other by making such use of his property. Such natural rights are:-

- Right to support
- Right to water
- Right to light
- Right to air
- Right of way
- Right of privacy
- Right of prospect
- Right of common
- Profits-a-Prendre
- Right to support

This right can be divided into three categories:

Right to support land by land – each and every part of the land has a natural right to be supported by the adjacent or subjacent land. A right to be supported by an adjacent land is known as the right to lateral support and a right of support by the subjacent land is known as the vertical support. Every owner of a property is entitled to a right of lateral support to the extent it is necessary to sustain his own land in a natural land.

Right to support of buildings by land- if the land is not expressly granted for building purposes but is weighted with buildings then the surface owner has no right to additional support which is necessary for the maintenance of buildings. Support of buildings by land may be either:

- Laterally by adjacent soil
- Vertically by subjacent soil

Right to support buildings by buildings– this right is not a natural right but can be acquired by either grant or prescription or when both the buildings are owned by one person. Damage is necessary to give the right of action to the person.

Right to water

The right to water of a person having possession of the immovable property can be infringed by any of the following ways-

- Wrongful obstruction of water
- Wrongful pollution of water
- Wrongful obstruction by a stream

Right to light

An owner of a house is entitled to sufficient light as may be necessary for the enjoyment of his house. In order to bring an action against a person, it must be proved that he has caused substantial deprivation of

light to the house of the plaintiff. The rule of 45 degrees is usually applied here by the courts. According to this rule when the height of the wall of obstruction which is built opposite to the ancient lights (house of the plaintiff) is not greater than the distance between it and the ancient lights then in the eyes of law no such right is infringed.

Right to air

The right to air is an easement and in order to file a suit against the defendant for obstruction of air, the plaintiff must show that there is some danger to his health. Such right is not violated until the obstruction is such that it is obstructing more air than needed for the ordinary purpose.

Right of way

A right of way is not a natural right but it can be acquired by-

- Grant
- Prescription
- Immemorial custom
- Necessity

Right of privacy

Right to privacy is not an inherent right as right to light and right to air. English law does not even recognize such right but in India, under Article 21 of the Constitution of India, Right to privacy is recognized as the fundamental right of each and every citizen of India.

Right of prospect

In India, the law does not recognize a view or prospect from a house as an easement right. No period of enjoyment over an immovable property will give a person right of action against another who on his land erects a structure or plants trees which obstruct the view or prospect of the other. Where obstruction does not affect the right of access or any other damage to his building or business; it was held that the suit was not maintainable (*Gopalkrishna v. Narsimham*, 1958).

Right of common

A right of taking some natural part of the produce of land belonging to another by the person who is not the owner of that land such as right to pasture or right to fish. Any infringement or disturbance of such right is an actionable wrong.

Profits-a-Prendre

The right to take some part of the soil or some part of the natural produce or animals existing upon it from the servant tenement by another is referred to as the Profits-a-Pendre. In India, such right is categorized into the following categories-

- Right of common
- Right of ferry
- Right of market

Nuisance

Nuisance is broadly categorized into two categories:-

Public Nuisance- it is an act or omission which causes any common injury, danger or annoyance to the public or to the people in general who dwell or occupy the property. To make nuisance an actionable tort one must satisfy the following two essentials-

Wrongful act

Damage or loss or inconvenience or annoyance caused by such act to another.

Private Nuisance- it is unauthorized use of one's own property causing damage to the property of another or some unauthorized interference with the property or the propriety rights of another.

Remedies available to the plaintiff

Abatement- it means the removal of a nuisance by the party injured or the plaintiff. The removal must be peaceful and without danger to the limb and if it is necessary to enter another's land or property prior notice should be given to that person.

Damages- it is to be noticed that every day the nuisance continues, a fresh cause of action arises for which future damages may be recovered. If the injury is caused to the neighbour while a person is making use of his property in such way then he is eligible to damages from that person for the injury caused.

Injunction- in order to obtain an injunction from a court it must be shown by the person that the injury caused cannot be measured in terms of damages or cannot be compensated through damages.

Defenses available to an action for nuisance

Grant- it is a valid defence to an action for the nuisance that the said nuisance is under the terms of the grant.

Prescription- the right to continue private nuisance may be acquired as an easement of prescription if it has been peacefully and openly enjoyed as an easement or as a right without interruption for 20 years.

Statutory Authority- when the statute has authorized doing a particular act or the use of land in a reasonable way provided that reasonable precaution has been taken in exercising such statutory authority.

Conclusion

Torts relating to the immovable property has been categorized into different categories and all of them are dealt in different ways. Some of them are interrelated to each other and therefore they are needed to be read together with such as trespass and nuisance. Each of the tort mentioned above has defenses and therefore the defendant can avoid the suit if he falls under those defenses. Though the remedies and defences given under every tort are given considering that no party is prejudiced by the act of another.

2.3 Torts related to Reputation (Defamation) & Personal Relations

Introduction

A man's reputation is considered valuable property and every man has a right to protect his reputation. This right is acknowledged as an inherent personal right and is a *jus in rem* i.e., a right good against all persons in the world. Defamation refers to any oral or written statement made by a person which damages the reputation of another person. As per Black's Law Dictionary, defamation means "The offence of injuring a person's character, fame, or reputation by false and malicious statements". If the statement made is written and is published, then it is "libel". If the defamatory statement is spoken, then it is a "slander".

Libel	Slander
It is addressed to the eyes.	It is addressed to the ears.
The defamatory statement is made in some permanent and visible form, such as writing, printing, pictures and effigies.	The defamatory statement is made by spoken words or some other transitory form, whether visible or audible, such as gestures, hissing or such other things.
It is an actionable tort as well as a criminal offence.	It is a civil injury only and not a criminal offence except in certain cases.
It is actionable <i>per se</i> (in itself) i.e., without proof of actual damage.	It is actionable only on proof of actual damage.

Elements of Defamation

The Statement should be made- A statement can be made by words either spoken or intended to be read, or by signs or by visible representations. For example, A is asked who stole B's diamond ring. A points to C, intending to cause everybody to believe that C stole the diamond ring. This is defamation.

The Statement must refer to the plaintiff- The defamatory statement must refer to the person, class of persons or the trustees of a company. The reference may be express or implied. It is not necessary that the plaintiff has to be mentioned by name, if he can still be recognized. The person referred to in the defamatory statement can be living or dead, however, defamation suit on behalf of a dead person can be filed only if the person filing the suit has an interest.

The Statement must be defamatory- Defamation starts with someone making a statement, and any person who makes a defamatory statement can be held liable for defamation. A defamatory statement tends to diminish the good opinion that others hold about the person and it has the tendency to make others look at him with a feeling of hatred, ridicule, fear or dislike. Abusive language may also be defamatory, for example, to call a man hypocrite or a habitual drunkard. A few illustrations to understand what is defamatory and what is not. To say a motorist drives negligently is defamatory. To criticize goods is not defamation. To say that a baker's bread is always unwholesome is defamatory. To state that a person has not that degree of skill which he holds himself as possessing is defamatory.

The intention of the wrongdoer- The person making the defamatory statement knows that there are high chances of other people believing the statement to be true and it will result in causing injury to the reputation of the person defamed.

The Statement should be false- A defamatory statement should be false because the truth is a defence to defamation. If the statement made is true then there is no defamation as the falsity of the statement is an essential ingredient of defamation. The law does not punish anyone for speaking the truth, even if it is ugly.

The Statement should not be privileged- In some cases, the statements may be privileged i.e. the person who has made the statement is protected from such liability.

The Statement must be published- For defamation to occur, the statement should be published. The statement should be communicated to a third party. Any statement written in a personal diary or sent as a personal message does not amount to defamation, but if the sender knows that it is likely that a third person may read it, then it amounts to defamation. In *Mahendra Ram v. Harnandan Prasad*, the defendant was held liable because he had sent a defamatory letter written in Urdu despite knowing the fact that the plaintiff could not read Urdu and ultimately the letter will be read by someone else.

The third party believes the defamatory matter to be true- The other people of the society believe that the defamatory matter said about the plaintiff is true.

The Statement must cause injury- The statement made should harm or injure the plaintiff in some way. For example, the plaintiff lost his job because of the statement made.

Publications by two or more persons

When two or more persons agree together to write or utter defamatory words of another, and one of them writes or utters the words in the presence of others, who have so agreed, all of them may be sued as a joint tort-feasor provided the defamatory matter has been published to persons other than those who were acting together or the plaintiff.

Repetition of defamatory words

Generally, the person who first makes a defamatory statement is not liable if the statement is republished by another person even though he expressly states that he is reproducing what he has heard from some source. However, no person has the right to repeat a slanderous statement without any justification. If a person who is aware that a defamatory statement is false and still repeats or communicates it further, then he can also be held liable for defamation.

Defamation by omission

There may be publication by omission. Failure by a defendant authorized and able to remove defamatory matter which is the work of another is publication by him. For example, if someone puts up a defamatory letter on the notice board of a club and the person in charge has not removed it within a reasonable time, then he will be accountable.

Measures of Damages in Defamatory Publication

The Court must take the following things into consideration while deciding the question of compensation in a defamatory publication:

The conduct of the plaintiff.

His position and standing in society.

The nature of libel.

The absence or refusal of any retraction or apology of libel.

The whole conduct of the defendant from the date of publication of libel to the date of the decree.

In *Gorantla Venkateshwarlu v. B. Demudu*, the respondent was a bank officer and was sent on deputation to work as the Managing Director of Co-operative society. The appellant, the President of Society sent a complaint to the Bank alleging that the respondent had illicit connections with ladies which affected the image of the society during his tenure as the Managing Director. The respondent sent a reply denying the allegations made against him. The branch manager of the bank conducted an inquiry and found out that the allegations were false and were made only with a view to see that the respondent is not deputed to inspect the affairs of the society.

The respondent filed a suit of defamation claiming damages of Rs. 20,000. The court held that the allegations were per se defamatory and the appellant was liable to pay damages. However, the court considered the fact that the allegations were made known only to staff and the Bank and there was no wide publicity, so the appellant was liable to pay Rs. 5000 as damages.

Defamation VS. Freedom of Speech

The question that arises is whether liability arising out of defamation is a violation of the right to freedom of speech and expression. As we know that there is no specific fundamental right to privacy, the judicial interpretation includes it as a dimension of the right to life and liberty guaranteed under Article 21 of the Constitution. So the right to reputation also comes in the ambit of Article 21.

In the case of *Subramanian Swamy v. Union of India*, a petition regarding the decriminalization of defamation was filed. The petition challenged the constitutional validity of Section 499 and 500 of the Indian Penal Code, 1860 is an unreasonable restriction on the freedom of speech and expression. The apex court held that criminal defamation under Section 499 and 500 did not violate Art. 19(1)(a) as it is a reasonable restriction under Art. 19(2). The term 'defamation' in Art. 19(2) includes both civil and criminal defamation. Section 499 and 500 IPC was held to be non-discriminatory and non-arbitrary and not violative of the right to equality guaranteed under Art. 14 of the Constitution. While in a democracy an individual has a right to criticize and dissent, but his right under Art. 19(1)(a) is not absolute and he cannot defame another person as that would offend the victim's fundamental right to reputation which is an integral part of Art. 21 of the Constitution.

In *Shreya Singhal v. Union of India*, the petitioners challenged the validity of Section 66A of the Information Technology Act (ITA) contending that it was not a reasonable restriction on the freedom of speech and expression guaranteed under Art. 19(1)(a) of the Constitution. They argued that the impugned section was unconstitutional because it provided protection against annoyance, inconvenience, insult, injury, or criminal intimidation which is not covered in Art. 19(2). The court found section 66A of (ITA) to be vague and invalidated it on the ground of being violative of the right to freedom of speech and expression.

Defences available against Defamation

Justification by truth

Truth is an absolute defense. If the statement made is authentic then it does not constitute defamation. The burden of proof is on the defendant who is claiming the defence. For instance, X makes a statement in an interview about Y indulging in gambling and Y files a suit against him. If X is able to justify or prove it, then Y's claim will be dismissed. In *Radheshyam Tiwari v. Eknath*, the defendant was unable to prove the facts published by him and therefore was held liable for defamation.

Fair and bonafide comment

Nothing is defamatory which is a fair comment in the matter of public interest. The defendant can avail this defence when he has merely made a fair comment in a matter of public interest. This defence is based on public policy which gives every person the right to comment and criticize without any malicious intention the work or activities of public offices, actors, authors and athletes as well as those whose career is based on public attention. Any fair and honest opinion on a matter of public interest is also protected even though it is not true. There is no definition of a matter of public interest. Generally, a matter of public interest can be a subject which invites public attention or is open to public discussion or criticism.

The main principles relating to the defense of fair comment have been stated by Duncan and Neill as follows:

- a) the comment should be on a matter of public interest;
- b) The comment must be based on facts;
- c) The comment, though it can include inferences of fact, must be recognizable as a comment;
- d) The comment must satisfy the following objective test; could any man honestly express that opinion on the proved facts;
- e) Even though the comment satisfies the objective test the defence can be defeated if the plaintiff proves that the defendant was actuated by express malice.

The same approach is followed in India. Any matter or subject which attracts public attention and is a matter of public interest. For example, A puts allegations on B of being corrupt in a newspaper. If A is not able to prove that the allegations were true, then his comment will not be considered fair comment.

Fair comment and justification distinguished

The plea of fair comment is available only in respect of both facts and opinion, it is not necessary to prove the truth of the comment. When justification is pleaded in respect of matters of opinion, the defendant must prove not only that he honestly held the views expressed but also that they were accurate.

Absolute Privilege

It gives the person an absolute right to make the statement even if it is defamatory, the person is immune from liability arising out of defamation lawsuit. Generally, absolute privilege exempts defamatory statements made:

- during judicial proceedings,
- by government officials,
- by legislators during debates in the parliament,
- during political speeches in the parliamentary proceedings and,
- communication between spouses.

For example, X is a member of Parliament and he gives a speech in the parliamentary proceedings which defames Y. Here X is protected by absolute privilege. In the case of *T.J. Ponnen v. M..C. Verghese*, the court held that a letter sent by a husband to his wife which contains defamatory about the father-in-law does not constitute a case of defamation. It is a privileged communication between the spouses as per Section 122 of the Indian Evidence Act, 1872. In *Chatterton v. Secretary of State for India*, it was held that the letters from the

Secretary of State of India to his Parliamentary Under-Secretary providing the materials for the answer to a parliamentary question was absolutely privileged.

Parliamentary privilege in the Indian Constitution

Article 105 and 194 of the Indian constitution gives certain rights, immunity to the members of the Houses of Parliament. The members of the Parliament have been vested with the freedom of speech. This freedom is different from the freedom of speech and expression guaranteed under Art. 19(1)(a), as the freedom in Art. 105 and 194 are specifically for the members of the Parliament and is subject to rules and orders which regulate the parliamentary proceedings. Art. 19(1)(a) does not protect an individual absolutely for what he says and is subject to reasonable restrictions under Art. 19(2). The term freedom of speech in Art. 105 states that a member of Parliament shall not be liable to any proceedings, civil and criminal, in any court for the statements made in debates in the Parliament. The second clause of Art. 105 confers immunity, inter alia, in respect of anything said in Parliament the word anything is of the widest import and is equivalent to everything. The only limitation is that the words must be spoken during the sitting of the Parliament. This freedom is given even to non-members like the Attorney General of India so that every member can participate freely in the debates and discussions without any fear. In *P.V. Narsimha Rao v. State (JMM Bribery Case)*, the apex court held that the privilege in Art. 105(2) which gives immunity from court proceedings extends even to taking of bribes by the members of Parliament for the purpose of voting in a particular manner in Parliament.

Qualified Privilege

When a person making the statement has a legal, social or moral duty to make it and the listener has an interest in it, then the defense of qualified privilege is allowed. Following are the instances where this defense can be availed of:

Reference for a job applicant,
Answering the police inquiries,
A fair criticism of a published book or film in a review,
communication between parents and teachers,
communication between employers and employees,
communication between traders and credit agencies are all relationships that are protected by qualified privilege.

These privileged communications must relate to the business at hand, even if what was said was untrue. However, this does not give a license to say false statements, the person making the statement must believe it to be true. This defense can fail if it is proved that the defamatory statement was made with a malicious intention. Discussions on government and political matters which are subjects for public debates are covered under this defence. For example, a teacher tells the parents about the child's habit of stealing and warns them. In this case, the teacher can take the defence of qualified privilege as he made the statement in good faith and in the interest of the child.

Absolute Privilege	Qualified Privilege
The defendant can avail this defence even when he has made the false and defamatory statement deliberately and maliciously.	The defendant can avail this defence when he made the false and defamatory statement deliberately, but without malice.
It can be used as a defence in the Parliamentary, judicial, naval, military or State proceedings.	It can be used as a defence in the communications made in the course of legal, social or moral duty, for self- protection, for protection of common interest, for the public good.

Statement of Opinion

If the statement made is an opinion and not a statement of fact, then it cannot be defamatory. For example, if a person says that he finds an actor ugly, the statement is just an opinion. However, if he says

that the actor is a drug addict or has had multiple affairs, then it will be a defamatory statement. If this statement results into the actor losing work or his job and the statement made are false, then there will be a case for defamation.

Consent

If the plaintiff consents to the statement made, then there is no defamation. The consent of the plaintiff gives absolute privilege to the publisher, it is immaterial whether the plaintiff knew that the information approved for publication was defamatory or not. Consent may be given by words or actions, including inaction. If the consent is obtained fraudulently or from a person of unsound mind then it will be invalid.

Censure passed in good faith by the person having lawful authority

It is not defamation of a person having over another authority either conferred by law or arising out of the lawful contract made with another to pass in good faith any censure on the conduct of that other in matters to which such lawful authority relates. For instance, a judge censuring the conduct of a witness or a banker censuring the cashier of his bank or, an engineer submits a report to the municipality that the contractor had taken away the stock of metal. If the engineer has made the report in good faith, then he will not be liable for defamation.

The accusation made in good faith to the authorized person

An accusation made in good faith against a person who has lawful authority over that person is not defamation. It is not necessary for the person making allegations to prove that his allegations were true but he must prove that there were reasonable grounds for him to believe in the allegation. If a person signs a petition to the chairman of Lucknow Development Authority against defective construction of houses, along with several other residents of the locality, he can say to have acted in good faith.

Difference Between Civil Defamation And Criminal Defamation

Sr. No.	Defamation as a Tort	Defamation as a crime
1.	It is a civil wrong.	It is a criminal offence, which is bailable, non-cognizable and compoundable.
2.	It is based on tort law- an area of law which has no statutes to define wrongs and relies completely on case laws to define wrongs.	It has been defined as an offence under Section 499 and the punishment for the same is given in Section 500 of the Indian Penal Code, 1860.
3.	It provides redressal to the plaintiff by awarding damages in the form of monetary compensation from the accused.	It seeks to punish the offender and send a message to the society not to commit such an offence.
4.	Damages are awarded on the basis of probabilities.	The offence of defamation has to be established beyond a reasonable doubt.
5.	It is generally a slow process to seek relief in India.	The plaintiff can move to criminal court and ask the offender to take cognizance of his complaint.
6.	A person found guilty can be penalized only by making him pay damages.	A person found guilty can be punished with imprisonment up to two years or fine or with both.

Conclusion

The defamation law serves the purpose of protecting people from having their reputation injured resulting from false statements made against them. However, it is still in accordance with the right to freedom of speech and expression, as people can make true statements and give their opinions. This area of law seeks

to protect a person's reputation from being hurt by preventing unfair speech. The apex court has stated in various cases that the ambit of freedom of speech and expression is "sacrosanct" but is not "absolute". It also said that the right to life under Art. 21 includes the right to reputation of a person and it cannot be violated at the cost of the freedom of speech of another.

2.4 Torts affecting person & Property: Nuisance, Negligence, Fraud

Tort in common law, civil law, and the vast majority of legal systems that derive from them, any instance of harmful behavior, such as physical attack on one's person or interference with one's possessions or with the use and enjoyment of one's land, economic interests (under certain conditions), honor, reputation, and privacy. The term derives from Latin *tortum*, meaning something twisted, wrung, or crooked. The concept encompasses only those civil wrongs independent of contracts.

Other legal systems use different terminology for this wide and amorphous area of the law. Germans, for example, talk of unlawful acts, and French-inspired systems use interchangeably the terms *delits* (and quasi-*delits*) and extra-contractual civil responsibility. Despite differences of terminology, however, this area of the law is primarily concerned with liability for behaviour that the legal order regards as socially unacceptable, typically warranting the award of damages to the injured party or, occasionally, an injunction.

It is broadly true to say that most western European and common-law systems tend to regard as actionable the same factual situations. But although the problems encountered are identical and the results reached are often quite similar, the arrangement of the law and the methodology employed often differ significantly between countries, depending on how the law has been conceived and how solutions have been approached in various cultures over time.

Thus, the German Civil Code reflects a strong tendency to abstraction and systematization qualities that betray the code's university and Roman-law origins and that contrast at least superficially with the more casuistic (case-based) and judge-made law of the common-law systems.

By contrast, the 19th-century codifications, which are the products of the natural school of law, are marked by their broad sweep and manifesto-like provisions, often making them more readable than their German counterparts but also less precise and accordingly in need of judicial definition.

Typical of this approach is the Napoleonic Code of 1804, which became a model for most Romanistic legal systems, including those of Italy and Spain and their derivatives, mainly in Central and South America. Much of the contemporary law in these countries results from the interplay between judicial activity and doctrinal writing.

Tort law, though often viewed as secondary to contract law in the law of civil obligations, spread to many parts of the world after World War II, and its influence was especially notable in continental Europe. At the same time, criticism of it has led to its replacement either partially by specialized schemes or, in rare cases, by complete systems of accident compensation.

Criticism has also provoked serious discussion about the impact of the welfare state, modern insurance practices, and the importance of economic analysis in the proper development of the law. For a time it even looked as if these challenges might bring about wholesale reform (such as that adopted in New Zealand in the 1970s) that would threaten rules with very ancient pedigrees. But the 20th century closed with the tort system remaining basically intact, albeit held to a lower status within the entire system of compensation, as the majority of compensation for reparable injuries continued to be paid through social security systems and insurance claims.

Specific Torts Are As Under:

Negligence

Negligence is the breach of legal duty to take care which results in damage, undesired by the defendant to the plaintiff (Winfield).

Negligence is an independent tort. Its essentials are:

- Duty to take care.
- Breach of duty.
- Consequent damage.

1. Duty to take care: The leading case is *Donoghue v. Stevenson*, M, the manufacturer had sold ginger-beer in an opaque bottle to a retail seller R. R sold it to A who gave a treat with it to a young woman P. P consumed the ginger-beer, but found in the bottle a dead snail.

This seriously affected her and she became ill. She sued M, the manufacturer. In fact there was no contractual duty of M to P, but the House of Lords, held that M was liable. Lord Atkin's judgment is a classic. He held you must take reasonable care to avoid acts or omissions which you can reasonably foresee would be likely to injure your neighbour, who then in law is my neighbour? The answer seems to be, Persons who are so closely and directly affected by my act that ought reasonably to have them in contemplation as being so affected by my acts or omissions.

It was the duty of the manufacturer to take care that the opaque bottle did not contain noxious matter. It was held that the manufacturer was liable.

This case is a milestone and the above principle is regarded as the statement of law. The courts follow this, unless there are strong reasons to deviate from it.

The 'standard of care' as applied by the courts, is the standard of a reasonable man. The care, the skill and the diligence of the person, must be that of an ordinary prudent man under the circumstances.

In *Bolton v. Stone*, D, a person who was on the roadside, was injured by a cricket-ball hit by the player from the field which was about 100 yards away from the road. There were one or two such rare occasions in the past. The court held that the defendants (the members of the club) were not liable. The hit was so exceptional that no prudent man would have foreseen. Further, it was too remote and no reasonable man would have anticipated.

2. There must be a breach of duty.

The second essential condition is that there must be a breach of duty. This is judged with reference to a 'reasonable man'. According to Alderson J, Negligence is

The omission to do something which a reasonable man would do, (guided by the circumstances on hand).
Doing something which a prudent man would not do.

This is the objective standard of a reasonable man. It is the application of 'foresee-ability test' i.e. whether a reasonable man would have foreseen.

***Roe v. Minister of Health*:** In 1947. Dr. G. gave to R a spinal anesthetic to conduct an operation. The anesthetic which was in a ampoule, had been stored in phenol as usual. But due to an 'invisible crack' in the ampoule, phenol had entered and in consequence, the patient R became paralysed. Dr. G had taken all care as a prudent surgeon would have taken and he was not aware of the crack in the ampoule. Held, Dr. G was not liable.

The medical literature on the subject was consulted as the set standard and Dr. G was held not negligent.

3. Consequent damage.

There must be the injury to the plaintiff as a direct consequence of the negligence of the defendant. It must not be too remote. The leading cases are:

Donoghue v. Stevenson

Bolton v. Stone

The wagon Mound case etc.

Contributory Negligence

Meaning: This is a defense open to the defendant, in an action for negligence. This is based on the principle that no doubt, the defendant is, in fact negligent but the plaintiff also has contributed his negligence, and hence the plaintiff should not be allowed to take advantage of his own tort of negligence.

The maxim is *in pari delicto potior est conditio defendantis* (If both parties are equally to blame, the condition of defendant is to be preferred). Both are authors responsible for the injury. Of course, the burden of proof lies on the defendant to establish contributory negligence of the plaintiff.

The question in each case is: who caused the accident? (Winfield)

If it were the defendant, the plaintiff can recover damages in spite of negligence (Rule of last opportunity: *Davis v. Mann*).

If it were the plaintiff, he cannot recover damages in spite of defendant's negligence (*Butterfield v. Forrester*).

If it were both the plaintiff and defendant, the plaintiff cannot recover.

Davies v. Mann: P had tied the forefeet of his donkey and had let loose on the highway. D who was going at a smartish pace in his wagon (horse driven), ran over and killed the donkey. P sued D. It was held that D had the last opportunity to avoid the accident. Hence, D was liable.

Butterfield v. Forrester: D wrongfully obstructed the highway by putting a pole across the road. P who was riding violently saw the pole from a distance of about 100 ft. away, but came against the pole and was thrown over by the pole and was injured. It was held that D was not liable. The reason: If P had exercised due care, he could have avoided the accident, this decision has been modified later in *Davies v. Mann*.

Rule of last opportunity: This is the rule now in operation.

In British India Electric Co. v. Loach: The rule was applied to constructive last opportunity. In this case, P, a wagon driver was driving negligently on the level crossing. D's driver who was driving a tram came at a fast speed, saw the wagon on the tramline, and applied the brakes. But, as the brakes failed, he dashed against P and P was killed. P's representative sued D.

It was found that the brakes were defective and hence D had the last opportunity. If the brakes were in order, he could have averted the accident. He has failed to do so and hence, D was held liable.

As this rule was also not free from doubt, the Parliament enacted in England the Law Reforms Act 1945. It provides that when both P and D are at fault the claim of P will not be defeated, but would be reduced to such extent as the court thinks just and equitable.

Alternate Danger doctrine: Jones v. Boyce

This is also called as the dilemma principle. Such a situation arises, when the plaintiff, P is put in a position of imminent personal danger by the wrong doing of the defendant. In order to avoid the danger, P suffers injury. In such cases, D is liable.

Jones v. Boyce: D, a Coach-driver was driving with P, so negligently and with so much speed that P was alarmed. Going down the hill, the coach's coupling gave way; It struck a post and was about to be turned down. P, to save himself jumped out and was injured. He sued D. Held D liable.

If P had not jumped out, he would not have been injured, as the coach came to rest later without any trouble. Even then D was held liable as he had created a dilemma to P.

Res ipsa loquitur. (The thing itself speaks)

This is part of the rule of evidence. In cases of negligence, the burden of proving negligence is on the plaintiff, but *Res ipsa loquitur* is an exception. This is a case where the event 'tells its own story' clearly and speaks to the defendant to disprove. Eg. The presence of a pair of scissors in the stomach of a patient

P, 2 days after the operation is over, or the presence of a stone in a loaf of bread, tells its own story. The court presumes the negligence of the Defendant.

Byrne v. Boadle: A barrel of flour rolled out of an open doorway of the upper floor of the godown of D, and fell on P who was going on the street. The burden was on D to prove that he was not negligent. Held D liable.

In *State of Punjab v. M/s Modern Cultivators*, a canal was under the care of the State. Due to its negligence there was a breach and water flooded the fields of P. P suffered losses and sued the State. Held, the State was liable. *Res ipsa loquitur* was applied.

Nuisance

Nuisance is the unlawful interference with a person's use or enjoyment of land or some right over or in connection with it (Winfield).

The main principle is 'use your property so as not to interfere with that of others.'

Nuisance is of two kinds

- Private
- Public.

Public Nuisance is a Crime. It materially affects the peace, comfort and convenience of the people at large. E.g. Obstructing public highways, carrying on a prohibited trade causing annoyance to the public, etc

In *Soltan v. De*, P was residing in a house next to the Roman Catholic Church. The Church bell was ringing at all hours of the day and night.

Held: that this was public nuisance. An injunction was granted.

Public Nuisance And Private Nuisance

A public right is violated. While Private right is violated

It is a crime. While private is not a crime but tort only.

Special damage, is necessary. While in private Special damage need not be.

To be filed through Advocate. While in private, Suit may be filed by General.

Essentials of Nuisance.

There must be an unlawful interference.

This must be in respect of the use or enjoyment of land or of some right over or in connection with it causing physical discomfort to the plaintiff or some damage to his property. E.g. Noise, smell, pollution of air or water. But in society some amount of interference by sound, smell etc., is inevitable. The courts apply the standards of a reasonable man and determine the degree of injury to the comfort or enjoyment of the property. Up to a certain degree, interference is not actionable.

Taking all the circumstances into consideration the court fixes the Standard of liability.

There is no liability for abnormal sensitiveness of a person or of the property. The leading cases are:

Robinson v. Kilvert

Heath v. Brighton.

Wagon Mound Case

The defendant is not liable in respect of abnormal sensitiveness.

Robinson v. Kilvert: D was in the ground floor, and was manufacturing paper boxes. Just above D's room, P had stored sensitive paper. Due to heat used by D to make boxes, the paper got spoiled. P sued D, held: P's paper was abnormally sensitive in the circumstances. Hence, D was not liable.

Heath v. Brighton: D's power station was making a buzzing noise. The church complained that it affected the sermon.

Held: as the noise never affected the attendance for sermons there was no nuisance.

Wagon Mound Case: Oil stored in Wagon Mound vessel escaped and spread to over 600 feet away, where another ship P had been embarked. Welding operations were going on ship P. The people there took care to test oil but continued welding work. Fire broke out and the ship was damaged. **Held:** Not liable.

3. Malice:

The question is whether, bad intention of the defendant is necessary for nuisance. The answer is that Malice is not essential.

This has been answered in the leading cases.

Christie v. Davey:

D became angry with the Music lessons given by P a Music Teacher. P was living in a residence separated from D by thin wall. D interfered with Music Lessons by whistling, Shrieking, beating trays, drums etc.,

Held: That an injunction could be given to D to stop the Nuisance.

Hollywood Silver Fox v. Emmett:

D intentionally fired guns and scared the silver mixed during their breeding time, and caused great damage. P the owner sued for nuisance,

Held:

There was Motive, compensation must be paid. Hence, Malice is not essential but it is necessary to get more compensation.

4. Nuisance on the highway:

This is any act or omission on or near a highway, whereby the public are prevented from freely, safely and conveniently passing along the highway.

Under common Law, the crown was not liable for nuisance on Highways, but this has been changed under the Highways Act 1961 and the State or Department is liable.

In India, as per the National Highways Act 1956, the state is liable.

Projections over the Highways.

The law is strict in this regard. The person who creates a nuisance on the highway is liable.

Tarry v. Ashton: An overhanging lamp of D fell on the plaintiff who was walking on the pavement.

Held, D the defendant was liable. This was interference on the Highways and the rule of strict liability applied.

Remedies:

The remedies for private nuisance are:

- Abatement
- Damages
- Injunctions.

i) Abatement: This means removal of nuisance. This is a private remedy without going to the courts, E.g.: Overhanging branches of a tree may be cut off, if they are a nuisance. Further, to save the lives of individuals or for security reasons, the nuisance may be removed. No notice is necessary.

ii) Damages: The court determines to what extent there is diminution or reduction of the value or utility of the property to fix the compensation. But some special damage is to be proved.

iii) Injunction: As per the specific Relief Act, temporary or permanent injunction may be granted by the court depending on the circumstances of the case.

Trespass to Land

Definition: Trespass to land is the unjustifiable interference with the possession of land. (Winfield)

Two Essentials:

- Invasion of or entry on the land.
- Invasion must be unjustifiable.

1. Possession:

It is the evidence of ownership and has two ingredients: Animus and Corpus ; Animus is the mental element and corpus is the physical element. The person in possession of land need not be the owner; he gets the right to quiet and peaceful enjoyment of the property. He has a right to exclude all others.

There is trespass if A enters on the land of 'B' or remains there or does any act affecting the possession of B, without legal authority. It is not necessary that he must use force and cause damage on the land of B. In fact as chief justice Holt said Every invasion of private property, be it ever so minute, is trespass. (Entinck v. Corrington)

2. Invasion must be unjustifiable:

Every interference which is without any legal authority or justification amounts to trespass, e.g. Placing any chattel on the land of B, planting trees on that land, shooting over that land, causing any noxious substance to cross the land, erecting a building overhanging that land etc, Even the airspace above the land belongs to the possessor of land and any unauthorized invasion is a trespass.

Trespass may be by animals. The owner of the animal is liable.

Trespass ab initio.

Trespass ab initio means trespass from the beginning. This is a circumstance where the entry of a person on the land of another is lawful, but if the person stays and abuses his authority he becomes a trespasser ab initio. It is important that the person must abuse his possession by doing some positive act and not by a mere omission.

Six Carpenter's case: Six carpenters entered an inn (hotel), took bread and wine. They paid the bill. They ordered again and were served. They quarrelled on the rates and then did not pay as per the demand. The hotel owner P sued them for trespass ab initio. Held, not liable. For trespass ab initio, there must be a positive act. Not paying was an omission.

If a carpenter or an electrician lawfully enters to do some repairs but does some positive act (damaging the property, stealing some materials etc.,) he becomes liable for trespass ab initio.

Dais v. Pasmore: In this case, the police entered the premises of P, To arrest P and others. They seized some documents which were relevant for the trial of the arrested person; they also seized other documents which they returned later. It was held that the police officers were liable for trespass ab initio in respect of documents seized and returned. But they were not liable for entry on the premises to arrest P and others.

Chic Fashins v. Jones: The police officers, under a search warrant entered P's shop to search certain stolen goods. They found none but found certain others which they seized. They had reasonably and erroneously believed that the seized goods were stolen.

Held, the seizure was not illegal. The doctrine of trespass ab initio was not raised.

Remedies for Trespass

The Remedies are:

Right of re-entry: The dispossessed person P, may re-enter if that is possible or may enter under the orders of the Court. (Specific Relief Act).

Action for recovery of land: The dispossessed person may sue for recovery of land; if he establishes his title and possession, he is entitled to recover the land.

Action for mesne profits: Any profits made or rent collected or benefit made by the person who was on land without legal authority, may be recovered by the plaintiff under Civil Procedure Code by filing a suit for mesne profits.

Jus Tertii: Defenses for Trespass. The various defenses open to an action for trespass to land are briefly as follows:

Right by prescription: The defendant must establish his right earned by prescription.

Leave and License: The entry may be under permission expressly or by implication.

Authority of law: The entry may be according to law as in cases of entry for attachment of property under the orders of the court.

Distress Damage feasant: For cattle trespass, the animal may be detained until compensation is paid by the owner of the animal.

Self defense: This is a general defense and must be proved.

Re-entry on land: A person who is wrongfully dispossessed may enter peaceably and without using force.

Abating a Nuisance: To remove a nuisance, entry on the land is justified.

Entry to protect an easementary right.

This means right of third party. If T is a tenant of P, the plea of T that P is not the owner of that house or that he has no title, is no defense of T. Similarly, in case of Trespass to land, the plea of the trespasser that P has no rights or title will not be allowed. This is a sound rule of procedure before the courts. However in case of ejectment this may be a defense.

In *Asher v. Whetlock*: A was in possession of a waste land. B entered the premises to take the waste. B pleaded jus tertii that the title was with a third party but could not establish. Hence B failed.

Defamation

Defamation is the publication of a statement which reflects on a person's reputation and which tends to lower a person in the estimation of right thinking members of society generally, or, which tends to make him shun or avoid that person (Winfield).

This definition is wider than those, which define, defamation to mean the publication of a statement which tends to bring a person into hatred, contempt or ridicule. Imputations of insincerity or insolvency etc., which may arouse only sympathy or pity in the minds of reasonable people, are also covered by the above definition.

Essentials:

The statement or words must be:

- False
- Spoken (slander) or written (libel)
- Defamatory
- Published.

i) False: The words used must be false. In fact, truth is a clean justification. It must be shown that the imputation was false and malicious.

ii) The words may be spoken as in slander or may be in writing i.e., in a permanent form as in libel. Any writings, publication in newspapers, sky writing, cinematograph film, etc., are covered under libel. The leading case is *Yousoupoff v. M.G.M. Pictures*.

The defendant D, produced a film named *Rasputin*, the mad monk. In that film, one princess *Natasha* had been raped by *Rasputin*, the mad monk. The princess *Irina* of Russia, the wife of prince *Yousoupoff*

(plaintiff) claimed compensation on the ground that it was clearly understood that the reference was to prince Irina. The jury awarded 25,000 pounds as compensation and this was confirmed by the Court of Appeal.

iii) Statement must be defamatory and refer to the plaintiff.

The test is whether the words used tend to lower the plaintiff in the estimation of the right thinking members of the society generally (Winfield). If the words expose a person to contempt, ridicule or hatred or injures his profession or trade, or makes others shun or avoid his company, then the words are defamatory e.g. imputation of unchastity to a woman.

The plaintiff must prove that the defamatory words have a reference to him. Intention is not material.

If the reference is to a Class or group of persons, then the plaintiff must prove that the reference is to himself. A writes that 'lawyer are thieves', no particular lawyer can sue (Eastwood v. Holmes), But, when words have a latent meaning or a double meaning (pun), then it is defamatory. This is called Innuendo.

Leading Cases.

Mrs. Cassidy v. Daily Mirror.

Tolley v. Fry and Sons

The words must be published: publication is an essential requirement. Whether a statement tends to lower a person's reputation is decided by the standard of a reasonable man.

Publication means publishing a particular item of news or information to a person, other than the person to whom it is addressed:

If A writes to B, defaming B and sends the letter by registered post, there is no publication and therefore A is not liable.

If A writes a post-card defaming B, and sends by post, there is publication if an inquisitive postman reads and publishes. A is liable in such a case. (Robinson v. Jones)

If A dictates to his steno defaming B and if the steno publishes it, there is publication.

In Huth v. Huth, A sent a defamatory letter in an unsealed cover to B. B's butler, without authority opened and read it, held, that there was no publication as B had no authority to see.

Differences between slander and Libel.

Libel

The statement must be in a permanent form, Broadcasting of words comes under libel. Pictures, statues, effigy writing in any form, Printing marks or signs, sky writing by airplane etc come under libel. T.V relay is libel.

Libel is generally addressed to the eye.

Libel is actionable per se. (by itself) Libel tends to provoke breach of peace. It is a crime as well as tort in England and India.

Slander

Slander is in a temporary form. It is in words or gestures. Manual languages of the deaf and dumb, mimicry, and gesticulations etc., are examples. Slander is addressed generally to the ear.

Slander is not actionable per se. Hence, special damage must be proved i.e., Economic or Social loss to the plaintiff must be proved. Slander is not a crime, in England However on some occasions words may be seditious or blasphemous and hence may become a crime, but according to Section 499 I.P.C. it is a crime, in India.

Slander is not actionable per se.

This means that in cases of Slander special damage must be proved. Libel is actionable per se. As libel will be in a permanent form, it is likely to do more harm to plaintiff. Special damage means actual damage

sustained by the plaintiff. The plaintiff, must prove loss of money or some temporal or material advantage estimable in money which he has lost. Mere loss of society or consortium of one's friends is not sufficient.

If a person is excluded from a dinner party, because of slander he sustains a loss material and temporal. Hence, there is special damage and compensation can be recovered. If there is no special damage there will be no compensation in slander.

Hence, the general rule is that slander is not actionable per se.

But, this is subject to the following exceptions:

Imputation of Criminal offences punishable in nature.

Hailing v. Mitchel. M was a hotel owner. H was a hair dresser. M said to H 'You was with a crowd last night. I cannot have you here. You are to be turned out'. The court held that the words did not amount to an imputation of an offence.

Jacksons v. Adams: P was in possession of parish bell-ropes. D told P 'Who stole the parish bell-ropes; you rascal'. As the possession of bell-ropes was with P stealing by P was not possible and hence, there was no imputation of an offence.

- Imputation of contagious or infectious diseases which are likely to make others avoid the company of the plaintiff.
- Imputation of unchastely or adultery to a woman.
- Imputation of unfitness, dishonesty or inefficiency in a profession trade or business.
- Imputation of ignorance of law to a lawyer or incompetence to a surgeon, or cheating to a trader or insolvency to a businessman are examples; Bull v. Vasquez.

Defenses open to the defendant are:

Justification: Truth or justification is a very good and complete defense. Defamation is the injury to a man's reputation and if there is truth in the statement, then there is no defamation. The person is not lowered, but is placed to his proper level. The substance of the statement must be true, not merely a part of it. 'How, a lawyer treats his clients' was an article which dealt with how a particular lawyer was treating his client.

Held the article was in-sufficient to justify the heading. (Bishop v. Lautiar)

Fair Comment:

The comment must be on a matter of public interest. Honest criticism is essential for the efficient working of democratic public institutions. The Government and its institutions may be criticized.

Contents:

The matter commented must be of public interest. The Government and its various wings and establishments and public institutions may be criticised. Novelists, Dramatists, Musicians, Actors, etc., may be criticized.

Fair comment must be an expression of an opinion and not an assertion of facts. Plaintiff was advertising in papers as a specialist in E.N.T the defendant commented on him as a quack of the rankest species.

Held: that it was a comment, the Court always looks to the merit of the comments.

The comment must be fair: Mere violence in criticism by itself will not make the statements unfair.

Comment must be malicious. Even fictitious name may be used. That by itself will not render the statement unfair.

Innuendo:

In case of defamation one question that may come up for consideration is the actual meaning of the words used. Sometimes words may have double meanings (pun) or may be ambiguous but courts will be interested in finding out the exact meaning that is to be attributed under the circumstances. It is for this

reason that the court invokes the concept of Innuendo i.e. to find out the inner meaning of the words used by the author of the defamatory words.

Mrs. Cassidy v. Daily Mirror.

The facts were that the defendant published in his newspaper that 'Mr. Cassidy and Miss. K are engaged', In fact Mr. Cassidy had married Mrs. Cassidy. The wife Mrs. C sued the publishers. Her contention was that on seeing the news item, her friends in the women's club and elsewhere shunned her company and looked down upon her. The court therefore looked into the inner meaning of the publication. In effect, it meant that Mrs. C was not a legally wedded wife of Mr. C i.e. she was a kept mistress of Mr. C. The court awarded compensation.

Tolly v. Fry and Co. (Chocolate case)

In this case, P was a golf player and a member of the golf club. He was an amateur who became very popular. The defendant company D, published his photo with a chocolate protruding from his pocket, inscribed Fry and Co. Chocolates. The Golf club felt that the plaintiff had violated the club rules and that he could be asked to resign. P sued the company for compensation. Court applied the principle of Innuendo and held that the real meaning was that if P by consent sell his name as Golf player he could be terminated from the golf club. Hence D was held liable.

i) Privileges: Privileges are of two Kinds: absolute and qualified.

Meaning of privileges:

They are occasions on which there ought to be no liability for defamation. This is because the public interest outweighs the plaintiff's right to his reputation.

Privileges are absolute when the communication is of paramount importance. Such occasions are protected, however malicious or outrageous they may be. The defendant may make statements even if they are false.

Examples for absolute privileges:

- Statements made in Parliament or Legislature.
- Reports, papers, etc., of either House of Legislature.
- Judicial proceedings.
- Communications between solicitor (advocate) and his client.
- Communication between one officer and a foreign officer. Statements are qualified when the person makes the statement honestly even though they are false.

Qualified Privilege

Other types of communications are subject to what is called a qualified privilege, meaning that the person making the allegedly defamatory statement may have had some right to make that statement.

If a qualified privilege applies to a statement, it means that the person suing for defamation must prove that the person who made the defamatory statement acted intentionally, recklessly, or with malice, hatred, spite, ill will or resentment, depending on your state's law.

Just some of the statements for which a qualified privilege applies are:

- statements made in governmental reports of official proceedings
- statements made by lower government officials such members of town or local boards
- citizen testimony during legislative proceedings
- statements made in self-defense or to warn others about a harm or danger
- certain types of statements made by a former employer to a potential employer regarding the employee, and
- published book or film reviews that constitute fair criticism.

The employer review qualified privilege is particularly noteworthy. In order to avoid defamation claims, some employers these days refuse to confirm any details about former employees other than their dates of employment. But certain types of negative statements might fit in under the qualified privilege category.

If, for example, the employer fired the employee for theft, a statement about that to a potential employer might qualify as a statement made to warn others about a harm or danger (i.e., the danger of hiring someone who might steal from you).

2.5 Joint Tort-Feasors, Nervous Shock and Malicious abuse of Legal Process.

Introduction

When two or more persons unite to cause damage to another person, then they will be liable as joint tort-feasors. All those who actively participate in the civil wrong commission are joint tort-feasors. Based on the percentage of damage caused by his negligent act, each joint tort-feasor is responsible for paying a portion of the compensation granted to the complainant. According to the principle of contribution, the defendant who pays more than his share of the damages, or who pay more than he is at fault, may bring an action to recover from the other defendant.

Illustration

The claimant has the right to recover the damages from both the defendants, if X and Y are found to be at fault.

Liability of Independent Tortfeasor

They are severally liable for the same damage due to an independent course of action. In *Thompson v. London County Council*, it was observed that “the damage is one but the cause of action which led to the damage are two”. Such tortfeasors are, therefore, severally liable for the same damage, not jointly liable for the same tort.

In *Koursk* case, *Koursk* and *Clan Chisholm* collided with one another. As a result, the ship *Clan Chisholm* collided and sank another ship *Itria*. The owners of the damaged ship *Itria* recovered the damages from *Clan Chisholm* for the loss suffered but were not fully satisfied as the liability of the owners of *Clan Chisholm* was limited to the lesser amount. Subsequently, owners of *Itria* filed a suit against the *Koursk* also. It was held that *Koursk* and *Clan Chisholm* were not joint tort-feasors but only independent tort-feasors. The liability of the Independent tort was held to be several and not joint and therefore, there could be as many causes of action as the number of tort-feasors.

Liability of Several Concurrent Tortfeasors

When the same injury is caused to another person by two or more person as a result of their separate tortious acts, this results in several concurrent tortfeasors. Even where successive injuries are caused, the parties remain multiple, concurrent tortfeasors as long as the negligence of each is both a factual and proximate cause of each injury.

Illustration

Several concurrent tort-feasors will occur in a chain collision situation, as described in the case of *Rutter v Allen*.^[1] In this case, the plaintiff stopped his vehicle behind a truck that had come to a sudden stop. The Plaintiff was then struck from behind by a vehicle driven by the defendant X which was struck by a vehicle driven by the defendant Y. The exact sequence of the collisions could not be determined with certainty because they all occurred within a very short time frame. Despite this, it was held that due to both the defendant's negligence, the damage had been caused to the plaintiff's vehicle. As a consequence, the accused were several concurrent tortfeasors and were jointly and severally liable for the damage caused by their negligence.

If a complainant suffers multiple accidents, several concurrent tort-feasors may also be the individual tort-feasors from each accident. For example, in a motor vehicle accident in *Hutchings v Dow*^[2], the complainant suffered damage. He was further injured in an assault about 18 months later. It was determined that the complainant suffered from severe and ongoing depression resulting from both the

motor vehicle accident and the assault. The court stated that “several tortfeasors whose acts combined to produce the same damage, i.e. depression,” were the defendants from the motor vehicle accident and the assault perpetrator.

Liability of Joint Tort-feasors

When two or more persons join together for common action, then all the persons are jointly and severally liable for any tort committed in the course of such action. There were three principles in English Common Law with regard to the liability of joint tort-feasors.

The first principle is that the liability of wrongdoers is joint and several i.e. each is liable for the whole damage. The injured may sue them jointly or separately.

The second principle was laid down in the case of *Brinsmead v Harrison*, where it was held that a judgment obtained against one joint wrongdoer released all the others even though it was not satisfied.

The third rule was laid in the case of *Merryweather v Nixon*, where it was held that in common law, no action for contribution could be sustained by one wrongdoer against another, although one who sought a contribution might have been compelled to pay the full damages. The reason alleged for this rule was that any such claim to the contribution must be based on an implied contract between the tort-feasors and that such a contract was illegally concluded with a view to committing an illegal act.

But the above rules were virtually abolished by the Law reforms Act, 1935 and the Civil Liability Act, 1978. The first rule in *Brinsmead* case being unjust, was abolished by the Act 1935 and therefore by the Act of 1978 which now provides that judgment recovered against any person liable in respect of any debt or damage should not be bar to an action, or to the continuance of an action, against another person who is jointly liable with him with respect to the debt and damage.

The second rule in *Merryweather* case is that a tortfeasor who has been held liable cannot recover contribution from other joint tortfeasors, being unjust, has also been abolished by the Act of 1935 which, as per section 6(1), provides that a tortfeasor who has been held liable to pay more than the share of the damages, can claim contribution from the other joint tortfeasors.

The third unjust rule was created by section 6(1)(b) of the Law Reform Act, of 1935 that if successive actions are brought, the amount of damages recoverable shall not, in the aggregate exceed, the amount of damages awarded in the first judgment. This rule, being unjust has now been repealed and replaced by section 4 of the civil liability Act, 1978 which now disallows the only recovery of cost in the subsequent suits, unless the court is of the opinion that there was a reasonable ground for bringing the action.

Laws in India

In India, there is no statutory law on joint tortfeasors' liability. As stated above, in England the Law Reform Act, 1935 and the Civil Liability Act 1978, have virtually brought the position of joint- tortfeasors on par with the independent tortfeasors. The question therefore arises, should the Indian courts follow the common law on joint tortfeasors which was laid down in *Brinsmead* and *Merryweather* cases and was prevailing in England prior to 1935 or the law enacted by the British Parliament in 1935 and 1978? Up to 1942, the courts in India had followed the law as laid down in *Brinsmead* and *Merryweather* cases, but in some cases, the courts expressed doubts about its applicability in India.

The Supreme court of India, in *Khushro S. Gandhi v. Guzdar*[4], refused to follow the common law of England. The fact was that in the suit for damages for defamation, one of the defendants had tendered an apology to the plaintiff and the court had passed a compromise decree between the plaintiff and the defendants who tendered an apology. When the plaintiff wanted to continue the suit against the other defendants, it was contended by the defendants that the compromise decree released all other defendants from their liability. Rejecting the contentions of the defendants, the court held that in the case of joint tortfeasors, in order to release all joint tortfeasors, the plaintiff must receive full satisfaction or which the law must consider as such from a tortfeasor before other joint tortfeasors can rely on accord and satisfaction. The rule which is in consonance with justice, equity and good conscience will convince only that type of liability of tortfeasors as joint and several.

In the light of the above decision, the recent trend of the Indian court is to follow or adopt common law of England or the law enacted by the British Parliament if it is in consonance with the principles of equity, justice and good conscience under the Indian Constitution.

When does the liability of joint tort-feasors arise?

Liability of joint tort-feasors arises in three circumstances and they are:

Agency

When one person is authorized by another person to do work on his behalf then any tort committed by that person, the agent then principal who is authorizing the work will jointly and independently be held liable. When a tort is committed by an agency then both principal and agent are considered as joint tortfeasors. When any partner commits tort during the course of the business, then all other partners are also considered as joint tortfeasors.

Vicarious Liability

When a person is liable for the tort committed by another person under special circumstances, the liability is joint and both are joint-tortfeasors. Thus, when a servant commits a tort in the course of employment, the master can be made liable along with the servant as a joint-tortfeasors.

Joint Action

Where two or more persons join together for common action then all the persons are jointly and severally liable for the tort committed in the course of action.

Tort-feasors Defenses

An individual or entity accused of committing a civil mistake basically has three options for defending their actions. These tortfeasor defenses include:

Consent and Waiver

A tortfeasor (defendant) may defend his position in a civil lawsuit if the accuser (defendant) has been explicitly warned of the risk or danger of engaging in the harmful activity. This defense is referred to as the legal maxim *volenti non fit injuria*, which means “no injury is done to a consenting person.” This tortfeasor defense usually relies on signed waivers of liability

Comparative Negligence

In comparative negligence, tort-feasors may try to defend themselves by claiming that the complainant contributed to his own damage by committing acts of recklessness or negligence. A similar concept called “contributory negligence” often results in the court assigning a percentage of fault to each party, which ultimately dictates the percentage of financial responsibility for which each party will be held accountable.

Illegality

Where at the time of the injury, the complainant committed an illegal act for which he was seeking compensation, the defendant’s liability may be reduced, or entirely eliminated.

Remedies

The law of contribution says that Y claims to share the liability to X with others was based on the fact that they were subject to a common liability to X, whether equally with Y or not. The words in respect of the same damage emphasized the need for one loss to be allocated among those liable. The amount of the contribution recoverable from any person shall be fair and equitable, taking into account the extent of his responsibility for the damage. The court may exempt any person from the liability to make a contribution or direct that any person’s contribution amounts to full compensation.

The plaintiff fell down a hole which had been left uncovered by the negligence of a contractor employed by the defendant to carry out certain works on the premises on which the plaintiff had come. It was held that the contractor who was added as a third person to the suit was liable to contribute one-half of the damages.

Criticism of Joint Tort-feasors

Joint and multiple liability doctrine is criticized because it can result in severe inequities. For example, a defendant who has only 10 percent responsibility for an accident that is jointly and severally liable with a defendant who is 90 percent at fault for an accident may have to bear the full amount of damage financial burden, even though his or her mistake was quite minor.

Conclusion

Joint and multiple liabilities is a system that protects the complainants when one or more wrongdoers are unable to pay damages owed to the complainant. However, this can lead to disproportionate and unexpected results for tort-feasors.

Nervous Shock and Malicious abuse of Legal Process

Nervous Shock under the Law of Torts

Introduction

The law relating to nervous shock has a long history of recognition. The question of recovery for nervous shock (or psychiatric injury) negligently caused by another has been one which has perplexed various courts in various common law jurisdictions throughout the world since it was first established in the case of *Byrne v Southern and Western Railway Co.* In no area of tort, is the task of providing liability more difficult or more contentious than in the case of nervous shock where the victim claims is based on psychiatric damage. Where the damage is the result of the effects that are suffered by another due to carelessness of the tortfeasor.

Defining Nervous Shock

Medically speaking nervous shock would mean the following: circulatory failure marked by a sudden fall of blood pressure and resulting in pallor, sweating, fast (but weak) pulse, and sometimes complete collapse. Its causes include disease, injury, and psychological trauma. In shock, the blood pressure falls below that necessary to supply the tissues of the body, especially the brain. Under the English law of tort, the same is defined as follows: nervous shock or injury inflicted upon a person by intentional or negligent actions or omissions of another. It is most often applied to psychiatric disorders triggered by witnessing an accident, for example an injury caused to one's parents or spouse. Although the term "nervous shock" has been described as "inaccurate" and "misleading" (Lord Keith and Lord Oliver, respectively, both in *Alcock v Chief Constable of South Yorkshire*) it continues to be applied as a useful abbreviation for a complex concept.

Is Nervous Shock Worth protecting through the Tort System?

We definitely need to address this question when we are dealing with a topic which took a bit long to get recognized. Do we compensate plaintiffs who suffer this type of loss, and if so why? The answer seems almost self-evident i.e., yes. Tort law protects the interests of the individual and adjudicates private wrongs. It is a judicial proceeding developed through case law in which the rules of evidence apply. Fault or negligence is an important issue in tort law and tort law is fault oriented. Tort law deals with civil wrongs for which the law provides compensation. It protects equity between individuals by providing compensation for damages, so that the status quo that existed prior to the harm can be reestablished between the parties. The rationale behind the law of nervous shock is that the body is controlled by its nervous system (an essential part of the body) and if by reason of an acute shock to the nervous system the activities of the body are impaired and as a consequence is prevented from functioning normally, there is a clear "bodily injury". It is important to note that the cause of nervous shock itself is not enough to make it an actionable tort, some injury or illness must take place as a result of emotional disturbance, fear,

or sorrow. In order for a claimant to receive damages from nervous shock due to the negligence of the defendant, they must prove all the elements of the tort of negligence: 1) a duty of care exists; 2) there is a breach in that duty; 3) the causal link between the breach and shock; 4) shock was not too remote a consequence.

Historical Evolution of Law of Nervous Shock

The law of torts is not fully codified, in absence of any statutory law we have landmark cases to be followed as Precedents. And with reference to the law relating to nervous shock all we have in hand is to study the law by tracing the cases. The law of nervous shock has been evolved over the decades by the courts, wherein they moved from entertaining claims only limited to sudden shock to taking a wider and more flexible approach in dealing with the claims of an individual taking into account several eventualities. Initially the courts were reluctant as well as slow in recognising the claims for psychiatric illness, for it was felt that it would attract dubious and false claims under the garb of psychiatric illness as it would prove very difficult to outline and define the precise parameters of liability under this field. For instance difficulty of proving the link between defendant's conduct and shock to the plaintiff resulting from the conduct of the defendant. The law of nervous shock has developed through case laws which date from as far back as 1861. There are numerous English law cases which provide the best picture of the development of the law in this area. *Lynch v knight*, one of the earliest cases that comments on liability for mental damage. The comment, however, was in the nature of obiter dicta and the case actually involved an action for defamation. The comment made was as follows: "Mental pain or anxiety the law cannot value and does not pretend to redress, when the unlawful act complained of causes that alone, though where a material damage occurs, where a material damage occurs, and is connected with it, it is impossible a jury, in estimating it, should altogether overlook the feelings of the party interested." In this, the courts made very clear that the damage that the law takes notice has to be material, something tangible like a bodily injury. The case which forms the actual starting point for all the case laws on nervous shock is the case of *Victorian Railways Commissioners v. Coultas*, the privy council observed that:

"Damages arising from mere sudden terror unaccompanied by any actual physical injury, but occasioning a nervous or mental shock, cannot under such circumstances their Lordships think, be considered a consequence which, in the ordinary course of things, would flow from the negligence of the gate-keeper" In 1901, however, the courts adopted a more liberal approach in deciding *Dulieu v. White & Sons*, in this case, it was noted that shock must be such as "arises from reasonable fear of immediate personal injury to oneself". This case brought into picture what is called impact theory. According to which the plaintiff would be allowed to recover for psychiatric illness provided that this was caused by reasonable fear of being physically injured by the defendants negligence. Impact theory was followed for about 20 years until the decision of *Hambrook v. Stokes Bros*. In order to extend the law, *Banks LJ* was careful to point out that the ratio of the decision was to be confined to situations where the plaintiff suffered psychiatric illness because of fear for the safety of her children. The decision was not intended to overturn previous authority to the effect that a plaintiff could not recover in respect of psychiatric illness caused by witnessing physical injury to a person with whom the plaintiff had no relationship of love and affection. Nearly twenty years later, in *Bourhill v. Young*, the question of psychiatric illness liability came before the House of Lords for the first time. It will be recalled that it concerned a pregnant woman who, while descending from the tram, heard a road accident occur some distance away. She later attended the scene of accident, saw blood on the road, and subsequently suffered a miscarriage produced by shock. The House of Lords held, in effect, that the woman was not a —foreseeable claimant. In other words, she could not base her action on a wrong done to someone else. Thereafter in 1982 the landmark case of *McLoughlin v. O'Brian* came. In this, the plaintiff was not present in close proximity of the accident but sustained nervous shock when she was told about the accident. In holding the defendants liable the House of Lords extended the law to cover a situation where the plaintiff had not seen or heard the accident itself but had come upon its immediate aftermath. Lord Wilberforce identified three factors that would need to be identified in every case:

the class of persons whose claims should be recognized;
the proximity of such persons to accident; and

the means by which psychiatric illness was caused. These three control mechanisms suggested by Lord Wilberforce were subsequently reformulated and applied by a unanimous house of Lords.

In another case that followed, the decision of the house of Lords was somewhat confusing. Although, it brought about a distinction between Primary victims and Secondary victims. Primary And Secondary Victims- A primary victim is a victim who is directly involved in an accident and suffers injuries as a result of the fault of a tortfeasor. A secondary victim is one who suffers nervous shock without himself/herself being directly exposed to any physical danger in the accident to the primary victim. The position of primary victim is governed by the decision in *Page v Smith* wherein a claimant may recover for psychiatric harm even though the threatened physical harm does not materialize. Lord Lloyd reasoned that if a plaintiff could recover for psychiatric illness in a case where he/she had actually suffered physical harm, it should follow that where the plaintiff had, by good luck, escaped reasonably foreseeable physical harm, he should not be deprived of compensation by the existence of this purely fortuitous fact. In essence, what this case laid down was, where there is a danger of physical injury, the law should consider both the physical as well as the psychological injury as one and the same. This case is silent where the victim is the secondary victim. The position with regard to secondary victims is governed by the decision in *Alcock v Chief Constable of South Yorkshire*. The House of Lords laid down three control mechanisms that need to be considered in the case of secondary victims, before the defendant can be held liable for damages. Secondary victims of psychiatric illness had to show not only that their injuries were reasonably foreseeable; but also had to satisfy the following three tests:

- Proximity of relationship with the immediate victim.
- Proximity in time and space to the events causing the psychiatric illness.
- The means by which the psychiatric illness is caused.

Second and third control mechanisms are sometimes also called proximity of perception. The limits of the decision in *Alcock* were explored in the case of *White v Chief Constable of South Yorkshire Police*. It is a 1998 case in English tort law in which police officers who were present in the aftermath of the Hillsborough disaster sued for post traumatic stress disorder. The officers present at the stadium were entitled to succeed without needing to meet *Alcock* criteria as special rules applied where a psychiatric illness claimant was a “rescuer” or an employee and the officers in question were both. Until relatively recently, the tort of negligence relating to claims for psychiatric injury was very uncertain. However, in recent times, this area of law has become slightly more certain with the laying down of various guidelines and criteria governing whether an individual can recover damages as a result of witnessing an event which causes them some form of psychiatric injury.

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Malicious Prosecution under Law of Tort

INTRODUCTION

Proceedings instituted maliciously may include not only malicious prosecution and malicious arrest but also malicious bankruptcy and liquidation proceeding (civil proceedings), malicious execution of process against property, and malicious search.[1] Malicious prosecution is the malicious intention of unsuccessful criminal or bankruptcy or liquidation proceedings against another without reasonable or probable cause.[2] Generally, it can be said that the malicious prosecution is defined as a judicial proceeding instituted by one person against another, from wrongful or improper motive, without any reasonable and probable cause to justify it.[3]

In the case of West Bengal State Electricity Board v. Dilip Kumar Ray,[4]the Court defined the term “malicious prosecution” in the following words:-

“A judicial proceeding instituted by one person against another, from wrongful or improper motive and without probable cause to sustain it is a malicious prosecution.”

The Court in the same case laid down the distinction between “an action for malicious prosecution” and “an action for abuse of process” in the following words:-

“A malicious prosecution consists in maliciously causing process to be issued, whereas an abuse of process is the employment of legal process for some purpose other than that which it was intended by the law to affect the improper use of a regularly issued process.”

ESSENTIAL ELEMENTS OF MALICIOUS PROSECUTION

Following are the essential elements which the plaintiff is required to prove in a suit for damages for malicious prosecution:-

- Prosecution by the defendant.
- Absence of reasonable and probable cause.
- Defendant acted maliciously.
- Termination of proceedings in the favour of the plaintiff.
- Plaintiff suffered damage as a result of the prosecution.
- Prosecution by the defendant

The first essential element which the plaintiff is required to prove in a suit for damages for malicious prosecution is that he (plaintiff) was prosecuted by the defendant.[5] The word “prosecution” carries a wider sense than a trial and includes criminal proceedings by way of appeal, or revision.[6] In the case of Musa Yakum v. Manilal,[7] it was held that it is no excuse for the defendant that he instituted the prosecution under the order of a Court, if the Court was moved by the defendant’s false evidence to give the order.

In the case of Khagendra Nath v. Jacob Chandra,[8]the Court held that merely bringing the matter before the executive authority did not amount to prosecution and, therefore, the action for malicious prosecution could not be maintained.

It is significant to note that departmental enquiry by disciplinary authority cannot be called prosecution.[9]

Absence of reasonable and probable cause

In a suit for damages for malicious prosecution, the plaintiff has also required to prove that the defendant prosecuted him without reasonable and probable cause. The question relating to want of reasonable and probable cause in a suit for malicious prosecution should be decided on all facts before the Court.[10] In the case of Antarajami Sharma v. Padma Bewa,[11]it has been said that law is settled that in a case of damages for malicious prosecution, onus of proof of absence of reasonable and probable clause rests on the plaintiff.

The existence of reasonable and probable cause is of no avail if the prosecutor prosecuted in ignorance of it. The dismissal of a prosecution or acquittal of the accused does not create any presumption of the absence of reasonable and probable cause. If a man prefers an indictment containing several charges, whereof for some there is, and for others there is not, probable cause, his liability for malicious prosecution is complete.[12]

Defendant acted maliciously:-

In a suit for damages for malicious prosecution, it is another essential element which the plaintiff is required to prove that the defendant acted maliciously in prosecuting him and not with a mere intention of carrying the law into effect. Malice need not be a feeling of enmity, spite or ill will or spirit of vengeance

but it can be any improper purpose which motivates the prosecutor, such as to gain a private collateral advantage.

In the case of *Bank of India v. Lekshmi Das*, [13] the Court reiterated the Indian position that in malice absence of a probable and reasonable cause must be proved. The proceedings complained of by the plaintiff must be initiated in a malicious spirit that is from an indirect and improper motive and not in furtherance of justice. [14] Malice may be inferred upon proof of absence of honest belief in the accusation and consequent want of reasonable and probable cause for instituting the prosecution complained of. [15]

It is not necessary that the defendant should be acting maliciously right from the moment the prosecution was launched. If the prosecutor is innocent in the beginning but becomes malicious subsequently, an action for malicious prosecution can lie. If during the pendency of criminal prosecution, the defendant gets positive knowledge of the innocence of the accused, from that moment onwards the continuance of the prosecution is malicious. [16]

Termination of proceedings in the favour of the plaintiff:-

In a suit for damages for malicious prosecution, it is essential to show that the proceedings complained of terminated in favour of the plaintiff. Termination in favour of the plaintiff does not mean judicial determination of his innocence; it means absence of judicial determination of his guilt. [17] Malice need not be a feeling of enmity, spite or ill will or spirit of vengeance but it can be any improper purpose which motivates the prosecutor, such as to gain a private collateral advantage.

No action can be brought when the prosecution or the proceedings are still pending. It is a rule of law that no one shall be allowed to allege of a still pending suit that it is unjust. [18]

Plaintiff suffered damage as a result of the prosecution:-

In a suit for damages for malicious prosecution, it is another essential element which the plaintiff is required to prove that The plaintiff suffered damage as a result of the prosecution. In a claim for prosecution, the plaintiff can thus claim damages on the following three counts [19]:-

- Damage to the plaintiff's reputation,
- Damage to the plaintiff's person,
- Damage to the plaintiff's property.

MALICIOUS CIVIL PROCEEDINGS

In the case of *Darbhangi Thakur v. Mahabir Prasad*, [20] it was held that unlike malicious criminal prosecution, no action can be brought, as a general rule, in the case of civil proceedings even though the same are malicious and have been brought without any reasonable cause.

In the case of *Genu Ganapati v. Bhalchand Jivraj*, [21] it was held that following are the essentials to establish malicious abuse of civil proceedings:-

Malice must be proved.

The plaintiff must allege and prove that the defendant acted without reasonable and probable cause and the entire proceedings against him have either terminated in his favour or the process complained of has been superseded or discharged.

The plaintiff must also prove that such civil proceedings have interfered with his liberty or property or that such civil proceedings have affected or likely to affect his reputation.

CONCLUSION

It can be said that the malicious proceedings are that proceedings which are initiated with malicious intent. The elements (i.e. prosecution by the defendant, absence of reasonable and probable cause, defendant acted maliciously, termination of proceedings in the favour of the plaintiff and plaintiff suffered damage as a result of the prosecution) which are necessary to the plaintiff to prove in a suit for damages for malicious prosecution must be fulfilled. However, on the basis the facts and circumstances, the Court should decide whether the suit is filed maliciously or not.

MODULE 3:

Principles of Liability in Torts and Legal Remedies

3.1 Vicarious Liability: Basis, scope, Justification, Different types.

3.2 Principle of Strict Liability: Ryland V. Fletcher case with exceptions.

3.3 Principle of Absolute Liability: Bhopal Gas Disaster case and Shree Ram Food Oleum Gas Leakage case and orientation to Public liability Insurance Act, 199.

3.4 Judicial and Extra Judicial Remedies.

3.1 Vicarious Liability: Basis, scope, Justification, Different types.

Generally, it is said that a person is held liable only when he performs any wrongful act. But what if a person through someone else does any wrong act by compelling him to do it, in this case, he will not be held liable as he didn't perform any wrong act himself. So just by following basic law, only the working class will always be held liable so to give proper justice the doctrine of vicarious liability is followed.

Under English law, the classic common law rule states that employers are vicariously liable for the torts of their employees that are committed during the scope of their employment. [1] That for A's wrongful act B is also held liable when certain conditions are fulfilled like master-servant relationship and if that act is done during his work or it is related to it and the master had complete control over the servant or employee.

The principle of vicarious liability in present times derives its support from the idea that parties involved with others to promote economic interests must be liable for damages suffered by third parties in the course of their employment. However, this is a subject that has received unexpectedly very less theoretical attention, although it contradicts the fundamental rule of tort law that one must be held liable just for injustices committed against others by him. And because of this contradictory nature, it has been debated several times whether the principle of vicarious liability is correct, and we anticipate this study as to whether this principle is justified or not.

Objective

what does vicarious liability mean and its scope.

does vicarious liability is justifiable and important case law of vicarious liability.

Vicarious Liability And Its Scope

The idea of vicarious liability for torts can be traced from Roman law also, where the superior was responsible for the misconduct of his subordinates. Like in the family, the head of the family was responsible for the wrongful acts of his children or his servants.

In the words of Lord Chelmsford:

It has long been established by law that a master is liable to third persons for any injury or damage done through the negligence or un-skillfulness of a servant acting in his master's employ. The reason for this is, that every act which is done by a servant in the course of his duty is regarded as done by his master's orders, and consequently is the same as if it were the master's act, according to the maxim, Qui facit per alium facit per se.[2]

Essentials of vicarious liability:

The perpetrator must be an employee (not an independent contractor) and have a specific relationship

The illegal activity must have been committed in the course of employment.

The employee must have committed an illegal act, which must be related to an employment relationship.[3]

Some common examples of vicarious liability

Liability of the Government or concerned Authorities,

Liability of partners for each other's tort,

Liability of the master for the tort of his servant,
Liability of the principal for the tort of his agent.[4]

Scope of vicarious liability

It is not like every time employer is liable for vicarious liability even when he has appointed any worker for 1 day. When defining relationships that give rise to Vicarious liability, the main thing is usually the power and controls that the employer has over the employee, irrespective of, for whatever time he is appointed for.

Sir William Blackstone, in his Commentaries on the Laws of England (1765-1769), noted that the master is answerable for the act of his servant, if done by his command, either expressly given, or implied. [5] If employees work beyond the scope of the employment or the employer has no control over them then he can't be held liable.

For example:

Independent contractor

Independent contractors are self-employed people hired to perform work or services as non-employees. Employers can only decide what work they want to be done, but they have no control over how the work is done. Therefore, he has no control over it and the employer is not liable for subrogation in the event of an illegal act.

Illegal acts

If any employee does any illegal work outside his employment contract which is not required by him to do or he is not authorized to do then the employer will not be held liable for it.

So, now it is understandable that vicarious liability does not arise in every employment contract the above essential conditions should be fulfilled. And even if an employee is employed for some hours and the employer has control over him then also any wrongful act will lead to vicarious liability of the employer. But the crux is that if any employer has Control over any person and he does any wrongful act then he will be held liable.

Justification of vicarious liability

If we see the doctrine of vicarious liability from outside, we would think that it is a very unjust and discriminatory law. But if we would study the idea behind this doctrine, we will get to know that it is a very good law and at the same time also prevents various unlawful acts and exploitation of employees.

The main justification for use of vicarious liability is:

Negligent Entrustment and Control of Employee Actions

There are many modern justifications for vicarious liability. The court of acceptance relies on the fact that the employer benefits from the work of his employee, so in the same manner, he also has a liability for the misconduct of his employees. In addition, it is also fair to impose liability on the employer because the employer also has ultimate authority over his employees and he must properly delegate and assign duties to his employees and assure that these duties are assigned according to their capacity and they have the right skills to carry out their duties.

Spreading Risks

According to Lord Millet, vicarious liability is a mechanism of loss distribution. It protects the victim from the great danger created by the tortfeasor's boss. The idea behind this is the danger which is created by the firm itself should be borne by it, the employer can spread this loss to a wider pool that leaves them covered. Therefore, a worker who commits a wrongful act does not bear all the responsibilities that occur while working, and the employer must also be held responsible as the employee was following his orders. In short, these claims have less impact on employers than on employees.

Deep pockets

This is one of the main reasons for also holding employers accountable for misconduct by their employees that is deep pockets. Employers have more money, and it is believed that employers can cover claims that workers cannot afford. And this assumption stems from the deep pocket theory that not only do employers have more money, but they can also distribute these costs to other sources such as customers, shareholders, or increase product prices.

In short, if we see the main purpose and justification of using the doctrine of vicarious liability is:

Distribution of the loss

- Compelling the risk creator to pay
- Compensation to victims
- Restraints to prevent accidents
- Level of violation: whether the employer is liable for negligence
- Intentional or criminal wrongdoing
- Employer's negligence

Like in the case of *Anita Bhandari & Ors. v. Union of India*[6], when the applicant's husband went to the bank when he entered the bank, the bank's cash drawer was also going inside, as a result, due to the obstruction by his vehicle he had a heated exchange of words with the security guard and in this fight, he shot and killed him.

Applicant argued that the bank should be held liable in the case because the bodyguard had done this while on duty, but the bank argued that they did not allow the bodyguard to fire. The court held that giving him a pistol was equivalent to allowing him to fire when he deems necessary, and the bank was liable for the fact that the guard had acted excessively in the performance of his duties and that it was still done in the course of his employment.

Now, if the doctrine of vicarious liability was not used banks would have no responsibility and they would still not stop keeping untrained or inexperienced guards which would lead to more cases like this.

Conclusion and Analysis

Therefore, through this research, it can be seen that although Vicarious liability seems unfair and unethical, it is a very important and good law because it performs the function of distributing losses and victim compensation through solvent defendants. In both cases, the victim will receive a more satisfactory compensation, as it will be provided by the parent organization rather than the individual.

It will also serve as a preventive and deterrent, motivating the employer in the future, as he will select more carefully in choosing who is authorized to act on behalf of others. This will prevent further wrongful incidents and make employers more vigilant.

As we have also seen that how courts have given various judgments depending upon the situation in the case and capacity of the employer as well as employee. What we can infer from all this is that if an employer has started anything like by assigning any work and any damage is caused to someone then the employer is also held liable because he was the one who originally started that thing or put that thing into motion.

And at the same time from the victim's perspective, the doctrine of vicarious liability focuses on maintaining an assurance to the victim as he will get equal justice in the form of proper and adequate compensation as it is borne by a financially competent person or organization and not by a single person.

3.2 Principle of Strict Liability: Ryland V. Fletcher case with exceptions.

Strict Liability

The principle of strict liability evolved in the case of *Rylands v Fletcher*[1]. In the year 1868, the principle of strict liability states that any person who keeps hazardous substances on his premises will be held responsible if such substances escape the premises and causes any damage. Going into the facts of the case, F had a mill on his land, and to power the mill, F built a reservoir on his land. Due to some accident,

the water from the reservoir flooded the coal mines owned by R. Subsequently, R filed a suit against F. The Court held that the defendant built the reservoir at his risk, and in course of it, if any accident happens then the defendant will be liable for the accident and escape of the material.

case-study-of-rylands-v-fletcher-4-728

Going by the principle laid in this case, it can be said that if a person brings on his land and keeps some dangerous thing, and such a thing is likely to cause some damage if it escapes then such person will be answerable for the damage caused. The person from whose property such substance escaped will be held accountable even when he hasn't been negligent in keeping the substance in his premises. The liability is imposed on him not because there is any negligence on his part, but the substance kept on his premises is hazardous and dangerous. Based on this judicial pronouncement, the concept of strict liability came into being. There are some essential conditions which should be fulfilled to categorize a liability under the head of strict liability.

Essentials of Strict Liability

Dangerous Substances: The defendant will be held strictly liable only if a "dangerous" substance escapes from his premises.

For the purpose of imposing strict liability, a dangerous substance can be defined as any substance which will cause some mischief or harm if it escapes. Things like explosives, toxic gasses, electricity, etc. can be termed as dangerous things.

Strict-Liability-What-To-Know-About-It Escape: One more essential condition to make the defendant strictly liable is that the material should escape from the premises and shouldn't be within the reach of the defendant after its escape.

For instance, the defendant has some poisonous plant on his property. Leaves from the plant enter the property of the plaintiff and are eaten by his cattle, who as a result die. The defendant will be liable for the loss. But on the other hand, if the cattle belonging to the plaintiff enter the premises of the defendant and eat the poisonous leaves and die, the defendant would not be liable. In the judicial pronouncement of *Reads v. Lyons & Co.*[2] it was held that if there is no escape, the defendant cannot be held liable.

Non-natural Use: To constitute a strict liability, there should be a non-natural use of the land. In the case of *Rylands v. Fletcher*, the water collected in the reservoir was considered to be a non-natural use of the land. Storage of water for domestic use is considered to be natural use. But storing water for the purpose of energizing a mill was considered non-natural by the Court. When the term "non-natural" is to be considered, it should be kept in mind that there must be some special use which increases the danger to others. Supply of cooking gas through the pipeline, electric wiring in a house, etc. is considered to be the natural use of land. For instance, if the defendant lights up a fire in his fireplace and a spark escapes and causes a fire, the defendant will not be held liable as it was a natural use of the land.

These three conditions need to be satisfied simultaneously to constitute a strict liability.

Exception to the Rule of Strict Liability

There are certain exceptions to the rule of strict liability, which are- **Plaintiff's Fault:** If the plaintiff is at fault and any damage is caused, the defendant wouldn't be held liable, as the plaintiff himself came in contact with the dangerous thing.

In the judicial pronouncement of *Ponting v Noakes*,[3] the plaintiff's horse died after it entered the property of the defendant and ate some poisonous leaves. The Court held that it was a wrongful intrusion, and the defendant was not to be held strictly liable for such loss. [Warning_sign_180](#)

Act of God: The phrase "act of God" can be defined as an event which is beyond the control of any human agency. Such acts happen exclusively due to natural reasons and cannot be prevented even while exercising caution and foresight.[4] The defendant wouldn't be liable for the loss if the dangerous

substance escaped because of some unforeseen and natural event which couldn't have been controlled in any manner.

Act of the Third Party: The rule also doesn't apply when the damage is caused due to the act of a third party. The third party means that the person is neither the servant of the defendant, nor the defendant has any contract with them or control over their work. But where the acts of the third party can be foreseen, the defendant must take due care. Otherwise, he will be held responsible.

For instance, in the case of *Box v Jubb*,^[5] where the reservoir of the defendant overflowed because a third party emptied his drain through the defendant's reservoir, the Court held that the defendant wouldn't be liable.

Consent of the Plaintiff: This exception follows the principle of *volenti non fit injuria*.

For instance, if A and B are neighbors, and they share the same water source which is situated on the land of A, and if the water escapes and causes damage to B, he can't claim damages, as A wouldn't be liable for the damage.

Case Analysis: Rylands v/s Fletcher

In cases of torts, the general rule is that the person who causes damage to other person either intentionally or via his negligence shall pay damages to the affected party. This rule however, if followed strictly leads to many problems. For example, if I bought an explosive material on my house to do some experiment and it explodes without my negligence or knowledge on its own.

Can I Be held liable? Surely not, as there was neither any intention to cause harm nor any negligence is there. Thus, his rule is somewhat absurd. To solve the issues caused by this rule, the House of Lords in *Rylands v/s Fletcher* propounded a new rule called as "Rule of Strict liability" or "No Fault Liability". According to this rule, a person can be held liable even there is no negligence on his part.

Case Name: *Rylands v/s Fletcher* - Citation: UKHL 1, L.R. 3 H.L. 330.

Judges: Lord Cairns and Lord Cranworth - Date of Judgement- July 17, 1868

Facts of the Case

The defendant, Rylands constructed a reservoir over his land for providing water to his mill via independent contractors. There were some old disused shafts under the reservoir which the contractors failed to notice. As a result these shafts remained unblocked. When the water was filled in the reservoir, it burst through the shafts and flooded the plaintiff's coal mines on the neighbouring land. Though there was no negligence on the part of the defendant, Rylands, the plaintiff, Fletcher sued the defendant for damages.

Issues:

Whether there was any nuisance or not?

Was the use of Defendant's land unreasonable and thus was he to be held liable for damages incurred by the Plaintiff?

Judgment

Court of Liverpool

The Court of Liverpool gave its judgment in the favor of defendant holding that there was neither any trespass (as the flooding was not direct and immediate) nor any nuisance (as the flooding was not a continuous event, it is a one off event). Later, in December, 1864, via a Court order an arbitrator was appointed for the case. The arbitrator too decided in favor of the defendant by stating that the defendant had no way of knowing about the mine shafts so he could not be held liable. The arbitrators however, held the contractors liable for their negligence.

Court of Exchequer of Pleas

The case afterwards went to Exchequer of appeals for hearing.

The Court heard this case on two issues:

Whether the defendants were liable for the actions of the contractors

Whether the defendants were liable for the damage regardless of their lack of negligence

The Court unanimously decided that the defendant was not liable for the actions of contractors but have mixed views on the second issue. While Pollock CB J. and Martin B J. held that the defendants were not liable as there was no negligence on part of defendant, Bramwell B. J. held that the defendant was liable as the claimant had the right to enjoy his land free of interference from water and it was the defendant's act (i.e. act of building reservoir) which actually caused flooding of water on claimant's land and thus held the defendant liable for trespass and nuisance.

Court of Exchequer Chamber

Aggrieved by the decision of Court of Exchequer of Pleas, Fletcher appealed to the Exchequer Chamber composed of six judges. The judges overturned the decision of Court of Exchequer of Pleas. It was in this Court where the rule of Strict liability was first time propounded.

Blackburn J. discussed on behalf of all Judges and stated that:

We think that the rule of law is, that the person who for his own purpose brings on his lands and keeps there anything likely to do mischief if it escapes, must keep it in at his peril, and if he does not do so, is prima facie answerable for all the damage which is the natural consequence of its escape. He can excuse himself by showing that the escape was owing to the plaintiff's own default; or perhaps that the escape was the consequence of vis major, or the act of God; but as nothing of this sort exists here, it is unnecessary to inquire what excuse would be sufficient. [i]

Thus, the rule of strict liability was laid: that if a person brought any dangerous thing on his premises and if that thing escapes and cause damage, then the person would be held liable for all the damage it has caused regardless of his negligence, knowledge or intention. The Court however, also provided certain exceptions where this rule won't be applied i.e. Act of God, Plaintiff's own default. But as none of these exceptions are there in Rylands v/s Fletcher case, the Court held Ryland liable for the damage caused to Fletcher.

House of Lords

Aggrieved by the judgment of Court of Exchequer Chamber, Rylands went for appeal in House of Lords. The House of Lords dismissed the appeal but went further to explain the rule of strict liability more garrulously and put some limitations on the rule of strict liability. The Court held that for the applicability of the rule of strict liability, it is necessary that the land from which escape occurs must have been modified in a way which would be considered non natural, unusual or inappropriate[ii]. Thus, "Non natural use of land" was made an essential for the applicability of rule of strict liability.

Current Status of Rule of Strict Liability

Through Rylands v/s Fletcher and many other later cases various developments took place regarding the rule of strict liability. While certain exceptions like Act of third party and Statutory authority were added to the rule, the pivotal conditions for the applicability of the rule were also clarified by Courts. The essentials for the applicability of rule of strict liability can be summarised as follows:

Presence of Dangerous thing:

The first essential requirement for applicability of rule laid down in Ryland V Fletcher is the presence of a dangerous thing. A person can be made liable only if the thing which he had collected or had bought was dangerous. What is dangerous may depend on facts and circumstances of the case. Some of the examples of dangerous things are: poisonous trees, explosives, noxious fumes, rusty wire, etc.

Escape:

Another requirement for the applicability of strict liability rule is the escape of dangerous thing bought by the defendant. "The thing must escape to the area outside the occupation and control of the defendant." If the thing did not escape and damage is still caused, the defendant then can't be held liable. For instance, if you bought an explosive material for doing some experiment in your home. While doing the

experiment, the explosive material suddenly exploded and injured your co worker working with you. Here, you can't be held liable under the rule of strict liability as there is no escape of the thing outside your premises.

Non natural use of land:

The last requirement for the applicability of rule of strict liability is that the dangerous thing was brought in purview of non natural use of land. For the use to be non natural it "must be some special use bringing with it increased danger to others, and must not merely by ordinary use of land or such a use as is proper for the general benefit of the community"[iii] For instance, if you grow a tree on your land, it is natural use of land but if you grow a poisonous tree on your land, it is a non natural use of land as it bring with itself an increased danger to others.

Exceptions

However, in Ryland v/s Fletcher, certain exceptions were also stated in which rule of strict liability cannot be applied. Many other exceptions were also added in later cases.

The exceptions of the rule of strict liability can be summarized as follows:

Plaintiff's own default:

If the damage is caused by plaintiff's own default or wrongdoing then the rule of strict liability can't be applied. For instance, in Ponting V Noakes[iv], the plaintiff's horse itself intruded in defendant's property and ate poisonous leaves. The Court held that as the damage is caused by plaintiff's own fault as he let his horse intrude into the property of defendant (either purposely or via negligence). Had the horse not intruded into the property of plaintiff, the damage would not have been caused. Hence, the court held that in this case the plaintiff didn't have any right to complaint.

Act of God:

The term "Act of God" has been defined by Blackburn J. in Rylands V Fletcher. According to him "Circumstances which no human foresight can provide against, and of which human prudence is not bound to recognize the possibility" are called Act of God. The same can be understood via reference of Nichols V Marsland[v], in which the defendant created artificial lakes on his land. But that year, there happened to be an extraordinary rainfall, highest in human memory, as a result of which embankments of lakes gave away and damaged plaintiff's four bridges. The Court held that the defendant was not guilty as it was an act of god as it was totally unforeseen and had happened because of supernatural forces without any human intervention.

Consent of the Plaintiff:

According to this exception, if the plaintiff has consented to the accumulation of dangerous thing on the defendant's land, then the plaintiff does not have any right of complaint and the rule of strict liability could not be applied. It is similar to the rule of volenti non fit injuria. The consent of the plaintiff can be express or implied. The consent is express, when the plaintiff assertively gives his consent. For example, A and B lives in the same house.

A wants plant a poisonous tree in the house for research purpose and ask B if he is OK with that. B agrees. Here, the consent given is express. On the other hand consent can also be implied. Strictly talking of strict liability, consent is implied when the source of danger is for the 'common benefit' of both plaintiff and defendant. For instance, in Carstairs V Taylor[vi], the plaintiff hired ground floor of defendant's house on rent.

There happened to be a water tank on the roof for supply of water. One day, the water from the tank leaked and damaged plaintiff's goods. It was held that the defendant's can't be held liable as plaintiff impliedly had consented to the accumulation of dangerous thing (as the thing was installed for the common benefit of both plaintiff and defendant).

Act of third party:

If the damages has been caused by the act of a third party or stranger over whom defendant has no control, then rule of strict liability can't be applied. For instance, in Box V Jubb[vii], some strangers blocked the drain of defendant's reservoir as a result of which the reservoir overflowed and damaged plaintiff's property. The Court held that the defendant could not be held liable as the damage has been caused by the act of stranger.

It must be noted that if the act of stranger can be foreseen and prevented by the defendant, then the defendant has a duty to stop it. Failure on part of defendant to do so would make him liable.

Statutory Authority:

If the damage has been caused by an act which the legislature authorizes then; the rule of strict liability can't be applied. For example. If a railway line is constructed by a Statute and some damage is caused by it, then the person can't use the rule of strict liability. In *Green V Chelsea Waterworks Co*[viii], the defendant company had a statutory duty to maintain continuous supply of water. A main belonging to the Company burst without any negligence on its part, as a consequence of which the plaintiff's premises were flooded with water. It was held that the company was not liable as the company was engaged in performing a statutory duty.

Important Cases cited

Cases in favour of defendant

Smith v/s Kenrick [ix]:

In this case, the plaintiff and defendant used to mine on the adjacent land. The defendant dug holes in the ordinary course of mining as a result of which, the water flowed from the defendant's mine into the plaintiff's mine by gravitation and caused damage. It was held that the defendant was not liable as "each owner had a right to work in his own mine in the best way for his benefit and if he did so without negligence, he was not liable to other for prejudice to his property which might thereby arise.

***Chadwick v/s Trover* [x]:**

In this case, a man pulled down his own wall without giving notice to his neighbour(as he was not legally bound to do so) and thereby caused damage to the latter's underground wall of which the defendant had no knowledge. It was held that the man was not liable as there was no knowledge present on his part that by doing so he would cause damage to other party.

***Partridge v/s Seott* [xi]:**

In this case, the defendant employed some competent persons to perform a lawful act. But some damage to plaintiff due to the negligence of the employed ones. It was held that the people who actually had done the work alone were liable.

Cases in Favour of the Plaintiff:

***Smith V Kenrick* [xii]:**

It was held that though if no negligence is there on the part of defendant in causing damage to the property but if the injury was occasioned by something which was not ordinary or natural use of the land then, the defendant shall be held liable for the damages.

***Baird V Williamson* [xiii]:**

In this case the parties were neighbours and used to work on adjacent mines. The defendant raised his mine's water to a higher level via pumping, as a result of which the water flooded into the plaintiff's mine and caused severe damage. It was held that though the defendant was not negligent in performance of the Act, he was liable as it was in consequence of his act whether skilfully or unskilfully performed, that the damage has been caused.

***Hodgkinson V Ennor* [xiv]:**

In this case, the defendant had polluted a stream by works on his own land which though were not illegal, were not the natural mode of working of the property and produced a mischief to his neighbour. The Court held that the defendant was liable and placed reliance on the maxim "*Sic utere tuo ut alium non laedas*" i.e. one must use his property so as not to injure the lawful rights of another. The property owner may put his land to any use as long as he does not deprive the adjoining land owner of any right of enjoyment of his property. If he infringes any legal right of the latter then the former shall take responsibility for it.

Lambert V Bessey [xv]:

In this case the ratio which the court developed was that "if a man doeth a lawful act, yet if injury to another ariseth from it, the man who does the act shall be answerable".

Conclusion

The landmark judgment of Rylands V Fletcher played a vital role in law of torts. The rule of strict liability propounded in this case has been instrumental in solving many disputes where the damage is caused without any negligence on part of defendant. In this fast changing world where industrialization and technological advancements are taking place rapidly, it is necessary that the owner who makes use of dangerous things shall be made onerous to bear the responsibility of every damage which that thing may cause.

3.3 Principle of Absolute Liability: Bhopal Gas Disaster case and Shree Ram Food Oleum Gas Leakage case and orientation to Public liability Insurance Act, 1991

Absolute Liability

The rule of absolute liability, in simple words, can be defined as the rule of strict liability minus the exceptions. In India, the rule of absolute liability evolved in the case of MC Mehta v Union of India.[6] This is one of the most landmark judgment which relates to the concept of absolute liability.

The facts of the case are that some oleum gas leaked in a particular area in Delhi from industry. Due to the leakage, many people were affected. The Apex Court then evolved the rule of absolute liability on the rule of strict liability and stated that the defendant would be liable for the damage caused without considering the exceptions to the strict liability rule.

According to the rule of absolute liability, if any person is engaged in an inherently dangerous or hazardous activity, and if any harm is caused to any person due to any accident which occurred during carrying out such inherently dangerous and hazardous activity, then the person who is carrying out such activity will be held absolutely liable. The exception to the strict liability rule also wouldn't be considered. The rule laid down in the case of MC Mehta v UOI was also followed by the Supreme Court while deciding the case of Bhopal Gas Tragedy case. To ensure that victims of such accidents get quick relief through insurance, the Indian Legislature passed the Public Liability Insurance Act in the year 1991.

The Public Liability Insurance Act, 1991[7]

This act was introduced with the aim of providing immediate relief to people who are victims of accidents in which handling of hazardous substances is involved. The main focus of the Act is to create a public liability insurance fund which can be used to compensate the victims.

Juridical concept with hammer and judge, selective focus on metal part,

The Act states that any person who is carrying out inherently dangerous or hazardous activities should have insurances and policies in place where he will be insured against liability to provide compensation to the victims in case any accident takes place, and some injury occurs. This liability is based on the principle of "no fault liability" or in other words, the rule of strict liability and absolute liability. Inherently dangerous or hazardous substance covers under its scope any mixture, preparation or substance which because of its properties can cause serious harm to human beings, animals, plants, property or the environment. If any substance is inherently dangerous or hazardous due to its handling also, then also the absolute liability of the defendant arises.

Concluding Remarks

The rule of strict liability and absolute liability can be seen as exceptions. A person is made liable only when he is at fault. But the principle governing these two rules is that a person can be made liable even without his fault. This is known as the principle of "no fault liability." Under these rules, the liable person may not have done the act, but he'll still be responsible for the damage caused due to the acts. In the case of strict liability, there are some exceptions where the defendant wouldn't be made liable. But in the case of absolute liability, no exceptions are provided to the defendant. The defendant will be made liable under the strict liability rule no matter what.

Bhopal Gas Disaster case and Shree Ram Food Oleum Gas Leak case and orientation to Public liability Insurance Act, 1991

The Oleum Gas Leak incident being similar in nature brought back the horrors of the Bhopal gas disaster, as a large number of people including both working people and the public were affected only after one year of the Bhopal gas tragedy and was closely monitored as an example as to how the courts should deal with companies accountable for environmental disasters. The complicated legal proceedings around the Bhopal Gas Tragedy is sadly an example of what should not be done in this situation.

Oleum gas from Shriram Foods and Fertilizers which was a fertilizer plant leaked causing harm to numerous people. The Ryland v. Fletcher rule was applied in this case. J. Bhagwati stated that the above rule has been 100 years old and is not enough to decide cases such as these, as science has improved a lot in these years, which is why the Supreme Court went a little further and implemented the absolute liability rule.

Background facts

In the centre of a population of 200,000 people in the area of Kirti Nagar, Shriram's Food and Fertiliser factory, Delhi was situated, which produced products like hard technical oil and glycerin soaps. M.C. Mehta, a social activist lawyer, submitted before the Supreme Court a writ petition seeking an order for closure and relocation of the Shriram Caustic Chlorine and Sulphuric Acid Plant to an area where no real danger to the people's health and security will exist. Pending disposal of the petition, the Supreme Court allowed the plant to restart its capacity and work. On 4 and 6 December 1985, Oleum gas leaked from one of its units during the pending lawsuit, causing substantial harm to local residents as a result of the plant's gas leakage.

As stated by the petitioner, a lawyer who practised in the Tis Hazari Courts also died as a result of oleum gas inhalation. As a result of the collapse of the structure on which it was built, the leakage resulted from the bursting of the tank containing oleum gas, and it generated fear among the citizens residing there. The people had hardly recovered from the shock of this tragedy when, within two days, another leakage occurred, though this time a minor one, due to the escape of oleum gas from a pipe's joints, after which the claims for compensation were filed, for the people who had suffered damage as a result of Oleum Gas escape, by the Delhi Legal Aid & Advice Board and the Delhi Bar Association.

The Delhi administrations immediate response to these two leaks was to issue an order dated 6th December 1985 by the Delhi Magistrate, in accordance to sub-section(1) of Section 133 of the Code of Criminal Procedure, ordering and requiring Shriram to cease the occupation of manufacturing and processing of dangerous and lethal chemicals and gasses, including chlorine, Oleum, Super Chlorine, phosphate, etc. at their facility in Delhi and to remove such chemicals and gasses from the facility within 7 days and to refrain from storing them in the same place again or to appear in the District Magistrate Court on 17 December 1985, to show cause as to why this order should not be enforced.

The Supreme Court held that the case should be referred to a larger bench because the questions raised involve substantial law issues relating to the interpretation of Articles 21 and 32 of the Constitution. In order to assess whether a writ in conjunction with compensation could be awarded, the court had to interpret Article 32. In relation to the private companies Article 21, which establishes the right to protect life and freedom, was also to be interpreted as being essential in the public interest.

Issues

The oleum gas leak case led to various issues to come into the light, which was:

Whether these harmful industries should be permitted to operate in these areas?

Whether a regulating mechanism should be established if they are permitted to function in such areas?

How should the liability and amount of compensation be determined in such cases?

How does Article 32 of the Constitution extend in these cases?

Whether the rule of Absolute Liability or Ryland v Fletcher is to be followed?

Whether 'Shriram' could be considered to be a 'State' within the ambit of Article 12?

Judgment

Showing extreme concerns for the safety of the people of Delhi from the leakage of hazardous chemicals, J. Bhagwati stated the proposal to eliminate toxic and hazardous factories could not be followed because they still contribute to improving the quality of life. Industries must, therefore, be established even if they are harmful as they are necessary to economic and social development. He was of the view that the risk or danger factor towards the public can only be hoped to be reduced by taking all the measures required to position these industries in an environment where the public is least vulnerable and the safety requirements are maximized in such industries. It was also noted that permanent factory closure would result in the unemployment of 4,000 workers in the caustic soda factory and which would add to the social poverty problem. Consequently, the court ordered that the factory be opened temporarily under 11 conditions and appointed a committee of experts to control the activity of the industry.

The main provisions set up by the government were:

The Central Pollution Control Board appoints an inspector to check that emissions levels are in compliance with the Water (Prevention and Control of Pollution) Act, 1974 and the Air (prevention and control of pollution) Act, 1981.

- To create a safety committee for employees.
- Industry to publicize about the consequences and the proper treatment of chlorine.
- To train and instruct the employees regarding the safety of the plant through audio-visual services and to install loudspeakers to alert neighbours in case of gas leakage.
- Staff to use protective equipment, such as helmets and belts.

That the employees of Shriram furnish the undertaking of the Chairman of Delhi Cloth Mills Limited that they will be “personally liable” for paying compensation for any death or injury in the event of gas escape resulting in death or injury to staff or people living in the vicinity.

Through these conditions have been formulated with respect to the report of the (Manmohan Singh Committee and Nilay Choudhary Committee) to ensure that there is continued compliance with safety standards and procedures so that the potential hazard and risk of workers can be reduced to minimal. In addition, companies can not abandon liability by demonstrating that they are either not reckless about or have taken all the required and appropriate measures to deal with the hazardous material. Therefore, in this case, the court applied the principle of absolute liability.

The court noted that, in addition to issuing guidance, new approaches and methods designed to enforce fundamental rights could be developed under Article 32 and the Supreme Court. In the event of a threat to fundamental rights, the power under Article 32 is not limited to only preventive actions, but it also applies to remedial acts where rights are already being violated as observed in the case of *Bandhua Mukti Morcha v. Union of India*. Furthermore, in cases where a fundamental right violation is gross and affects large-scale people or people who are disadvantaged and backward, the court has held that it has the power to offer remedial relief.

The court also went through the Industrial Policy Resolution 1956 and on the basis of the role the state should play in each of them the industries were divided into three groups. The first was the responsibility of the State alone. The second group was those industries that would eventually be State-owned in which the State would then typically take the initiative of setting up new enterprises but it will also be required that the private companies would complement the State’s efforts by supporting and establishing enterprises by themselves or involving the state for its help. The third group would cover all other sectors and would usually be left to the private sector initiative and companies.

If a review of the declarations contained in the Policy Resolutions and the Act is carried out, it is found that the activity of producing chemical products and fertilizers is considered, to be a vitally important part of the public sector, the activities involving the public trade must ultimately be conducted by the State itself, within the interim term with state support and under State control and the private enterprises may also be allowed to support the state effort. Although the question of whether a private corporation fell within the ambit of Article 12 of the Constitution of India was not finally decided by the court, it stressed the need to do so in the future.

The court held that all exceptions to the rule set out in *Rylands v. Fletcher* are not applicable to hazardous industries. The Court adopted the principle of absolute responsibility. The exception available for this case was the act of a third party or natural calamity but the court interpreted that as the leakage was caused due to human and mechanical errors the possibility of an act of third party and natural calamity is out of scope and hence the principle of absolute liability is applicable here. An industry that engages in hazardous activities that pose a potential danger to the health and safety of those who work and live nearby is obliged to ensure that there is no harm to anybody. This industry must perform its operations with the highest safety requirements, and the industry must be completely responsible to compensate for any harm caused by them, as a part of the social cost for carrying such hazardous activities on its premises.

Reforms brought aftermath

The Gas Leak case in *Shriram* was a very important case in environmental advocacy, as it dealt with *Shri Ram Food and Fertilizers*, one of India's largest and richest manufacturing establishments against the Supreme Court, the representative of the people. The Supreme Court considered strict liability insufficient to protect citizens' rights in a developed economy such as India thereby substituting it with the 'absolute liability principle'. It set the Indian Supreme Court to be the protector of the environment and under Article 21, not only of the fundamental right to life but also of a pollution-free and safe life. There were many significant points of this case worth noticing. The court also performed the function of an extra-parliamentary body by insisting that the concept of absolute liability be used and thus set a precedent for future cases to come.

The reforms brought by this case can be seen from the latest case of the Vizag Gas Leak Case where LG Polymers would be held responsible and there is no requirement to show that the leak was caused by negligence. The mere fact that the leak happened from their plant is enough. Till the *Oleum Gas Leak* case, India also followed the concept of "Strict Liability" under which the company owner/ operator would be held responsible for any non-natural acts on his property irrespective of their negligence or misconduct, but then this concept had to be substituted with Absolute Liability as principles under Strict Liability have defences and limited exceptions inclusive of the defence of the 'Act of God'. It is also necessary to remember that, in keeping with subsequent rulings of the Supreme Court in this matter, the death toll would not be applicable to the determination of liability. Any damage caused by the gas, from death to disease to hospital cost must be covered.

Conclusion

The decision had to be made in such a manner so as not to hinder the economic development of the country and also to ensure justice for the victims. Only a few months before the Environment (Protection) Act, 1986 came into force did this incident become a guiding force for the implementation of such an effective law. The case set a precedent for all the industries to establish more stringent safety measures. The gas leak case of *Shriram* was also noteworthy because it was the first time that a company had been held exclusively responsible for an incident and had to pay compensation irrespective of its claims in defence. The reasons for the decision have also been found not only on a legal basis but also on a scientific basis, which is why a special judicial function has been undertaken by the Supreme Court. The decision was made also in view of the importance of industrialization and the fact that it may eventually result in accidents. The decision was also determined considering the terms of the need for industrialization and the inevitable possibility and the impact of injuries. In general, it was a rational decision, taking all social, economic, and legal factors into account, which made the Supreme Court a defender of the environment and public rights.

3.4 Judicial and Extra Judicial Remedies.

Legal Remedies in Tort

Let us start this topic by understanding what 'remedy' actually means in Law. A party is said to be 'aggrieved' when something that they may have been enjoying has been taken away from them by another

party. This is an infringement of a party's rights and it is treatable by law. Similarly, a legal remedy is one such treatment. Let us learn remedies in tort in detail.

Introduction

When the aggrieved person is taken back to the position that they were enjoying before their rights were infringed, they are said to have been provided with a legal remedy. There are various types of legal remedies.

For instance, if something that belongs to you has been taken away from you by a party, the court can either ask them to pay you back in money, or ask them to return your belongings as they were, and may also punish the party in some cases.

Remedies in Tort Law are of 2 types

Judicial Remedies: These are the remedies that the courts of law provide to an aggrieved party.

Extra-Judicial Remedies: If the injured party takes the law in their own hand (albeit lawfully), the remedies are called extra-judicial remedies.

Judicial remedies in tort are of three main types

Damages: Damages or a legal damage is the amount of money paid to the aggrieved party to bring them back to the position in which they were before the tort had occurred. They are paid to a plaintiff to help them recover the loss they have suffered. Damages are the primary remedy in a cause of action for torts. The word "damages" should not be confused with the plural of the word "damage" which means 'harm' or 'injury'.

Injunction: Injunction is an equitable remedy available in torts, granted at the discretion of the court. An equitable remedy is one in which the court, instead of compensating the aggrieved party, asks the other party to perform his part of the promises. So, when a court asks a person to not continue to do something, or to do something positive so as to recover the damage of the aggrieved party, the court is granting an injunction.

Specific Restitution of Property: the third judicial remedy available in the Law of Torts is that of Specific Restitution of Property. Restitution means the restoration of goods back to the owner of the goods. When a person is wrongfully dispossessed of his property or goods, he is entitled to the restoration of his property.

Extra-judicial Remedies in Tort

These are of five main types:

Expulsion of trespasser: A person can use a reasonable amount of force to expel a trespasser from his property.

Re-entry on land: In this case, the owner of a property can remove the trespasser and re-enter his property by using a reasonable amount of force.

Re-capture of goods: In this case, the owner of goods is entitled to recapture his/her goods from any person whose unlawful possession they are in.

Abatement: In case of a nuisance, be it private or public, a person (the injured party) can remove the object causing nuisance.

Distress Damage Feasant: Lastly, distress damage feasant. In this case, a person's cattle/other beasts move to another's property and his crops are spoiled. The owner of the property is entitled to take possession of the beasts until he is compensated for the loss suffered by him.

MODULE 4:

Concept of Consumer & Consumer Protection Act 2019

4.1 Consumer: Definition; Defect in goods.

4.2 Services: Types of services, Deficiency-meaning, Denial of Services, Commercial & Professional Services, Medical Services.

4.3 Consumer Protection Councils.

4.4 Consumer Disputes Redressal Agencies: District Commission, State Commission & National Commission, Judicial Review.

4.5 Motor Vehicles Act, 1988- Motor Accidents Claims- Claims Tribunals.

4.6 Liability without fault and third-party risks under Motor Vehicles Act, 1988.

4.1 Consumer: Definition; Defect in goods.

Introduction

We are all consumers in some way or the other. According to oxford dictionary, a consumer is a buyer of goods or services. The expression 'consumer' in the general sense, means 'all of us can be called 'consumers', when we buy any movable or immovable item. Property or rental services for various purposes.' But in the current socio-economic scenario, we find that the consumer is the victim of many unfair and unethical practices adopted in the market.

Who is a Consumer?

Meaning of Consumer: – A consumer is a person or a group who intends to order, orders, or uses purchased goods, products, or services primarily for personal, social, family, household and similar needs, not directly related to entrepreneurial or business activities. Section 2(d) of the Consumer Protection Act says that consumer means any person who: –

buys any goods for a consideration which has been paid or promised or partly paid and partly promised, or under any system of deferred payment, and includes any user of such goods other than the person who buys such goods for consideration paid or promised or partly paid or partly promised, or under any system of deferred payment when such use is made with the approval of such person, but does not include a person who obtains such goods for resale or for any commercial purpose; or hires or avails of any services for a consideration which has been paid or promised or partly paid and partly promised, or under any system of deferred payment, and includes any beneficiary of such services other than the person who hires or avails of the services for consideration paid or promised, or partly paid and partly promised, or under any system of deferred payment, when such services are availed of with the approval of the first mentioned person.

What is the Consumer Protection Act?

The Consumer Protection Act, implemented in 1986, gives easy and fast compensation to consumer grievances. It safeguards and encourages consumers to speak against insufficiency and flaws in goods and services. If traders and manufacturers practice any illegal trade, this act protects their rights as a consumer. The primary motivation of this forum is to bestow aid to both the parties and eliminate lengthy lawsuits.

This Protection Act covers all goods and services of all public, private, or cooperative sectors, except those exempted by the central government. The act provides a platform for a consumer where they can file their complaint, and the forum takes action against the concerned supplier and compensation is granted to the consumer for the hassle he/she has encountered.

What are Consumer Goods?

Meaning of Consumer Goods: – Consumer goods are goods sold to consumers for use at home or school, or for entertainment or personal use. There are three main types of consumer goods: – durables, non-durables, and services. Consumer goods are products bought for consumption by the average consumer. Alternatively called final goods, consumer goods are the end result of production and manufacturing and

are what a consumer will see stocked on the store shelf. Clothing, food, and jewelry are all examples of consumer goods.

Durables are consumer goods that have a long-life span (i.e., more than three years) and are used over time. Examples include bicycles and refrigerators. Non-durables are consumed in less than three years and have a short life span. Examples of non-durable goods include food and drink. Services include auto repair and haircuts. Consumer goods are also called final goods or final products, as they are the final output of a productive process that occurs over time.

Exception: – A person is not a consumer if he purchases goods for commercial or resale purposes. However, the term “commercial” does not include the use of goods purchased and used by the consumer, exclusively for the purpose of earning his livelihood through self-employment.

What are Consumer Services?

Meaning of Consumer Services: – Customer Service is the interaction between the buyer of a product and the company that sells it. Consumer Services are the intangible economic product that is provided by a person on the other person’s demand. It is an activity carried out for someone else. Most retailers see this direct interaction as a critical factor in ensuring buyer satisfaction and encouraging repeat business.

They can only be delivered at a particular moment, and hence they are perishable in nature. They lack physical identity. Services cannot be distinguished from the service provider. The point of sale is the basis for consumption of services. Services cannot be owned but can only be utilized. You can understand this by an example: If you buy a ticket for watching a movie at the multiplex, it doesn’t mean that you purchased the multiplex, but you have paid the price of availing services.

Differences between Consumer Goods and Services

The basic differences between goods and services are mentioned below: –

- Goods are the material items that the customers are ready to purchase for a price. Services are the amenities, benefits or facilities provided by the other persons;
- Goods are tangible items i.e. they can be seen or touched whereas services are intangible items;
- When the buyer purchases the goods by paying the consideration, the ownership of goods moves from the seller to the buyer. Conversely, the ownership of services is non-transferable;
- The evaluation of services is difficult because every service provider has a different approach of carrying out services, so it is hard to judge whose services are better than the other as compared to goods;
- Goods can be returned to or exchanged with the seller, but it is not possible to return or exchange services, once they are provided;
- Goods can be distinguished from the seller. On the other hand, services and service provider are inseparable;
- A particular product will remain same regarding physical characteristics and specifications, but services can never remain same;
- Goods can be stored for future use, but services are time bound, i.e. if not availed in the given time, then it cannot be stored;
- First of all the goods are produced, then they are traded and finally consumed, whereas services are produced and consumed at the same time.
- Applicability of Tort Law in Consumer Protection Cases
- By paying compensation, the law of tort is primarily concerned with the redressal of wrongful civil actions. Conflicts of interest are bound to happen in a society where men live together, and they may harm one or the other from time to time. In addition, with rapid industrialization, fraudulent liability has come to be used against manufacturers and industrial units.

The law of torture came from common law, and overall, this branch of law is unmodified. Strict liability is codified only to a very limited extent, such as worker’s compensation, motor vehicle accidents, environmental degradation, consumer protection etc. The development of consumer’s protection systems

is quite young and can be traced back to the Consumers' Bill of Rights in which the recognition of consumer rights began internationally.

By awarding compensation, the law of tort is primarily concerned with redressing wrongful civil actions. Conflict of interest is bound to occur in a society where men live together, and they can cause damage to one or the other from time to time. Moreover, tortious liability has come to be used against manufacturers and industrial units with rapid industrialization. The Law of tort came from Common Law, and by and large, this branch of law remains uncoded. Tortious liability has only been codified to a very limited extent, such as worker's compensation, motor vehicle accidents, environmental degradation, and consumer protection and so on.

These consumer rights were further strengthened on 9 April 1985, passed a resolution by United Nations General Assembly that issued general guidelines including: –

Physical security;

- The protection and promotion of consumer economic rights;
- Standards for the safety and quality of consumer goods and services;
- Measures to enable consumers to get redressal;
- Measures relating to specific sectors such as food, water and pharmaceuticals; and
- Consumer education and information programmes.

What are the rights and responsibilities of a consumer?

The Bill recognized six important consumer rights, as follows: –

Right to Safety: – Before buying, a consumer can insist on the quality and guarantee of the goods. They should ideally purchase a certified product like ISI or AGMARK;

Right to be Informed: – The buyers should be informed with all the necessary details of the product, make her/him act wise, and change the buying decision;

Right to Choose: – Consumer should have the right to choose from a variety of goods and in a competitive price.; and

Right to be Heard: – This means the consumer will get due attention to express their grievances at a suitable forum.

Right to Consumer Education: – Consumer should be aware of his/her rights and avoid exploitation. Ignorance can cost them more.

Right to Seek Compensation: – The defines that the consumer has the right to seek redress against unfair and inhumane practices or exploitation of the consumer.

The Responsibilities of the Consumer are as follows: –

Responsibility to be Aware: – A consumer has to be mindful of the safety and quality of products and services before purchasing.

Responsibility to think Independently: – Consumer should be well concerned about what they want and need and therefore make independent choices.

Responsibility to Speak Out: – Buyer should be fearless to speak out their grievances and tell traders what they exactly want

Responsibility to Complain: – It is the consumer's responsibility to express and file a complaint about their dissatisfaction with goods or services in a sincere and fair manner.

Responsibility to be an Ethical Consumer: – They should be fair and not engage themselves with any deceptive practice.

Object of Consumer Protection Act

On the domestic front, the consumer movement began with the enactment of the Consumer Protection Act, 1986 (hereinafter referred to as the CPA), which aimed "to better protect the interests of consumers and to provide for the establishment of quasi-judicial authorities" for settlement of consumer disputes". The Act has primarily given statutory recognition to the rights of the consumer in India.

These rights specified in the Act include: –

- The right to be protected from the marketing of goods and services dangerous to life and property;
- The right to be informed about the quality, quantity, potency, purity, standard and price of goods or services, as the case may be, so as to protect the consumer from unfair trade practices;
- The right to access a variety of goods and services at competitive prices;
- The right to be heard and to be assured that due consideration will be given to consumer interests on suitable flora;
- The right to be redressed against unfair trade practices or dishonest exploitation of consumers; And
- Right to consumer education.

However, prior to these developments, the concern for protecting the rights and interests of consumers may have been located under Tort Law, which is still equally effective and enforceable. Hence, this monograph tries to throw light on the relationship between Tort Law and Consumer Protection with special emphasis on cases of medical negligence.

The primary objective of consumer protection system is to protect against deficiency in service and defects in goods. Thus, these aspects will primarily be discussed under tort law and consumer laws, with sector-specific treatment of consumer affairs. Insurance, transportation, banking and finance, medicine, etc. sectors are specifically covered in this monograph.

Doctrine of Caveat Emptor

Meaning of Caveat Emptor: – The Doctrine of Caveat Emptor means that the responsibility lies on the buyer of goods and he must perform due diligence before the purchase of the goods. It is expected from the buyer to be alert in a contract of sale. He cannot hold the seller responsible for inferior goods unless the contract is based on fraud. The Doctrine of Caveat Emptor is generally applicable in the case of property transactions but it can also be applied in the sale of goods and other services.

Section 16 of the Sale of Goods Act, defines it as “there is no implied warranty or condition as to the quality or the fitness for any particular purpose of goods supplied under such a contract of sale”

Let's explain the Doctrine of Caveat Emptor with an example. The seller makes the goods available in the market and it is the responsibility of the buyer to inspect them well before buying. If the buyer later discovers a defect in the goods that could have been detected earlier by him, he cannot sue the seller for inferior quality.

Though the responsibility lies with the buyer, he can shift it to the seller under the given conditions: –

- If the buyer has informed the seller about the purpose of the purchase, before making the purchase.
- If the buyer relies on the technical expertise and experience of the seller.
- If the goods are of a description that the seller supplies in his normal course of business.

The caveat emptor: – ‘let the buyer beware’ doctrine of the law concerning the sale of goods, assumed that the consumer was responsible for protecting himself and would do so by applying his intelligence and experience in negotiating the terms of any purchase. That principle may have been appropriate for transactions conducted in village markets. In early times, the consumer may have been able to protect himself since the products were less sophisticated and could be inspected before purchase. But now the conditions have changed.

Many modern goods are technological mysteries. The consumer knows little or nothing about these highly sophisticated goods. In real life, products are complex and of great variety and consumers and retailers have imperfect knowledge. The principle of caveat emptor, thus, has ceased to be appropriate as a general rule. The consumers need protection by law when goods fail to live up to their promises or indeed cause injury.

Consumers Protection in India

In India, given the ever-increasing population and the consequent need for many goods and services, which have no equal supply, the need for consumers protection is significant. India's growing consumers exploitation can be attributed to lack of education, poverty, illiteracy, lack of information, traditional views of Indians suffering in silence and their ignorance of the legal remedies available in such cases.

Consumerism in India is as old as business. There are references in Kautilya's Arthashastra to the concept of consumer protection against exploitation such as manipulation and adulteration of weights and measures. Along with this, the same book also provides for punishment for these crimes. Kautilya's Arthashastra Book IV, Chapter II, "Removal of Thorns", deals with consumer protection against traders.

When a trader sells or pledges substandard goods by misrepresenting them as superior goods or adulteration of medical articles with grain, oil, salt, fragrances and similar substandard articles, the said dealer shall not only be liable to be punished, but also to be compelled to compensate for the loss.

Differences between Law of Torts and Consumer Protection Act, 1986

<u>S.NO.</u>	<u>LAW OF TORT</u>	<u>CONSUMER PROTECTION ACT</u>
1.	In the case of tort, losses are always unliquidated or unascertained and invariably, they are not and cannot be real.	In the case of the CP Act of 1986, the aggrieved consumer is entitled to liquidated damages only, i.e., pre-settled or actual damages. Redressal agencies can ascertain the damages.
2	A tort is an infringement of a right in rem.	In the case of this Act, the consumer is injured or suffer loss then, it is an infringement of a right in personam.
3.	The philosophy of the law of tort is a new subject and formulated into a separate branch just from the beginning of the 20th century.	Consumer awareness, consumerism, consumer rights are formulated in a separate law department is a very fresh subject, formulated in a separate law department just twenty years ago.
4.	In tort, the duty is one that is imposed by the law and is owned by the community at large. This principle is known as "Respondeat Superior".	The duty is also imposed by the law in consumerism but is owned by the seller /manufacturer/trader. This duty's principle is known as "Caveat Venditor".
5.	Sometimes the motive is an essential factor in determining the liability, for example, malicious prosecution, defamation, etc.	The motive in consumerism is not a key factor. The defaulting party, i.e. the seller/trader/manufacturer, must pay the costs of the goods or services or replace them with new defect-free goods or actual damages, without any inquiry as to the motive.
6.	Tort law has not been codified. It's the law made by the judge.	While consumer law is new, it is codified.
7.	In tort, a person may be entitled to such damages that he has not suffered in actuality. (injuria sine damnum).	Consumers are entitled only to actual damage or replacement of new goods or services under consumer law.
8.	In tort, exemplary or vindictive damages are awarded.	Actual damages are generally awarded to consumers. Exemplary or vindictive damages can also be awarded in exceptional cases where the seller acts in bad faith

<u>S.NO.</u>	<u>LAW OF TORT</u>	<u>CONSUMER PROTECTION ACT</u>
		and negligently.
9.	There is no establishment of separate courts. The cases of tort are also enquired in ordinary civil and criminal courts.	Separate consumer disputes redressal agencies are established in India, one at National level-National Commission, second is at State level-State Commission, and the third District level-District Forum.
10.	The plaintiff should pay the court fee, the fee for the lawyer, etc.	There is no fee for the court or for the lawyer.
11.	Generally, the petition must be filed only by the aggrieved. The litigation of public interest is allowed to a limited extent in exceptional circumstances. PIL is now highly prevalent in environmental law, coupled with tort.	Public interest litigation is allowed. The complaints can also be filed by third parties on behalf of aggrieved consumers.
12.	The inquiry will be carried out for a long time.	The inquiry must be concluded within a prescribed time by the redressal agencies as prescribed by the Act.
13.	The proceedings are conducted in accordance with the rigid legal principles, and natural justice is also followed.	The proceedings are conducted in a fast and simple manner. There are no legal procedures to follow. Natural justice principles may not also be taken into consideration.

Conclusion

Indian tort law while being less developed, based on English tort law and English court decisions. As a result, Indian consumers will also have to resort to the decisions of the English courts on the product liability domain to base their claims under tort law. But the liability was based on strict liability under the English Consumer Protection Act 1987. As a result of this product liability under tort law, more consumers have been oriented since the strict liability in place of negligence-based liability in England has been supported. It is important to note here that the Indian law under C.P. Act 1986 bases the product on the trader's and service provider's negligence. Thus, the Indian courts will follow either the Common Law principles of negligence-based liability or strict liability as proposed in the Ryland v. Fletcher case and under C.P. Act, 1987 while dealing with product liability under tort law.

4.2 Services: Types of services, Deficiency-meaning, Denial of Services, Commercial & Professional Services, Medical Services.

Introduction

Consumer Protection Act, 2019 expands the concepts that would be covered by the Act, for example, product liability, e-commerce, etc. The protection provided by the Act is for the goods bought or service utilized.[1] Section 2(o) of the Consumer Protection Act, 1986 defines services, while Section 2(42) of the current Act defines the same.

Service means any kind of service which is made available to the consumers for their use for payment of consideration. The definition can be divided into three parts: descriptive part, inclusive part and exclusionary part.

The descriptive part says that service includes 'any' kind of service, which has been availed by a potential consumer. This means that any and every kind of service shall come within the definition. The

inclusive part is the list of services that have been mentioned in the statute. CPA, 2019 includes e-commerce as a new service under the statute. The telecom sector was considered as a service and has now been explicitly mentioned in the statute now. The exclusionary part is that part to determine those services whether hired for free or not and for personal service or not.

Banking

Banking is a transaction dealing with money and there are a number of banks that have been set up to provide services relating to money, in the form of cheques or loans or accepting deposits, lockers facility, investment, etc.[2] Any service which is provided by banks is not free of cost and there will be some percentage of transaction fees deducted by them.[3]

Thus, the service is not free of charge. A basic activity like opening a savings account is considered to be a service rendered by banks.[4] The bank shall have a creditor-debtor relationship where the bank gives loans or lends money on overdraft facilities or vice versa.[5] Reserve Bank of India has also been considered to fall within the definition of service. In this case, RBI was held liable for deficiency of service as there was a delay in providing loans to the employees for their housing facilities.[6]

Insurance

Insurance is an agreement between one party, the insurer, to indemnify the insured in cases of any financial loss according to the terms and conditions of the contract. If the insurance company defrauds the insured or due to negligence from the company, the loss has been incurred by the beneficiaries, then the insurance company can be sued.[7]

For example, if the goods are lost in transit by a transport company, then the insurance company can claim the loss incurred by the traveler due to the negligence of the transport company.[8]

In a recent case[9], the definition of consumer who availed the services of insurance has been interpreted to include beneficiaries of the agreement as well. The Supreme Court has held that the coverage given by the insurance agreement can include more people than just the insured.

E-commerce

E-commerce is a new concept that has been included in the CPA, 2019. E-commerce is buying or selling goods or utilizing services online through digital media or electronic service providers.[10] The services provided by e-commerce entities may not be according to the quality assured by them and thus protection has to be given to the consumers.[11]

The Consumer Protection (E-Commerce) Rules, 2020 was passed recently in line with the CPA, 2019 to facilitate the online services provided.[12] The rules extend to those e-commerce entities which do not have a company registered in India but provides services in India. It is mandatory for all the e-commerce entities to mention their name, address, address of the website, contact details like mail address, number.[13]

A grievance redressal system has to be put in place by every e-commerce entity and a grievance redressal officer has to be appointed to confirm the grievance within 2 days and provide a solution for the grievance within 30 days.[14] Consent of the consumers for availing services cannot be taken automatically but has to be given by consumers explicitly.[15] The cancellation charges imposed by e-commerce entities should be equivalent to the amount they have incurred due to the cancellation.[16]

E-commerce entities have been differentiated as e-commerce inventory entities that directly provide services to the consumers and e-commerce marketplace entities where e-commerce entities act as a platform for many other services. These rules are subject to the provisions of the Consumer Protection Act, 2019.[17]

Telecom sector

There have been a number of disputes before the CPA, 2019 with respect to whether telecom disputes can be adjudicated by consumer fora. The Telecom Consumers Protection And Redressal Of Grievances Regulations, 2007 has provided that consumers can seek redressal for their grievances under Consumer Protection Act.[18] There are many areas in which jurisdiction of consumer forum has been

invoked, like the excessive billing of telephone carriers[19], administrative problems such as delay in the processing of the application for change of address of telephone line or telephone line is out of order[20], broadband services by telephone companies like BSNL[21], fraudulent message received by the consumers due to default of telephone company like Bharathi Airtel[22] etc.

Electricity sector

Electricity is governed by the Electricity Act, 2003 but it also provides for filing of complaints in other statutes and the Consumer Protection Act is one of them. Electricity and other energy sectors have been included in the definition and consumers who face deficiency in electricity service or anything related to it can file a case in consumer fora.[23] NCDRC has affirmed that Consumer Protection Act cannot have any jurisdiction over matters pertaining to tampering of meters, unauthorized use of electricity etc.[24] Supply of electricity falls within the purview of CPA[25] and a case regarding delay in releasing the electricity connection for a flour mill was held to be deficiency of service.[26]

Housing and construction service

Construction and housing business has grown over time as the increase in population and expansion of business was seen, infrastructure and housing are required. Housing services, to come within the purview of the Consumer Protection Act, can be with respect to the quality of materials used in the construction[27], or if the properties of the infrastructure are as promised according to the agreement or untimely delivery of the house for possession[28] or incomplete construction, allotment of land by a government authority[29], etc. Housing as a service was first included by the Supreme Court in the landmark judgement of Lucknow Development Authority v. M K Gupta[30]. The business of real estate also falls within the ambit of housing and construction services.[31]

Transport service

Transport service includes transport by road or by rail or by flight.[32] In different instances, all three fields are considered to be service to provide compensation to the aggrieved consumers. In the case of railways, cases like passenger have been refunded for delay of train, unauthorized entry into reserved compartments[33], absence of comfortable seats as promised in the terms and conditions[34], compensation for chain snatching[35], etc. were dealt by consumer commission. In an unusual case, a passenger who died falling from the pathway between two compartments was compensated.[36]

With respect to airways, different cases like loss of luggage of the passenger in transit or cancellation of a confirmed ticket for no reason from the airlines, cause of injuries to the passenger for negligently moving the ladder[37], poor quality of food supplied[38] or non-veg served in case of veg food, departure before time etc.[39] can be considered as deficiency of service and cases can be filed against the respective airlines. With respect to transportation on road, more or less the same grounds which have been covered by airlines or railways can be used to file complaints in consumer commission.

Education

Education as a service under the Consumer Protection Act has been questionable throughout as to whether to be included within the ambit of the Act or not. There are a number of cases decided by consumer commissions and the courts and they have contrasting views for the inclusion of the education sector.

The case of Bhupesh Khurana v. Vishwa Bhudha Parishad[40], decided that education is a service and the students are consumers under the Act. But the Supreme Court in Maharshi Dayanand University v. Surjeet Kaur[41], gave a decision otherwise and held that education is not a commodity and the institutions do not run a business for commerce.

But again the Apex Court changed its view in P T Koshy v. Allen Charitable Trust[42], reversed it and laid down that any educational institution should be evaluated on the merits and then the question of service should be answered as every case is different from one another. Other than this, activities of an educational institution like taking fees to appear in an examination, not giving roll numbers or seat

numbers on time for examination, wrong numbers are given to the students which resulted in failure of those students etc. are considered to be services.[43]

But, activities like conduction of public examination, evaluation of the papers, announcing the results etc. were considered to be statutory duties and cannot be questioned under the CPA. Yet again, on the other hand, a student who had received the wrong marks sheet of an examination was compensated for the loss incurred.[44] In a recent case, it has been held that coaching classes do not attract the provisions of the CPA.[45] Thus, there is no one view expressed by the courts on this matter and the decisions have been different but yet the cases have to be evaluated on merit and based upon the facts on each case.

Gas cylinder or service in liquefied petroleum gas

LPG is found in every house used for various purposes. The companies, which are involved in the distribution of gas cylinders, should be very careful in doing so as LPG is flammable and slight mistakes can cause serious injuries. In such cases, companies are held liable for a deficiency of services. Few cases which the consumer commission have dealt in this sector include death or injury due to the mistake of mechanic sent by the dealer[46], delivering the cylinder to a wrong address[47], failure by the dealer to re-check the cylinder[48] etc.

Chit fund business

Chit fund is a process where small businesses and traders raise funds through monthly instalments. It is governed by the Chit Fund Act, 1982, but there are few cases that have come before the consumer commission. The maintainability of such cases has been an issue and there are differing views on the same between Madras Consumer Commission and Andhra Pradesh Consumer commission. But National Commission decided on a chit fund case in *Sri Ram Priya Chit Fund Pvt Ltd v. Yara Srinivasa Rao*[49].

The exception to the definition of service

As told in the first part of this answer, the definition as given in the CPA, 2019 has an exclusionary part that services free of cost and contract of personal service cannot be questioned under the Act.

The term 'hire' services include payment of some consideration in return to the services availed by the consumers. In case no payment has been made, then that particular service is not a 'service'. For example, even though healthcare has been removed from the definition of service, treatment received by patients could not go to consumer commission in case of any deficiency in the service.[50]

New legal draft

The taxes paid by the citizens are used by the government and this is not considered to be the payment made by citizens to the government.[51] If a consumer is paying house tax and then files a complaint claiming that water supply is inadequate by the corporation, then such a case cannot be filed as the corporation is discharging its statutory duty which is not covered by CPA.[52] A government officer cannot complain against the state as he is the servant of the state and the state renders services free of cost.[53]

Another exception to 'service' is the contract of personal service. There are two types of services available: contract for service and contract of service. Contract for service is like a principal-agent relationship where the principal tells the agent to do some work and the method adopted by an agent is up to him, whereas, contract of service is more likely a master-servant relationship where the master orders what and how the work has to be done.[54] Contract of service allows the employee to work at his freedom and to quit as there is no agreement signed. It is a part of the overall service personally given to the employer.[55]

The list of services that can be questioned under the Consumer Protection Act, 2019 is not an exhaustive list but inclusive as the phrase "includes but not limited to" has been used in the definition. Even though healthcare has been removed from the inclusionary part, it does not mean that medical professionals do not fall under the CPA. It is a matter of time until any court shall have to interpret in this

regard. Few other service sectors which have been included within the bracket of service are the entertainment and advertisement industry, postal services, investment-related services, etc.

Deficiency in Service under Consumer Protection Act, 2019

Introduction

Under the Consumer Protection Act, 2019, a complaint can be filed when a consumer detects deficient in a service. However, the threshold of deficiency must fall under the ambit of the definition of deficiency given under the Consumer Protection At, 2019. The consumer Protection Act, 2019 came into effect on July 20, 2020. The Consumer Protection Act 2019 not only recognizes physical relationship of buyer-seller but also has acknowledged services pertaining to e-commerce platforms. The aim of both new and old Consumer Protection Act is to protect and safeguard the interest of consumers.

Definition of Deficiency of Service

Section 2 (11) of Consumer Protection Act, 2019 defines Deficiency of Service as “any fault, imperfection, shortcoming or inadequacy in the quality, nature and manner of performance which is required to be maintained by or under any law for the time being in force or has been undertaken to be performed by a person in pursuance of a contract or otherwise in relation to any service and includes (a) any act of negligence or omission or commission by such person to the consumer and (b) deliberate withholding of relevant information by such person to the consumer.”

The term ‘defect’ is defined under Section 2 (10) of Consumer Protection Act, 2019 as “any fault, imperfection or shortcoming in the quality, quantity, potency, purity or standard which is required to be maintained by or under and law for the time being in force or under any contract, express or implied or as is claimed by the trader in any manner whatsoever in relation to any goods or products and the expression ‘defective’ shall be construed accordingly.”

In any buyer-seller relationship, deficiency of service prevails. Such as legal aid, banks, railways, construction, transportation, education, electricity, entertainment, restaurant, hospitality, etc. The consequences of deficiency of service can range from inconvenience or harassment to mental or physical injury to death, thereby leading to legal consequences.

Important Case Laws

Indian Medical Association v V.P. Shanth

This case is a result of medical negligence from medical profession. This landmark decision recognized patient’s rights through giving them the consumer status where complaints could be lodged in a case of deficiency in the field of medical services under the Consumer Protection Act, 1986. The liability of doctor and hospital management arises when a patient is admitted. The standard duty of care must be maintained by the hospital. When a patient is admitted, he/she is also considered as a consumer.

The Supreme Court emphasized on the interest and safeguards of patients which is given the utmost importance.

In the case of Om Prakash v Reliance Genral Insurance, where the insurance company declines the insurance of the complainant on the basis of delaying in intimating the insurance company. However, in the case of Gurshinder Singh v Shriam General Insurance Co. Ltd and Ors, it was ruled that with a reasonable and satisfactory explanation, insurance claims were not to be declined due to technical grounds. It was further opined by the Court that if the insurance claim is declined by the Insurer because of untimely intimation of occurrence of theft/robbery, it would be considered as a technical ground of rejection and the same would be unjust and not fair, if the respective claim in question has already been verified. Hence, it was held by the Court that, mere delay in intimating the insurance company about the theft must not act as a valid ground to decline or repudiate the insurance claim, which has already been proved to be genuine.

Consumer Complaint Mechanism

The consumers have the liberty to go to the Consumer Courts in case of deficiency in services as laid down under the Act. The new Consumer Protection Act, 2019 has opened the option of filing consumer complaint electronically. The procedure to register consumer complaint is made simple by allowing the State and District Consumer Forums for reviewing the applications and advising appropriate method such as mediation.

The Consumer Court in India is subdivided into three levels of courts, the National Level, the State Level and the District Level, depending on the gravity of the matter the consumer may approach as per the valuation of matter for redressal and adjudication of disputes. The next step after recognizing the matter of dispute is to understand the pecuniary jurisdiction of the concerned case as follows:

Jurisdiction for Filing Complaint

Forum	Value of Claim
District Consumer Disputes Redressal Forum	Rs. 1 Crore or less
State Consumer Disputes Redressal Commission	Between 1 Crore to Rs. 10 Crore
National Consumer Disputes Redressal Commission	More than Rs. 10 Crore

All this forum has the same power which is given to the civil court such as cross examination in the laboratory, survey, testing all the powers have been given and all the forum has given appeal provision.

Remedies

Step 1: Before initiating a legal action against the service provider, the aggrieved consumer may consider to go to the grievance redressal mechanism of the service provider. Most companies have internal grievance redressal mechanism where the consumer may file their complaints.

Step 2: The consumer can send a legal notice to the service provider before taking the matter to the consumer court specifying the details of the complaints, relief to be taken and time stipulated to resolve the issue and conditions.

Step 3: If the service provider fails to resolve the issue and disagrees to compensate the consumer for the loss occurred to them then the consumer has full authority to lodge a legal complaint against the service provider in the consumer forum. However, if the consumer wants to directly approach the consumer forum, he/she can because there is no obligation to send a legal notice beforehand.

A complaint needs to be included with essential details of consumer as well as the service provider such as name, address, facts, remedy, affidavit and other supporting documents.

Time period to file Consumer Complaint:

Section 35 of Consumer Protection Act, 2019 states that a complaint must be lodged to the respective District Forum within two years of the time of the cause of deficiency in service or any defect in goods. If the consumer has proper and valid reasons and the District Forum agrees, then the time span of filing the complaint can cross more than two years period of time.

Further, Section 36 of the Act talks about the admissibility of complaint by forum that a consumer must file a complaint within the time period of 21 days from the date of filing.

Mediation: Section 37 of the Act talks about mediation as an option of settlement with consent of parties. Within the period of five days, both the parties are to provide with a written consent.

However, if both parties fail to see eye to eye, then the case returns back to the District Consumer Forum. It is essential to note that Section 81 (1) states that no appeal can be filed and entertained by respective forum against the order passed by Mediation.

Review Application- Section 40 of Consumer Protection Act, 2019 states that if the consumer is not satisfied with the order given by the District Consumer Forum, then a review application can be filed by the consumer within the time period of 30 days from the pronouncement of the order. Further, Section 41 of Consumer Protection Act, 2019 states that if the consumer is still not stratified with the order given by the review application then they can take up to State Commission within 45 days from the date of pronouncement of order.

National Commission- According to Section 50 of Consumer Protection Act, 2019, the complainant can file an application for review in the Forum within 30 days if the complainant does not find the order passed by the State Commission to be satisfactory. Further, Section 51 of Consumer Protection Act, 2019 states that if the order passed by the State Forum is not satisfactory then the complainant has rights to appeal to National Forum within the time period of 30 days from the date of the order passed.

It is important to note that a consumer cannot directly file a complaint through Supreme Court. It has to go from District Commission, State Commission then the National Commission. If the consumer is not satisfied with the decision rendered by the National Commission then it will go before the Supreme Court.

Consumer under Section 2 (7) means any person who buys any goods and hires any services which includes both online as well as offline transactions via electronic means, teleshopping, direct selling or multi-level marketing.

Consumer Rights under Section 2 (9) includes-

- The right of being protected against marketing of goods, products or services which are danger to life and property
- The right to be informed about the quality, quantity, potency, purity, standard and price of goods, products or services
- The right to be assured, whenever possible access, to a variety of goods, products or services at competitive prices
- The right to be heard and to be assured that consumer's interests will receive due consideration at appropriate fora
- The right to seek redressal against unfair trade practice or restrictive trade practices or unscrupulous exploitation of consumers

The right to consumer awareness

Unfair Trade Practices

Indulging in illegal or illicit means to promote a product or service by misleading the public into making the product appear of a good quality when it is of a low quality is unfair trade practices. For instance, including a fake ingredient, fake advertisement, not complying with the health standard of the consumers.

E-commerce

E-commerce is regulated by the Consumer Protection Act. The Consumer Protection (E-commerce) Rules, 2020 comprises of e-commerce rules on unfair trade practices. If there is any deficiency in services of online transactions, online shopping or online e-commerce transaction, then a complaint can't be filed before the forum. E-commerce are required to dispense information such as refund policy, warranty, exchange rules, payment options, tracking information, shipments details etc. The complaint filed by the consumers are to be answered within 48 hours.

Conclusion

Deficiency in services plays a vital role to a consumer as well as the service provider. The Consumer Protection Act, 2019 has successfully managed to incorporate an aspect of deficiency that may be found in a product or service, hence giving the consumer the power to take any unfair practice to the court of law.

4.3 Consumer Protection Councils

The Consumer Protection Council is a government institution that was established in 1972 with the main objective of protecting consumer rights. The council is made up of members from various government departments, such as the Department of Industrial Policy and Promotion, the Department of Law and Justice, and the Department of Consumer Affairs. The council's main focus is to safeguard consumer interests by monitoring and enforcing consumer protection laws, facilitating consumer education, and providing consumer redressal mechanisms. In addition, the council also promotes consumer-friendly policies and initiatives.

What is the Consumer Protection Council?

The Consumer Protection Council is an organisation that provides legal assistance to Indian consumers. They do this by developing and promoting effective consumer protection measures, as well as educating people about their rights under the law. It has a wide range of services that it offers, including product liability, consumer disputes, and credit information. Additionally, the council conducts awareness campaigns to educate people about their rights as consumers. The council offers free information and support to individuals who have been wronged by companies or government agencies. So, whether you're the victim of a scam or just feel like you've been wronged in the past, the Consumer Protection Council can help.

Composition of the Consumer Protection Council

The Consumer Protection Council acts as the mediator between businesses and consumers, providing education and legal interpretations of consumer rights. In addition, the council tries to make it easier for consumers to take action if they feel that their rights have been violated.

The Consumer Protection Council is a government body that looks after the interests of consumers in India. It has a total of 20 members and all are appointed by the President of India on the advice of the Prime Minister. The term of all members is 5 years and they can be re-appointed once their term ends. The primary mandate of the council is to provide effective and affordable consumer protection through the formulation, implementation, and review of consumer-related laws/regulations. It also provides guidance to other government departments/organizations on issues pertaining to consumer affairs. Overall, the council plays an important role in ensuring that consumer interests are always well-protected.

Objectives of the Consumer Protection Council

Now that you know a little about the composition of Consumer Protection Council, it's time to learn about the important functions and Objectives of this organization. The Consumer Protection Council provides impartial advice and support to consumers with regard to their rights under the law. Its members are experts in consumer protection and come from different parts of the business community. They work together to provide objective, impartial guidance, and support to consumer concerns. In addition, the council also works towards increasing consumer awareness of their rights and protecting businesses from unfair practices by customers.

It performs functions like:

- To formulate policy guidelines for the protection and promotion of consumer interests.
- To provide guidance on matters relating to consumer protection.
- To advise Government on all issues related to consumer protection.

- To monitor compliance with rules/regulations issued by the Government or any other authority or organisation as per directions given by it.
- To receive complaints from consumers regarding violations or non-compliance with any provision.

How Can Council Help You?

The Consumer Protection Council works to protect consumers from unfair trade practices. These can include false advertising, misleading pricing, and unauthorized modifications to products. If you think you have been a victim of an unfair trade practice, it is best to contact these agencies for assistance. Consumer Protection Council plays a vital role in the protection of consumer rights. It does this through a range of activities such as research, public education, monitoring, investigations, and mediation. The CPC has a strong focus on consumer protection and helps to ensure that people have access to accurate information about their rights. This way they can make informed decisions when it comes to buying goods or services. The council meets at least once a month. Its decisions are made by majority vote. They will help you take appropriate action and ensure that your interests are always taken into consideration.

Powers

The Consumer Protection Council (CPC) is a government agency and they have rights to prosecute offenders who break the law in relation to consumer protection matters. It has a wide range of powers and functions, including the enforcement of consumer protection laws and recommending reforms to the government. Their aim is to provide a fair and consistent service across the board, which includes protecting the rights of consumers from unfair or abusive business practices. In addition, they work closely with other government agencies such as the Ministry of Business, Innovation and Employment (MBIE) and the Commerce Commission to bring those who have broken the law to justice. Anyone who violates consumer protection laws will face punishment accordingly – whether it be fines or imprisonment. The council is responsible for analyzing and investigating complaints received by it. This helps to identify any patterns or issues that may need to be addressed. It also provides guidance and support to businesses in order to help them comply with the law- both legal requirements and consumer protection standards. In addition, the council keeps tabs on developments in the industry so that appropriate action can be taken when necessary.

Conclusion

The Council is a body of the Government that has been set up for the purpose of taking decisions on issues related to consumer protection. The Council consists of representatives from all Ministries/Departments, State Governments, and Union Territories, as well as representatives from different organizations working in the field of Consumer Protection. This council is responsible for the protection of consumer rights in the country. They work to ensure that all consumer affairs are handled in a transparent and fair manner. In addition, the council provides consumer education and assists consumers in resolving consumer disputes. Our expert team at Vakilsearch can help you file a legal notice with ease if you feel that your consumer rights have been violated by any business/entity. Get in touch with us today!

4.4 Consumer Disputes Redressal Agencies: District Commission, State Commission & National Commission, Judicial Review.

Consumer disputes need to be resolved quickly. In many cases, there are no complaints lodged, but the aggrieved party always prefers a quick resolution. This is where consumer dispute redressal agencies come in. Consumer dispute redressal agencies are the first point of contact for consumers who have complaints about their purchased products. Consumer dispute redressal agencies are bodies set up to handle consumer complaints. They are set up by the state and the federal government and have the right to enforce certain rules.

What Is A Consumer Dispute Redressal Agency?

Consumer Dispute Redressal Agencies or CDRA's are nonprofit organizations that have been set up in various states by the government to deal with various issues related to consumer disputes. A CDRA is an independent body that is not a government agency, but rather a private one that helps consumers in settling disputes with businesses. Consumer dispute redressal agencies are an important facet of the consumer protection framework. They are an independent and impartial body of consumer representatives and play a key role in resolving disputes between consumers and other parties. Consumers turn to them for direct redressal of consumer disputes, and also for the jurisdiction of consumer disputes that have been referred to them.

The Role of Consumer Dispute Redressal Agencies

Consumer dispute redressal agencies are a new invention to smoothen the process of consumer protection. They are a new way of settling disputes between the consumer and the business. They are the result of the consumer's movement to bring about a change in the way businesses use their marketing techniques to trick customers. Many consumers are tired of the business practices of the companies and are looking for other ways to deal with them. These agencies not only fight for consumer rights but also educate consumers. In a country like India, where most people are not even aware of their rights, this is very important. A Consumer cannot fight against a big company but when backed by legal authorities, they can not only fight for their rights but also demand compensation when they deserve it rightfully.

Consumer Disputes Redressal Agencies in India

Consumer dispute redressal agencies are a set of organizations that are tasked with resolving disputes between consumers and businesses. They typically resolve disputes relating to product quality, price, and service. In India, consumer dispute redressal agencies are created at the district, state, and national levels to adjudicate complaints filed by consumers against traders or manufacturers. The district-level consumer forum is the first forum for the redressal of consumer complaints. If the district-level forum does not dispose of the complaint within a period of two months from the date of filing, the complainant can approach the state-level consumer forum. And if the state-level consumer forum also does not dispose of the complaint within a period of two months from the date of filing, the complainant can approach the national-level consumer forum.

How Do Consumer Dispute Redressal Agencies Work

The redressal process starts with the filing of a complaint by the consumer with the concerned redressal agency. The complaint should be in writing and should contain the name, address, and contact details of the complainant, as well as the name, address, and contact details of the opposite party. The complaint should also contain a brief description of the facts of the case, the relief sought, and any supporting documents. The redressal agency will then serve a notice on the opposite party, directing them to appear before the agency to answer the complaint. The opposite party will have an opportunity to file a written reply to the complaint, and both parties will have an opportunity to present their case before the redressal agency. After considering the evidence and arguments of both parties, the redressal agency will pass an order, which may award relief to the consumer, or may reject the complaint. The order of the redressal agency is final and binding on both parties. However, either party can appeal the order to the next higher redressal agency within a period of thirty days from the date of the order.

Powers of Consumer Disputes Redressal Agencies

CDRAs have the power to summon and enforce the attendance of witnesses, compel the production of documents, and examine witnesses on oath. They can also pass interim orders, such as orders for the preservation of evidence or for the interim payment of compensation.

The Consumer Protection Act, 1986 empowers CDRA to issue orders for the following:

- (i) Replacement of goods or services;
- (ii) Refund of the price paid for goods or services;
- (iii) Compensation for loss or damage suffered by the consumer;
- (iv) Restitution of money acquired by the opposite party through unfair or restrictive trade practice;
- (v) Cease and desist orders against unfair or restrictive trade practices;
- (vi) Directions to service providers to comply with standards set by statutory authorities; and
- (vii) Any other order that the CDRA may deem fit and proper.

Conclusion

There are many dispute redressal agencies in India that are designed to help consumers with their grievances. People can go to these consumer dispute redressal agencies to get help with their disputes. Consumer dispute redressal agencies are not limited to just consumer disputes, but can also help with business disputes. It can help consumers with their disputes about faulty products, faulty service, and more. People can also get help with consumer disputes from consumer courts. Consumer courts are a lot like consumer dispute redressal agencies, but they are more specific in what they help with. Consumer courts are also a lot more accessible and are open for people to seek help.

What are Consumer Disputes Redressal Agencies?

The Act provides for a three tier Consumer Disputes Redressal Agencies. These are: District Consumer Disputes Redressal Forum in the District, State Consumer Disputes Redressal Commission at the state level and the National Consumer Disputes Redressal Commission at the national level. When can complaint be made?

A complaint may be made in writing under the following circumstances:

Loss or damage is caused to the consumer due to unfair or restrictive trade practice of a trader or service provider; the article purchased by a consumer is defective; the services availed of by a consumer suffer from any deficiency; a trader or service provider, as the case may be, has charged for the goods or for the service mentioned in the complaint a price in excess of the stipulated price; Goods or services, which will be hazardous to life and safety, when used, are being offered for sale to the public.

Who can file a Complaint?

- Any consumer;
- Any voluntary consumer association;
- Central Government or any State Government;
- One or more consumers, where there are numerous consumers having same interest

In case of death of a consumer, his legal heir or representative.

Where to file a Complaint?

As per the Consumer Protection Act, 1986 a complaint can be filed in:

District Consumer Disputes Redressal Forum (DCDRF): If the value of the claim is upto ` 20 lakh

State Consumer Disputes Redressal Commission (SCDRC): If the value of the claim exceeds ` 20 lakhs but is within ` one crore.

National Consumer Disputes Redressal Commission (NCDRC) If the value of the claim exceeds ` one crore.

District Forum:

- Each District has a District Forum.
- District Forum consists of three members.
- Out of the three, one is President, who is or has been or is qualified to be a District Judge.
- One of the members shall be a woman.

It entertains complaints where the value of claim is up to ` 20 Lakhs. II State Commission:

- Each state has one State Commission.
- It consists of a President, who is or has been a Judge of a High Court and two other members, one of whom shall be a woman.
- Complaints can be filed in State Commission where the value of claim is above ` 20 Lakhs upto ` one Crore.
- Appeals against the Orders of the District Forums can also be filed in the State Commission.

III National Commission:

- The National Commission is located in Delhi.
- It consists of a President who is or has been a Judge of the Supreme Court and not less than four other members, one of whom shall be a woman.
- Complaints for value of claim exceeding rupees one crore can be filed in the National Commission.
- It takes appeals against Orders passed by the State Commissions.
- The Orders of this Commission can only be challenged in the Supreme Court.

What is the Jurisdiction of Consumer Fora?

A complaint shall be instituted in a Consumer Forum within the local limits of whose jurisdiction the opposite party resides or carries on business or has a branch office or personally works for gain, or where the cause of action, wholly or in part, arises.

Is there any Fee for filing Complaint?

Every complaint filed shall be accompanied by a fee as specified in the table given below in the form of crossed Demand Draft drawn on a nationalized bank or through a crossed Indian Postal Order drawn in favor of the Registrar of the State Commission and payable at the respective place where the State Commission or the National Commission is situated.

Sl. No.	Total Value of goods or services and the compensation claimed (in `)	Amount of fee payable (in `)
	District Forum	
(1)	Upto one lakh rupees – For complainants who are Below Poverty Line holding Antyodaya Anna Yojana Cards	Nil
(2)	Upto one lakh rupees – For complainants other than Antyodaya Anna Yojana card holders.	100
(3)	Above one lakh and upto five lakh rupees	200
(4)	Above five lakh and upto ten lakh rupees	400
(5)	Above ten lakh and upto twenty lakh rupees	500
	State Commission	
(6)	Above twenty lakh and upto fifty lakh rupees	2000
(7)	Above fifty lakh and upto one crore rupees	4000
	National Commission	
(8)	Above one crore rupees	5000

Is there any exemption from payment of Fee?

The complainants who are Below the Poverty Line shall be entitled for the exemption of payment of fee for complaints upto rupees one lakh on production of an attested copy of the Antyodaya Anna Yojana card.

How to file a Complaint?

- The complaint can be filed on a plain paper.
- Stamp paper is not required for declaration.
- It should contain the details of the complainant and the opposite party.
- Complaint can be registered, in person, by the complainant or through his authorized agent or by post addressed to the Redressal Agency.
- It is not compulsory to engage a lawyer to file a case.
- The fees charged are very nominal according to the value of the claim.

What is the Procedure to file complaint in Consumer Fora?

A complaint when made in District Forum or State Commission shall be filed in three sets and where it is filed in the National Commission, it shall be filed in four sets with additional sets equal to the number of opposite party(s).

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Every complaint shall clearly contain particulars of dispute and the relief claimed and shall also be accompanied by copies of such documents as are necessary to prove the claim made in the complaint. A Consumer can argue his own case or can be represented through authorized person or agency.

Is there a need to engage a lawyer for filing a complaint in the fora?

There is no need to engage a lawyer or any other pleader and consumer can himself or through his representative file and represent his complaint.

What are the particulars that should be furnished along with the complaint?

The complaint should contain the following particulars:

- Name and complete address of the complainant.
- Name and complete address of the opposite party/parties.
- Date of purchase of goods or services availed.
- Amount paid for the above purpose.
- Particulars of goods purchased with numbers or details of services availed.
- Details of complaint, whether it is against Unfair Trade Practice / supply of defective goods / deficiency in service provided / collection of excess price, should explicitly be mentioned in the complaint petition.
- Bills / receipts and copies of connected correspondence, if any.
- Relief sought for under this Act.
- Complaint should be signed by the complainant or his authorised agent.

What is the time limit for filing a complaint?

A complaint has to be filed within two years from the date on which the cause of action/ deficiency in service/defect in goods arises. However, a complaint may also be filed after two years, if the complainant satisfies the District Forum that he/she has sufficient reasons for not filing the complaint within such period.

What is the provision for appeal?

- Aggrieved by the Order issued by the District Forum, appeal petition may be filed before the State Commission within 30 days from the date of receipt of Order.
- Aggrieved by the Order issued by the State Commission, appeal petition may be filed before the National Commission within 30 days from the date of receipt of Order.
- Aggrieved by the Order issued by the National Commission, appeal petition may be filed before the Supreme Court of India within 30 days from the date of receipt of Orders.

What are the Reliefs available to Consumers from Consumer Fora?

- Removal of defects from the goods;
- Replacement of the goods;
- Refund of the price paid;
- Removal of defects or deficiencies in the services;
- Award of compensation for the loss or injury suffered;
- Discontinue and not to repeat unfair trade practice or restrictive trade practice;
- To withdraw hazardous goods from being offered for sale;

- To cease manufacture of hazardous goods and desist from offering services which are hazardous in nature;
- If the loss or injury has been suffered by a large number of consumers who are not identifiable conveniently, to pay such sum (not less than 5% of the value of such defective goods or services provided) which shall be determined by the forum;
- To issue corrective advertisement to neutralize the effect of misleading advertisement;
- To provide adequate costs to parties.

Which is the Nodal Agency for Consumer Protection?

The Department of Consumer Affairs (DCA), one of the two Departments under the Ministry of Consumer Affairs, Food and Public Distribution is the nodal agency for consumer protection. The mandate of the Department is consumer advocacy. Translating this mandate into action entails:

- Enabling consumers to make informed choices;
- Ensuring fair, equitable and consistent outcomes for consumers; and Facilitating timely and effective consumer grievance redress.

The Department seeks to empower consumers through awareness and education; enhance consumer protection through prevention of unfair trade practices; enable quality assurance and safety through standards and their conformity; and ensure access to an affordable and effective grievance redress mechanism. The Department has been entrusted with administering:

- The Consumer Protection Act, 1986 The Legal Metrology Act, 2009
- The Bureau of Indian Standards Act, 1986 The Essential Commodities Act, 1955
- The Prevention of Black Marketing and Maintenance of Supplies of Essential Commodities Act, 1980
- National Test Houses
- Consumer Cooperatives

The Department also monitors the Prices and the Availability of Essential Commodities.

Website of the Department: <http://consumeraffairs.nic.in> Website of the NDRC : <http://ncdrc.nic.in/>
State Commission : <http://ncdrc.nic.in/statelist.html> District Forums : <http://ncdrc.nic.in/districtlist.html>

4.5 Motor Vehicles Act, 1988- Motor Accidents Claims- Claims Tribunals.

Motor Vehicles Act, 1988

Introduction

The Indian parliament approved the Motor Vehicle Act in 1988, which governs practically all elements of road transport vehicles. It covers all areas covered by the Act's provisions, such as traffic laws, vehicle insurance, motor vehicle registration, controlling permits, and penalties. The Act came into effect on July 1, 1989. The government of India, in discussion with state transport ministers, came up with this Motor Vehicle (Amendment) Bill to make amendments to the Motor Vehicle Act, 1988, in order to ensure that roads are safe. On April 10, 2017, the Lok Sabha passed the Motor Vehicles (Amendment) Bill, 2017. This Act requires all drivers to have a valid driving licence, and no vehicle may be driven unless it is registered under the Motor Vehicle Act. The purpose of the Act's preamble is to consolidate and modernise motor vehicle legislation. This Act provides all drivers and conductors to obtain a licence. The registration certificate is valid for fifteen years from the date of registration and can be renewed for another five years.

This article gives an overview of the Motor Vehicle Act, 1988, its amendments, Supreme Court case laws, New Amendment Act and Rules, and essential parts of the Act with Motor Vehicle Act penalties. Let us go through each aspect in detail below:

An overview of the Motor Vehicle Act, 1988

The Motor Vehicle Act is a law relating to torts that is founded on the concept that every injury has a remedy. At this point, the idea of compensating and giving damages comes into action. The Motor Vehicle Act of 1988 has been regarded as a welfare law aiming at offering relief to those who have been harmed. There existed the Motor Vehicle Act of 1939, which combined all motor vehicle legislations, but it had to be regularly amended in order to be updated. With advancements in road transport technology and road network growth, as well as changes in passenger transport patterns, it was necessary that the Act was revised to cover all new methods relevant to motor vehicles.

This Motor Vehicle Act is mainly concerned with granting relief to innocent people on the road who are frequent victims of accidents and then find themselves without a claim to the compensation that they should normally receive. All vehicle drivers must have a driving licence under this Act. This also requires the registration of a vehicle under the Act, which has a 15-year validity duration and can be renewed for another 5-year period. The Motor Vehicle Act of 1988 includes not just licencing and registration, but also other aspects of road transport vehicles.

Motor insurance is required to have at least third-party insurance in order to register and drive a car on Indian roads. However, the New Motor Vehicle Act Of 2019 proposes a Rs.2000/- fine, 3 months in jail, and community service for driving without insurance, as well as Rs.4,000/- punishment for repeated offences. Car and bike insurance policies are offered on the Bajaj markets portal and online platforms such as PhonePe, Acko, and others, and they provide customizable policy formats, coverage limits, and outstanding customer care.

Objectives of the Motor Vehicle Act, 1988

The Indian Motor Vehicle Act of 1988 was established to solve the following issues:

- Sticking to strict procedures for granting licences and calculating the validity period of such licenses.
- To maintain road safety requirements, dangerous and explosive material transportation rules, and pollution control measures.
- To maintain the country's rapidly growing quantity of personal and commercial cars.
- To raise the amount of compensation available to hit-and-run cases.
- To eliminate the time limit for traffic accident victims to file a compensation claim.
- Offences covered under the Motor Vehicle Act

The following are the offences covered under the original Motor Vehicle Act that includes:

- Driving without a license,
- Allowing someone without a licence to operate a vehicle owned by the vehicle owner,
- Failing to possess all of the relevant documentation required to operate a motor vehicle on Indian roads,
- Driving without a permit if required,
- Driving without a vehicle fitness report, driving without a registration certificate or R.C,
- Operation of a vehicle by a minor,
- Allowing an unauthorised individual to operate a vehicle,
- Riding certain motor vehicles without a helmet,
- Driving without fastening the driver's seat belt,
- Exceeding the speed limit and rash driving,
- Risky driving,
- Driving against the flow of traffic in a one-way lane, and other violations are considered offences under the Act.

Important Sections of the Motor Vehicle Act

The following are some of the most important provisions of the Motor Vehicle Act:

Section 3 of the Motor Vehicle Act

Section 3 of the Motor Vehicle Act deals with the necessity of driving license, stating that-

A person cannot drive a vehicle in public unless they have a valid and authorised driver's licence. Furthermore, they are not permitted to operate any transport vehicle other than a motor-taxi or a motor bicycle for personal use or to rent the same under any scheme unless their driving licence allows them to. The above-mentioned circumstances shall not apply to an individual when operating a motor vehicle in India unless prescribed by the central government

Section 4 of the Motor Vehicle Act

Section 4 of the Motor Vehicle Act deals with age limitations, stating that-

- No one under the age of 18 is permitted to operate a motor vehicle in public. However, driving a motor vehicle with an engine capacity of less than 50cc is permitted when the individual reaches the age of 16.
- No one under the age of 20 is allowed to drive a public transportation vehicle.
- No one will be awarded a learner's or permanent driving licence to operate a motor vehicle of the class for which they have applied unless they are qualified to drive.

Section 39 of the Motor Vehicle Act

Section 39 of the Motor Vehicle Act deals with the necessity for registration, which stated that-

- No person is permitted to drive a motor vehicle in a public place, and no owner of a motor vehicle shall cause or let the vehicle to be driven in a public place by another person unless it is registered and the vehicle's certificate of registration has not been suspended or cancelled.
- Section 66 of the Motor Vehicle Act
- Section 66 of the Motor Vehicle Act deals with the necessity for permits, which stated that-
- The owner of a transport vehicle cannot operate his vehicle in any public area unless it is authorised and covered by a valid authorization.
- Transport vehicles of the central or state government, local authorities, ambulances, fire brigade, police vehicles, hearses, and those with a registered loaded weight of not more than 3000 kg are exempted from the permission.
- Every educational institution bus requires a permit.

Section 112 of the Motor Vehicle Act

Section 112 of the Motor Vehicle Act deals with speed limitations, stating that-

- No person must drive or allow a motor vehicle to be driven in any public place at a speed exceeding the maximum speed or dropping below the minimum speed specified for the vehicle under the Act.
- No one is permitted to drive at high speeds and should not exceed the maximum set speed for any motor vehicle.
- If the state government or other authorities believe that it is important to restrict the speed of motor vehicles for public safety or convenience due to the nature of the road, bridge, or other suitable location, they may do so. This restriction is only in effect for one month and no longer.
- Section 113 of the Motor Vehicle Act
- Section 113 of the Motor Vehicle Act deals with weight limits and limitations on use, stating that-
- The conditions for the issuance of permits by the State or Regional Transport Authorities may be prescribed by the state government. Overloaded vehicles must be prohibited or restricted in any region or route.
- It is prohibited to drive a vehicle without pneumatic tyres fitted.

- No one is permitted to operate any motor vehicle or trailer in any public place with
- An unladen weight (i.e., not carrying a load) that exceeds the weight specified on the certificate of registration, or
- A laden weight (i.e., carries load) that exceeds the gross weight specified on the certificate of registration.
- When a driver or any person other than the owner of a motor vehicle drives an excess weight, the court will assume that the offence was done with the knowledge or commands of the owner of the vehicle driven.

Section 129 of the Motor Vehicle Act

Section 129 of the Motor Vehicle Act deals with the necessity of wearing head protection, stating that-

While driving a motor vehicle in a public location, every driver is required to wear a helmet. Headgear is just a helmet that protects a person from causing injuries in an accident. It is securely fastened to the wearer's head using straps or other fastenings supplied on the helmet.

Section 130 of the Motor Vehicle Act

Section 130 of the Motor Vehicle Act deals with the requirement to provide a driver's licence and a registration certificate, stating that-

- A police officer in uniform may ask a driver of a motor vehicle in any public location to view his or her driving license.
- A police officer in uniform or a motor vehicle department officer may ask a conductor of a motor vehicle in any public location to view his or her driving licence.
- The registering authority or any other official of the motor vehicle department legally authorised on this purpose should request insurance for the vehicle and the certificate of fitness referred to as per Section 56 by the owner or person in charge of the vehicle.
- If the driver of the vehicle has no certifications of all this possession are available within fifteen days of the demand, he/she shall produce photocopies, duly attested in person or by registered post to the officer who made the demand.

Section 140 of the Motor Vehicle Act

Section 140 of the Motor Vehicle Act deals with the obligation to provide compensation in specific circumstances based on the no-fault principle, stating that-

- The Act compensates the aggrieved person in the event that the vehicle defendant, himself, or the driver of any such vehicle causes death or permanent disability to the aggrieved party. When a death or permanent disability occurs as a result of a motor vehicle accident, no-fault liability is invoked.
- The amount of compensation due for a claim under this Section is as follows:
- If the accident results in the death of a person, a fixed payment of Rs.50,000/- is payable, and
- If the accident results in the permanent disability of any person, a fixed sum of Rs.25,000/- is payable.
- The Act makes it clear that, regardless of whether the claimant or his heir or representative committed wrongful conduct, carelessness, or default, the compensation under this Section is not subject to any burden of proof on the claimant's shoulders. This Section's compensation is controlled by no-fault liability.
- If the victim is unaffected but an accident occurs, the vehicle's owner is responsible for compensating the victim and he is also responsible for any other Act that is enforceable at the time of the incident.
- The amount can be reduced from the compensation amount under Section 163A of the Act.

Section 163A of the Motor Vehicle Act

Section 163A of the Motor Vehicle Act deals with special provisions for compensation payments based on a structured formula, stating that-

- The owner of the authorised insurer's motor vehicle is responsible for compensating the legal heirs or the victim in the event of death or permanent disability caused by an accident resulting from operating the motor vehicle.
- The claimant does not have to prove or plead that the death or permanent disability for which the claim is being filed was caused by any unlawful conduct, negligence, or failure of the vehicle owner or vehicles in question or any other person.

Section 166 of the Motor Vehicle Act

Section 166 of the Motor Vehicle Act deals with the application for compensation, stating that-

- The claimant might file a claim with the Motor Accident Claim Tribunal for compensation.
- An application for compensation arising from an accident can be made by:
 - Anyone who has been injured, or
 - The owner of the property damaged/involved in the accident,
 - A legal representative of the person who died in a road accident, or
 - An authorised agent of the injured party or
 - Legal representatives of the person who died in the accident.
- The application must be filed on behalf of or for the benefit of all of the deceased's legal representatives.

Section 177 of the Motor Vehicle Act

Section 177 of the Motor Vehicle Act deals with the punishment of offences, stating that-

Anyone who violates the Act's rules, regulations, or notifications is subject to a penalty of Rs.100/- if the violation is committed for the first time. If the violation is for the second or subsequent time, she/he has to pay Rs.300/- as a penalty.

Section 179 of the Motor Vehicle Act

Section 179 of the Motor Vehicle Act deals with disobedience of orders, obstruction and refusal of information, stating that-

- If no other penalty is provided for the offence,
- Any person who willfully disobeys any laws directed by any person or authority under this Act or
- Any person who obstructs or discharges any functions or is empowered to discharge any laws directed by a person or authority under this Act shall be punished with a fine that may extend to five hundred rupees.
- If no other penalty is provided for the offence,
- Any person who is required or under this Act to supply any information wilfully withholds such information, or
- Any person who gives information that he knows to be false or does not believe to be true shall be punished with imprisonment up to one month or a fine of Rs.500, or both.

Section 181 of the Motor Vehicle Act

Section 181 of the Motor Vehicle Act deals with driving a vehicle under the requirement for a driving license and the age restriction related to driving a motor vehicle, stating that-

- Any person who drives a motor vehicle without a licence prescribed under Section 3 of the act, or
- Any person who drives a motor vehicle while under the age restriction prescribed under Section 4 of the Act.
- The above-mentioned conditions are punishable by imprisonment for a maximum of three months or a fine of Rs.1,000/-, or both.

Section 184 of the Motor Vehicle Act

Section 184 of the Motor Vehicle Act deals with driving dangerously, stating that-

- Any person who drives a motor vehicle at a dangerous speed or in a dangerous manner to the public, taking into account all circumstances of the case, including the nature, condition, and use of the place where the vehicle is driven and the amount of traffic that actually exists at the time,
- If the above-mentioned offence happens, then the person shall be punished for the first offence with imprisonment for six months or a fine of one thousand rupees, and for the second or subsequent offence if committed within three years of the previous offence with the imprisonment of 2 years or fine of 2000 rupees or both.

Section 185 of the Motor Vehicle Act

Section 185 of the Motor Vehicle Act deals with drunk and driving or a person who is under influence of drugs, stating that-

- Any person who is driving or attempting to drive a motor vehicle-
- Any person who has consumed alcohol in excess of 30 milligrams per 100 millilitres of blood as determined by a breath analyzer test, or
- Any person who is under the influence of a substance to the point of being unable to exercise adequate control over the vehicle.
- For the first offence, a person who is inebriated or under the influence of narcotics is penalised by imprisonment for a term of up to 6 months or a fine of up to 2000 rupees or both.
- If the offence is committed for the second or subsequent time, the individual is sentenced to two years in jail or a fine of 3000 rupees, or both, if the offence is committed within three years of the prior identical offence.

Motor Vehicle Act: amendments

The Motor Vehicle Act has undergone various amendments. They are as follows:

Motor Vehicle Amendment Bill, 2019

In July 2019, the Indian parliament enacted the Motor Vehicle Amendment Bill. The amended Motor Vehicle Act, which went into effect in September of that year, included increases in a number of fines for traffic violations, provisions for automobile manufacturers to recall defective parts, and making vehicle owners criminally responsible for infractions committed by minor drivers. The New Act has increased the punishments for a variety of offences in order to stop drivers from acting badly on the road and improve overall road safety across the country.

Some important proposals in the Motor Vehicle (Amendment) Bill

- The Bill makes Aadhar necessary for obtaining a driving licence and registering a vehicle.
- For deaths such as hit-and-run accidents, the government would compensate the victim's family with Rs 2 lakh or more. Currently, the sum is only Rs.25,000.
- In the case of juvenile traffic offences, the guardians or owners of the vehicle would be held liable unless they could establish the offence was done without their consent or they attempted to avoid it.
- The minimum penalties for drunken driving has been raised from Rs.2,000 to Rs.10,000.
- The Bill requires automated vehicle fitness testing.
- The Bill enables the central government to legislate vehicle recalls if a problem in the vehicle threatens the environment, the driver, or other passengers on the road.
- The law establishes a National Road Safety Board, which would be appointed by the central government by notification. The Board will advise the central and state governments on all elements of road safety and traffic management, including motor vehicle standards, vehicle registration and licensing, road safety requirements, and the promotion of innovative vehicle technology.

- The Bill proposes a cashless treatment scheme for traffic accident victims during the golden hour.
- The 2016 Bill removed the liability limit for third-party insurance, which was set at Rs.10 lakhs for death and Rs.5 lakhs for grievous injury.

Motor Vehicle Amendment, 2020

The Motor Vehicle Act of 1989 has undergone several significant amendments that took effect on October 1, 2020. According to the Amendment, drivers can store a softcopy of their driver's licence and other papers in their vehicle instead of carrying real paperwork. The Amendment is for the millions of people who use the roadways on a daily basis. These changes were implemented by the ministry of road transport and roads to ensure that traffic regulations are followed, that digitalization is promoted, and that drivers are not harassed by police officers.

Some changes have been made to the traffic rules under the Amendment, 2020

- Individuals can now save documents on their mobile devices under the New Amendment. These will save them from carrying an unnecessary burden in the form of physical documents. If a police officer requests a driver's license or other similar documents, the person can now give their soft copy.
- Since there will be no physical inspection of vehicle documents. If a traffic officer has to cancel a driver's license, they can do so through the site, which will be updated on a regular basis.
- The driver's behavior will be watched, and the police officer's identity will be updated on the site, according to the official announcement. The information on the site would be updated every time a driver or vehicle was examined.
- On the government's Digi-locker or m-parivahan, driver's licenses and other papers such as registration certificates can be kept online.
- By ensuring that the driver's focus is maintained while driving, any portable communications devices like cell phones can be utilised for route navigation.
- The Motor Vehicle Act of 1989 imposes fines for persons who break traffic laws. This will prevent the vehicle from doing repeated checks, reducing traffic congestion on the road. Those discovered disobeying traffic laws will receive an e-challan via the government's digital site.
- After the driver's license is cancelled, the offender must report to the digital portal.

Latest Supreme Court judgements on the Motor Vehicle Act

United India Insurance Co. Ltd. v. Sunil Kumar and Anr., (2017)

The Supreme Court has held that an insurer cannot file a negligence claim. It is one of the most recent Supreme Court cases on the Motor Vehicle Act, with the main issue being the extent of Section 163A of the 1988 Act. This Act contains special provisions for the payment of compensation based on a structured formula. The following are the case's facts, issues and judgment. The following are the facts, issues, and judgment of this case.

Facts of the case

The respondent, in this case, has filed a claim petition under Section 163A of the Motor Vehicle Act, 1988, seeking compensation for injuries he incurred in a traffic accident on November 20, 2006. After recording the evidence and hearing the parties, the tribunal issued a judgement dated August 16, 2011, awarding an amount of Rs. 3,50,000/- plus interest at a rate of 7% per annum. This outraged the insurance company, which filed an appeal based on the insurance firm's failure to comply with Section 170 of the Motor Vehicle Act, 1988. The appeal was then to be heard by the Supreme Court.

Issues involved

In a claim procedure under Section 163A of the Motor Vehicle Act, the question arises as to whether the insurer has the authority to present a defense/plea of negligence.

Judgment of the case

The court decided that in a case under Section 163A of the Motor Vehicles Act, 1988, the insurance cannot offer any negligence defense on behalf of the victim, and Section 163A (2) of the Motor Vehicles Act, 1988 makes this plan. Hence, the owner/insurance company will be held liable for compensation.

Important points to note from this case

- Compensation under Section 163A of the MV Act is in the nature of a final award, and adjudication is made without the need for proof of negligence on the part of the driver or owner of the vehicles involved in the accident.
- Section 163A (2) expressly states that the claimant is not necessary to prove fault. However, the abovementioned clause does not expressly rule out the possibility of an insurer's defence based on the claimant's carelessness. However, allowing an insurer to use such a defence while considering such circumstances would be contrary to the legislative intent of Section 163A of the Act.

Mukund Dewangan v. Oriental Insurance Company Limited, (2017)

According to the Supreme Court, a driver with a light motor vehicle license can operate a transport vehicle without an endorsement. The following are the facts, issues and judgment of this case.

Facts of the case

- The various vehicle categories for which licenses were issued in this case were light motor vehicles, medium goods vehicles, medium passenger motor vehicles, heavy goods vehicles, and heavy passenger motor vehicles.
- To make the process of acquiring a driver's license easier, categories such as the one described above were removed. The transport vehicle was added as a new category. On November 14, 1994, the Motor Vehicle Act of 1989 was amended.
- Form no. 4 of the 1989 regulations, which was used to submit a licence application, continued to list four separate categories. Form no. 4 was only changed on March 28, 2001, when it was amended to include the word "transport vehicle" and became compliant with the 1994 Amendment to the Motor Vehicle Act 1989.

Issues involved

The question is whether a driver with a light motor vehicle licensee who is also driving a transport vehicle of the same class has to get an endorsement to drive a transport vehicle.

Judgment of the case

The Supreme Court of India held that if a driver has a light motor vehicle licensee and is driving a transport vehicle of the same type, no further endorsement is necessary.

New Motor Vehicle Act, 2019 penalties

The following are the penalties under New Motor Vehicle Act, 2019:

S.no	Violation	New penalty from September 2019
1.	Driving/ Riding without licensee	₹5,000 and/or community service.
2.	Driving/Riding under the influence of an intoxicating substance	₹10,000 and/or 6 months prison ₹15,000 and /or 2 years jail for the repetitive violation.
3.	Over speeding	Light motor vehicle: ₹1,000- ₹2000MPV/HPV: ₹2,000-₹4,000 (+licensee seizure).
4.	Driving without a seat belt	₹1,000 and/or community service.
5.	Driving/Riding without insurance	₹2,000 and/or 3-months prison, community service ₹4,000 for a subsequent offence.
6.	Violating road regulations	₹500- ₹1000
7.	Dangerous driving/riding and jumping red light	₹1,000- ₹5,000 and/or 6-months to 1 year in prison, licensee seizure.
8.	Driving/Riding while on the mobile (handheld)	₹5,000
9.	Speeding, Racing	₹5,000 and/or 3-months prison, community service ₹10,000 for subsequent violation and up to 1 year in prison, community service.
10.	Not giving way to emergency vehicles like ambulances, fire engines, etc.	₹10,000 and/or community service.
11.	Riding without Helmet (rider and pillion rider)	₹1000, and or licensee disqualification, community service for 3-months.
12.	Overloading Two-Wheelers	₹2,000 and licensee disqualification and/or 3-months of community service.
13.	Juvenile Offences	₹25,000 with 3-years prison, cancellation of registration for 1-year, juvenile ineligible for licence until 25 years of age.
14.	Driving/Riding despite disqualification	₹10,000, and/or community service.
15.	Over boarding Passengers	₹200 for every extra passenger and/or community service.
16.	Driving/Riding without ticket	₹500
17.	Offence committed by enforcing authorities such as offering bribes	Twice the penalty (varies according to traffic rules violated).
18.	Unauthorized use of vehicles without licensee	₹1,000- ₹5,000
19.	Disobedience of orders of the authorities	₹2,000
20.	Vehicles without permit	₹10,000 and/or up-to 6-months prison, community service.
21.	Oversized Vehicles	₹5,000 to ₹10,000 and/or community service.

22.	Overloading	₹20,000 + ₹2,000 for every extra tone and/or community service.
23.	Driving/Riding without licensee (for aggregators)	₹25,000 to ₹1,00,000
24.	Driving/Riding without registration	₹5,000 ₹10,000 for a subsequent offence.
25.	Using horn in silent zone	₹2,000 ₹4,000 for a subsequent offence.

Central Motor Vehicle Rules, 1989

The Ministry of Road, Transport, Highways, and Shipping published the Central Motor Vehicle Rules in 1989, which govern vehicle-related activities such as driver licensing, traffic inspections, production and maintenance of motor vehicles, as well as licensing of automotive components and entire vehicles.

Rule 3 of Central Motor Vehicle Rules, 1989 in India,

This rule does not apply to a person who is getting lessons or gaining experience in driving while presenting himself in a test of competence to drive if the following conditions are met:

- Any person who is the holder of an effective learner's licence granted to him in form 3 to drive the vehicle; any person who is accompanied by an instructor holding an effective driving licence to drive the vehicle and such teacher is seated in such a position to control or stop the vehicle;
- The letter 'L' is painted in red on a white background on the front and rear of the vehicle, or on a plate or card affixed.

Central Motor Vehicles (Second Amendment) Rules, 2022

On February 15, 2022, the Ministry of Road Transport and Highways released the Central Motor Vehicles (Second Amendment) Rules, 2022 to amend the Central Motor Vehicles Rules, 1989. This took effect on February 15, 2022.

The following changes have been made to Rule 138, which specifies "Signals and additional safety measures for motor vehicles," with the addition of sub-clause (7):

"After one year from the date of publication of the Central Motor Vehicles (Second Amendment) Rules, 2022, the driver of a motorcycle should also ensure the following safety measures while carrying a child between the ages of nine months and four years as a rider, namely:

- (i) For children under the age of four years, a safety harness shall be used to attach the child to the driver of the motorcycle."

Motor Vehicle Act and rules

The Motor Vehicle Act regulates practically every aspect of road transport vehicles. The legislation requires all drivers to have a valid driver's licence, and no vehicle can be operated unless it is registered under the MV Act. In addition, the driver must also be a major and not under the age of 18 years.

The MV Act penalizes for the following offences:

1. Under Section 3 read with Section 181 of the Motor Vehicle Act, a person who drives his vehicle without a valid licensee commits an offence.
2. A person who allows his vehicle to be driven by someone who does not have a valid driver's licence is violating the Motor Vehicle Act's Section 5 read with Section 180.
3. A breach of Section 130(3) read with Section 177 of the Motor Vehicle Act occurs when a person does not have all of their required documents.
4. Section 130 read with Section 177 of the Motor Vehicle Act makes it illegal for a person to drive his vehicle without appropriate insurance.

5. Under Section 3 read with Section 181 of the Motor Vehicle Act, a person who drives his vehicle without a valid licensee commits an offence.
6. A person who allows his vehicle to be driven by someone who does not have a valid driver's licence is violating the Motor Vehicle Act's Section 5 read with Section 180.
7. A breach of Section 130(3) read with Section 177 of the Motor Vehicle Act occurs when a person does not have all of their required paperwork.
8. Section 130 read with Section 177 of the Motor Vehicle Act makes it illegal for a person to drive his vehicle without appropriate insurance.
9. It is unlawful for a person to drive a vehicle without a valid permit as per Section 130(3) read with Section 177 of the Motor Vehicle Act.
10. Driving a vehicle without a valid fitness certificate is a violation of Section 130 read with Section 177 of the Motor Vehicle Act.
11. A person who does not have a valid R.C. for his vehicle is violating the Motor Vehicle Act's Section 39 read with Section 192.
12. When a juvenile operates a vehicle, it is a violation of Section 4 and Section 181 of the Motor Vehicle Act.
13. Allowing an unauthorized individual to drive is a violation of the Motor Vehicle Act's Section 5 read with Section 180.
14. Riding without a helmet is punishable under Section 129 read along with Section 177 of the Motor Vehicle Act.
15. Driving a vehicle while not wearing a seat belt is a violation of Rule 138(3) of the Central Motor Vehicle Rules, as well as read with Section 177 of the Motor Vehicle Act.
16. Over speeding and rash driving are both punishable offences under Section 184 of the Motor Vehicle Act.
17. Section 112-183 of the Motor Vehicle Act makes it unlawful to drive in a hurried or unsafe manner.
18. Section 17(i) RRR 177 of the Motor Vehicle Act makes it unlawful to drive in a one-way against the traffic flow.

Conclusion

The Motor Vehicle Act ensures the safety of all citizens in the country. to defend oneself from harm and avoid traffic jams. This legislation directs the whole country of India to follow the laws, and if they do not, fines are imposed. This MV Act protects not only vehicle owners and drivers, but also the people who utilise the roads on a regular basis across the country. Citizens are expected to follow the laws that have been established for their own and other people's benefit. This Act also assures uniformity across the country in order to prevent traffic jams and accidents. If an unavoidable event causes an accident that leads to death, permanent disability, or minor harm, the victim and their family are eligible to seek compensation from the offenders or drivers of the vehicle that caused the accident. Thus, the article concludes that all people must follow the Act's laws and restrictions in order to make India a better place to live on it.

The Claims Tribunal under MVA, 1988

During the British regime, Indian Motor Vehicle Act of 1914 was ratified with an objective to regulate enforcement and to ensure the registration and licensing of vehicles and motorists to maintain road safety. This was replaced by 1939 Act which consolidated and amended the law relating to motor vehicles according to the development in road transport technology, pattern of passenger and freight movements and particularly the improved techniques in the motor vehicles management, this was later further substituted by MV Act, 1988. The 1988 Act was a significant law which established a new court named Motor Accidents Claims Tribunals which replaced civil courts in order to provide cheaper and speedier relief to the victims of accident of motor vehicles.

Earlier, the suit claiming compensation needed to be filed in civil court along with an ad- valorem court fee. Since, the civil courts had a backlog of cases to adjudicate, the person expecting damages was not able to receive the compensation in time and due to the court fee, the victim was further discouraged to not file for compensation. This was remedied in 1988 Act where a separate court for motor accident claims was formed and without paying any ad- valorem court fee. In this act, licensing of the motorists and registration of the vehicle mandatory.

Further, it made it mandatory to obtain a Learner's license for all the drivers wanting to get a license and it was made obligatory to use the L board and the company of an instructor while driving in a public place. It also proposed that any person under the age of 20 is not allowed to drive a vehicle in a public place and a learner's license or driving license should only be issued if he or she is qualified.

This act was further substituted by Motor Vehicle (Amendment) Act of 2019 whose aim was to ensure road safety and stricter rules. The notable features of this Act encompass damages up to two lakhs for road accident victims and hefty fines for wilful offenders. The bill also mentions a recall of those vehicles which entail undue safety risks to other motorists, the driver, and the environment. With the amendment of the bill, the Central government created the National Road Safety Board as an advisory board to manage and regulate road safety and traffic.

What is Claims Tribunal?

Established by Motor Vehicle Act 1988, Claims Tribunal is defined under Chapter XII in Section 165 which authorizes the State Government to constitute Claims Tribunals to adjudicate on the claims for compensation which emerge from motor vehicle accidents, ensuing death or bodily injury to persons or damage to any property of third parties. Its objective is to provide remedy to the victims of accident by motor vehicles in appropriate time without any procrastination. Motor Accident Claims Tribunals [MACT Courts] handle those claims which are in relation to loss of life/property or those injury cases arising out of Motor Accidents.

These Claims need to be directly filed in the respective Tribunal. MACT Courts are administered by Judicial Officers from Delhi Higher Judicial Service. Currently these Courts are under immediate supervision of the High Courts of various States. Under Section 165 (2) the number of members to be assigned in Claims Tribunal is more than/equal to two, one of them is to be nominated as the Chairman and under Section 165 (3), the eligibility for the appointment of members is that the member should be a Judge of a High Court or District Judge or ought to be eligible for appointment as a Judge of a High Court or District Judge.

Claim for Compensation under Motor Vehicle Act

Who can claim compensation?

Section 166 of MV Act 1988 illustrates who can plead for compensation in MACT in a motor accident case. A person who has himself sustained injury or he owns the property or he is the legal representative of the deceased who died in the motor accident or he is the agent authorized by the injured person, or by the legal representatives of the deceased, as the case maybe- can claim compensation.

When can compensation be claimed?

The limitation period i.e., the time period during which the claim for compensation can be realised is six months from the occurrence of the accident. This time period has been fixed under the 2019 Amendment Act. It means that after the expiration of six months, application claiming damages cannot be claimed. It is further illustrated that if the victim claims compensation according to the procedures formed under Section 164 provided under Section 149, the application for compensation filed before the Claims Tribunal shall be dropped.

Where can the application for compensation be filed?

It is at the option of the claimant to file an application for compensation. The application can be filed either at the Claims Tribunal of the area where the accident occurred or at the Claims Tribunal of the area where the claimant resides/ carries business or at the Claims Tribunal of the area where the defendant resides.

Relevant Case Laws

National Insurance Company Limited vs Pranay Sethi and Ors[1]: A Constitutional Bench of the Apex Court held that the Multiplier concept and deduction in personal and living expenses as laid down in the Sarla Verma case. However, the future aspects in awarding damages under Section 166 of the Motor Vehicles Act have been newly formulated by following the standardization principle. The principles that have been laid down are the factors to be figured, the deceased's income, age and the number of his/her dependants.

Nagappa v. Gurudayal & Ors.[2]: The Supreme Court held that the claimant filing an application for damages under Section 166, does not restrict the Claims Tribunal in awarding more compensation than that was claimed if the Tribunal is certain that awarding more compensation is just and appropriate and neither peremptory, whimsical nor unwarrantable from the evidence.

New India Assurance Company Limited vs. Sadanand Mukhi and Others[3]: The Supreme Court held that no damages will be provided under Section 163-A or Section 166 as here the victim was the owner's son who was driving the vehicle in which the accident happened and the victim died and hence, he was not regarded as third party becoming ineligible for compensation.

Powers and Procedures of Claims Tribunal

1. Under Section 169, the Claims Tribunal has the power to formulate and establish its own procedure. It possesses all the powers of the Civil Court in the case of taking evidence on oath, of effectuating the attendance of witnesses and of mandating the discovery and production of documents and material objects and for such other purposes as may be specified.
2. It shall be considered a Civil Court for all the objectives to be fulfilled under section 195 and Chapter XXVI of the Code of Criminal Procedure, 1973. The importance of this tribunal is that it ensures speedier adjudication of compensation suits without shaping it into elaborate and long-drawn proceedings and hence, preventing undue delay in providing remedy.
3. Claims Tribunal has the liberty to nominate one or more persons who are equipped with certain special knowledge about any issue that is related with inquiry of the compensation claims. With the 2019 Act, for successful execution of Tribunal's decision on any compensation claim, it is authorised to execute a decree under the Code of Civil Procedure, 1908 which is similar to that of Civil Court.
4. Under Section 175, the civil courts do not have the authority to entertain any question related to compensation claims in areas where Claims Tribunal has been constituted and is not answerable to the Civil Court for any action or decision made by the Tribunal and also it does not have the authority to direct in any manner to the Tribunal with regard to any issues of compensation claims.

Relevant Case Laws

National Insurance Company Ltd. Vs Lachhibai Urf Laxmibai and Others[4]: In this case, MP High Court held that a review application is maintainable when it is sought due to a procedural defect, or unintended error effectuated by the Tribunal, to prevent misuse of its process. The argument of the learned counsel for the non-applicant cannot be accepted that power of review is not given under the statute, hence, it cannot review its own order. Wide powers are intrusted with the Tribunal under Section 169 of the Motor Vehicles Act. Thus, review on limited grounds is permissible.

Kailash Chandra Sharma vs E. Gurunath and Ors[5]: In this case, the MP High Court held that though under Section 169, the Claims Tribunal has broad range of powers similar to that of Civil Court for all the objectives of Section 195 and Chapter XXVI of the Code of Criminal Procedure, 1973 but such powers ought to be carried out by the Tribunal for providing justice to the party. Hence, the court set aside the direction issued by the Tribunal under which the claimant was mandated to pocket the expenses of the

opponents including the Insurance Company and also held that opponents shall pay their own expenses and if they succeed in proving themselves innocent then it can be claimed from the claimant.

Authority of State Governments to form rules

Section 176 of MVA, 2019 empowers the state government to form rules or regulations with the objective of providing smooth functioning of sections 165 to 174 like determining the particulars that a form of application should contain and how the fees, if there is any, to be paid with regard to such applications; what should be the procedures to be pursued by the Claims Tribunal while holding any investigation; ascertaining the powers of Civil Court which may be employed by the Claims Tribunal in adjudication of compensation claim; deduction of the basis and the manner in which an appeal contesting the award of the Tribunal and the fees for the same, etc., is to be done.

Relevant Case Laws

Lata vs United India Insurance Co. Ltd.[6]: The Himachal Pradesh High Court held that Section 176 (d) of the Act clearly empowers the State Government to formulate rules relating to the form and the manner in which an appeal may be opted against an award of a Claims Tribunal. The expressions 'form' and 'manner' are wide enough to encompass a possible stipulation about the relevancy of the provisions of Order 41, Rules 22 and 33 of the Civil Procedure Code to appeals made under Section 173 of the Act. In accordance of this power, the State Government did construct Rules called "Himachal Pradesh Motor Vehicles Rules, 1999".

Appeals

In Chapter XII of MVA 2019, Section 173 illustrates the provision of appeals against the award of Claims Tribunal.

In which court, the appeal contesting the award of Claims Tribunal shall be filed?

Under Section 173 (1), any person who is dissatisfied with the decision of the Claims Tribunal can file an appeal to the High Court.

What is its limitation period?

Section 173 (1) stipulates that an appeal can be filed against the award of Claims Tribunal must be done within ninety days from the date of the decision. It is further specified that failure to file an appeal within the said time period can be excused only on the ground that the appellant was unable to do so in time due to sufficient cause.

How much amount must be deposited before the appeal can be considered by the High Court?

The High Court must consider the appeal only if the person has deposited with it either twenty-five thousand rupees or fifty per cent. of the amount so awarded, according to the procedure established by the High Court.

On which awards of the Claims Tribunal, an appeal contesting the same cannot be filed?

Section 173 (2), added with the 2019 Act stipulates that no appeal against the award of Claims Tribunal shall be valid if the amount of dispute in the appeal is less than one lakh rupees.

Relevant Case Laws

S. Venkata Subbaiah vs Kodavali Chinnappa and Ors.[7]: In this case, the Andhra Pradesh High Court held that since the owner of the vehicle/appellant failed to adhere to the first proviso to Section 173(1) i.e., did not submit Rs. 25000 or half of the award amount, the appeal is not maintainable.

Devidas v. Chandrakala and Ors.[8]: The Bombay High Court held that the court can decline to register the appeal under Section 173(1) if the deposit is not made within the stipulated period.

Sohan Singh v. Kushla Devi and Ors.[9]: The Punjab and Haryana High Court held that under Section 173(1) any person who is mandated to pay any amount as decided by the Claims Tribunal, prefers an appeal, the said appeal can be considered by the High Court only if the specific amount as required by the said proviso has been deposited and no claim of exemption to make the deposit can be admissible on the ground that a co-respondent before the Tribunal has filed an appeal and has made the requisite deposit. But the High Court would not order the apportionment of the whole amount deposited by different parties under the said provision.

Anil Saraf v. Namboodas and Ors.[10]: The Madhya Pradesh High Court while considering the first proviso to Section 173(1) of the M. V. Act held an appeal under Section 173 of the Act would be considered when the mandatory pre-requisite i.e., the requisite amount has been deposited by the appellant and such deposit ought to be made before the appeal is 'entertained'.

Prosecution of insurer in particular cases

Under Section 170, if during the inquiry of a compensation claim, the Claims Tribunal is assured that both the parties (i.e., the person who is claiming and the person against whom such claim is made) have a secret agreement or have colluded for an illegal or dishonest objective, or the opposite party has failed to challenge the claim filed against him, the Tribunal has the power to initiate proceedings against the insurer as a party to proceeding i.e., the insurer is going to be centrally involved in the case.

But in this scenario, the insurer has the right to challenge the claim on any or all of the grounds mentioned under Section 150 (2) in which an insurer does not have any liability to pay any sum decided by the Tribunal unless the insurer had been given notice through the court before the starting of proceedings in which the Tribunal had decided the award and hence, the insurer has the right to defend himself/ herself from the claims.

Relevant Case Laws

National Insurance Corporation Company Limited, Chandigarh v. Nicolletta Rohtagi and Ors. Reported[11]: The Supreme Court held that where conditions precedent embodied in Section 170 is satisfied and award is averse to the interest of the insurer, the insurer has a right to file an appeal challenging the amount of compensation or negligence or contributory negligence of the erring vehicle even if the insurer has not filed any such appeal.

Shankarayya And Anr. vs United India Insurance Co. Ltd.[12]: The Supreme Court concluded that when the Insurance Company is prosecuted as a party by the Court under Section 170, it can be permitted to contest the proceedings on merits only if the conditions antecedent mentioned in the section are found to be appropriate and for that motive, the Insurance Company has to acquire a reasoned order in writing from the Tribunal. If this is not obeyed, the Insurance Company cannot have a broad defence on merits than what is available to it by way of statutory defense.

The Oriental Insurance Co. Ltd. vs Smt. Bini Bala Mondal & Ors.[13]: In this case, the Calcutta High Court refused to approve of the appellant insurer's submission with respect to section 173 of the 1988 Act. The court found no inconsistency between the provisions of section 170 and section 173 of the 1988 Act. The provisions of section 173 will have to be read in the context of section 170 and section 149(2) of the said Act. The expression "any person aggrieved" will include the insurer within the ambit as indicated in section 149(2) and section 170 of the said Act. Any other interpretation will give rise to inconsistencies and incongruities. Following the precedent set in Shankarayya's case[14], the court held that without obtaining leave from the Tribunal under section 170 of the 1988 Act, an appeal on the merits of the award of the Claims Tribunal would not be maintainable at the instance of the insurer.

Determination of Compensatory Costs in particular cases

Section 172 stipulates the determination of compensatory costs in certain situations.

Under what circumstances can the Claims Tribunal award compensatory costs?

The Claims Tribunal under Section 172 (1), can direct the insurer or any party in a compensation claim to pay special costs as compensation if it is certain that either the compensation claim is invalid as the policy of insurance was obtained through any kind of fraud or misrepresentation or that any party or insurer has proposed a false or abusive claim or defence during the proceedings of the case. These special costs must be compensated to the insurer or the party against whom such claim or defence had been advanced.

What is the maximum penalty the Claims Tribunal can award as compensatory costs?

Under Section 172 (2), the Claims Tribunal while awarding the compensatory costs under sub-section (1) cannot exceed these costs beyond one- thousand rupees.

Can the person paying the compensatory costs be exempted against any other liability for the misrepresentation or claim or defence as illustrated in Section 172 (1)?

Under Section 172 (3), the person who is responsible to pay the compensatory costs cannot escape criminal liability for the misrepresentation or claim or defence as illustrated in Section 172 (1).

Are the compensatory costs taken into account in any ensuing suit for damages with respect to such mis-representation, claim or defence?

Under Section 172 (4), the compensatory costs will be taken into account in any ensuing suit for damages with respect to such mis-representation, claim or defence.

Is the Tribunal authorized to award interest along with the amount of compensation claim in a particular suit?

Under Section 171, the Claims Tribunal may direct the opposite party or parties to pay simple interest over and above the amount of compensation claim at a particular rate and from a particular date which must not be before the date of forming the claim as it may prescribe in this behalf.

Relevant Case Laws:

Rajesh Kumar Vs. Sudhir Rana[15]: The learned Single Judge of the Himachal Pradesh High Court while interpreting Section 171 of the Motor Vehicles Act, 1988, he observed that Claims Tribunal has the responsibility to consider question of payment of interest. If the party has not unduly delayed the proceedings, then it must not be denied interest and if the Tribunal decides to do so, it should give reasons for the same.

Raj Kumar and another Vs. Kashmir Singh and others[16]: The Court observed that that the grant of interest on the awarded amount has been provided under section 171 of the Motor Vehicles Act, 1988, though the word 'may' and not 'shall' is given in section 171 of the Motor Vehicles Act, 1988, still the Tribunal while exercising its jurisdiction, may award interest on the quantum of compensation. In fact, the Claims Tribunal gives interest from the date of filing of the petition and if the said interest is not given, the Tribunal has to give proper justification for not doing so.

Ayush Kumar Bilala vs. Himmat Singh[17]: In the said matter, the Tribunal had not awarded any interest and no reasons were recorded by the Tribunal for the same. The Rajasthan High Court held that the Tribunal was not justified in disallowing the interest without any justification and hence, permitted the interest at the rate of 9% per year from the date of registering the claim petition till payment is made.

Sarvat Kochak V. National Insurance Co. Ltd.[18]: The Jammu & Kashmir High Court held that the interest takes care of the period between date of claim and date of payment. If the tribunal deduces that the

claimant does not have the right of interest, proper justifications need to be given, failure to which, the tribunal would fail to exercise its jurisdiction properly.

Ramesh Chandra v. Randhir Singh[19]: The Apex Court was deliberating upon the question, 'whether interest could be awarded even when the same has not been claimed.' While answering the question in the affirmative, the Hon'ble Supreme Court held that addition of interest to the compensation, by judicial discretion, is consecutive in the eyes of law and there is no need to specifically ask interest in the claim petition. The Apex Court further held that, the amount of interest is independent of any pleading in that regard and in any contingent situation it can be even orally asked.

Award of the Claims Tribunal

What are the procedures the Claims Tribunal follows after it has received the receipt for compensation claim?

Under Section 168 (1), after receiving the receipt for compensation claim under section 166, the Claims Tribunal sends notice to the insurer, then both the parties i.e., the claimant and the insurer are given a chance to prove their stand on the claim and the Tribunal then, holds an investigation into that claim or claims.

After holding the inquiry if the Tribunal finds any validity in the claim, it may decide an award establishing the quantum of compensation to be paid by the insurer or owner or driver of the vehicle who was involved in the accident or by all with respect to the claim which ever seems to be just and the person/ persons eligible for the award is also adjudicated by the Tribunal.

What are the other formalities fulfilled by the Tribunal after the award has been decided?

Under sub- section (2), the Tribunal has the responsibility to provide copies of the award to the parties concerned as soon as possible and should be delivered within a period of fifteen days from the date of the award.

What is the maximum period in which the compensation decided by the award has to be fully paid?

Under sub- section (3), the person responsible to pay the compensation must within thirty days from the date of declaration of the award by the Claims Tribunal, deposit the full amount awarded in such manner as the Claims Tribunal may order.

Relevant Case Laws

Kuldeep Singh Bawa v. Tika Ram: The court held that Section 168 of the Motor Vehicles Act stipulates that the learned Tribunal must conduct an investigation into the claim petition. Section 169 of the Motor Vehicles Act illustrates that the learned Tribunal is ought to follow such summary procedure as it perceives to be appropriate to conduct such an investigation. The investigation stipulated in Section 168 of the Motor Vehicles Act is distinct from the civil trial. Section 168 of the Motor Vehicles Act casts a duty on the learned Tribunal to conduct an inquiry appropriately. The motive of the legislature behind making this provision is that the victims of road accident are not left behind.

General Manager, Kerala State Road Transport Corporation, Trivandrum v. Susamma Thomas (Mrs.) and Ors.[20]: Justice M.N. Venkatachaliah of Supreme Court held that the adjudicating of the amount must answer what contemporary society "would deem to be a fair sum such as would allow the wrongdoer to hold up his head among his neighbours and say with their approval that he has done the fair thing". The amount awarded under Section 168 of the Motor Vehicles Act must not be parsimonious since the "law values life and limb in a free society in generous scales?" Having said that, a misplaced sympathy, generosity and benevolence cannot be the major factor for determining the compensation. The object of providing compensation is to place the claimant(s), to the extent possible, in almost the same financial position, as they were in, before the accident and not to make a fortune out of misfortune that has befallen them.

Preference regarding claims for compensation in particular cases

What is the other option under which the compensation can be claimed in the scenario of fatality or bodily affliction to any person?

Under Section 167, the person who has endured affliction or has died during the accident by a motor vehicle, the person/ his legal representatives relying upon the situation can claim damages under either Workmen's Compensation Act, 1923 or Motor Vehicle Act, 2019 but not under both.

Relevant Case Laws

Insurance Company Limited vs. Dyamavva & Ors[21]: In this case, the claimant was compensated by his company under workman compensation Act, 1923. After this, the claimant also raised a claim under section 166 of Motor vehicles act 1988 but the Motor Accident Tribunal ordered a deduction of compensation amount paid by his employer from this compensation amount stating that no one can ask for damages under both the acts (Section 167).

Raja and another Vs. Ajay and another[22]: In this case, the court held that even if the claim under Workman Compensation was held not permissible, the claimant is not barred to claim remuneration under section 167 of Motor Vehicle act.

Recovery of money from insurer as arrear of land revenue

How does the Claims Tribunal execute the award in case the person responsible to pay the amount (as decided in the award) fails to pay it?

Under Section 174, if the person who is responsible to pay the amount, failed to pay the whole sum, the Claims Tribunal has the power to put out a certificate for the amount to the Collector and the Collector may proceed to retrieve the same in the same manner as an arrear of land revenue.

Relevant Case Laws

Hirabhai Nanubhai Desai vs State of Gujarat and Ors.[23]: In this case, the Gujarat High Court held that word 'may' in Section 174 provides an alternative or an option available to the claimants to ask for issuance of the certificate for enforcement by the Collector who in his turn then proceeds to retrieve the same in the same manner as an arrears of land revenue.

Premilaben Ishwarlal Raijada vs Oriental Insurance Co. Ltd.[24]: In this case, the Gujarat High Court observed that the Tribunal in this case had rightly expounded the provisions of Section 110-E of the old Act or Section 174 of the current Act. The Tribunal has also found that the jurisdiction of the civil Court is interdicted in such cases and that when the Tribunal failed to prescribe the amount and to decide as to what was the contributory negligence of either party to accident caused by the vehicle, the question of operation of Section 174 would emerge. Dispensation of responsibility between the parties is merely the function of the Tribunal and the retrieval of the amount paid in excess of its liability by one opposite party from another party is itself not an issue of regaining the redundant amount due under the award.

Narender Singh Kadian vs Dhanpati and Ors.[25]: In this case, the Punjab High Court observed that when the State Government constructed a rule which provides for implementation of the award by the Court itself without recourse to retrieve the same as an arrear of land revenue, it cannot be said that the State Government acted beyond its power. The rule made by the State Government granting the power of Civil Court under Order 21, C.P.C. on the Claims Tribunal cannot be said to be invalid. It is only an addition to Section 174 of the Motor Vehicles Act.

Conclusion

The creation of Motor Accidents Claims Tribunals through Motor Vehicle Act, 1988 was a watershed in the history of Motor Vehicle Acts which not only provided an efficient mechanism to resolve claims of motor

accident and a speedier and cheaper remedy to the victims of accident of motor vehicles but also acknowledged that cases dealing with motor accidents are not similar to other civil suits filed ordinarily in civil courts and therefore these cases deserve a separate forum to adjudicate them.

With 2019 Act, the powers and efficiency of Claims Tribunal have been strengthened by amending, adding and repealing certain provisions according to the needs of present times like Section 173(2), in which the appeals contesting the award of Claims Tribunal with amount less than one lakh rupees shall not lie, the amount 'one lakh rupees' has been substituted for 'ten thousand rupees.'

The reason is that since 1988 Act, the average amount in disputes in Claims Tribunal has significantly increased which made it imperative to recognise this change in various stipulations of Motor Vehicle Act. Thus, Claims Tribunal has provided a platform to the victim and the victim's legal representatives to claim remuneration for the loss incurred in motor accidents resulting in severe damage to either the person or vehicle or resulted in the death of a person/ persons.

4.6 Liability without fault and third-party risks under Motor Vehicles Act, 1988.

The Motor Vehicles Act, 1988: No fault liability

Ubi jus ibi remedium the latin maxim states that, where there is wrong, there is remedy. It is an essential maxim of law of torts, where one's right has been invaded, the law provides for the remedy to safeguard the right of the aggrieved. It was in the case of *Ashby V. White*, where the court held that:

When a person is rested with a right, he must have a means to safeguard and have a remedy if someone violates it, and is a useless to think of a right without providing from any remedy for its violation.

The Motor Vehicle Act, 1988 was enacted on July 1, 1988. The original Act, i.e. The Motor Vehicle Act, 1939 was amended numerous time to keep it according to the phase of technology and development. Later, a committee was set up in to draft a comprehensive legislation as per the various suggestion. In amended act, Section 140 to section 144 under chapter-X lays the provision for no fault liability.

Section 145 to 164 under Chapter -XI deals with the insurance provision pertaining to third party claims, and Section 165 to 176, Chapter XII, deals with claims tribunals. This act was said to be great benefit to society as it primarily aimed to provide the relief to persons who encounters the accidents and then are not paid adequate compensation, that they should have to make good to their damages.

To point out some of the welfare provisions, the act provided the driving license to be mandatory to drive a motor vehicle, and registration of the vehicle to be valid only for the period of fifteen years, which can be further renewed for another five year. The act also includes various other provision for the benefit of the road accidents victims.

The Non- Fault Liability

It was brought to the bench of Acting Chief Justice A. Smbasiva Rao, in the case of *Haji Zakaria V. Naoshir Cama*, whether the liability to pay the compensation can be levied upon owner, even when there was no fault on his behalf or negligent act. This was over-ruled by the hon'ble Supreme Court of India, it was of the opinion that, where there is no fault or negligence by the owner, there could be no liability be imposed upon him.

Anyhow, the principle of No Fault was developed to provide the victim with some sort of relief incase of hit and run and such cases. Being welfare state, denial of the compensation over the fact that:

There was a contributory negligence on part of the victim or where the negligence of the driver of a vehicle was not established beyond the reasonable doubt, defeats the idea of social justice, and so the provision

was made that driver or the owner should be held without taking the fact of contributory negligence into consideration.

There was doubt as to in which way does the principle of No-fault liability differs from the principle of Strict liability. In the case of the No-fault liability the compensation is fixed, on the other-hand , in the case of Strict liability liability is not fixed, but is upon the discretion of the court. The former principle is different from the common law principle which says that the claimant should establish the act of negligent and rash driving on the part of owner or the driver to claim the compensation. However, the section 140 to section 144 of the Motor Vehicle Act, 1988 provides exception to such rule.

In case of Minu B. Mehta V. Balkrishna, the apex court overruled the verdict of the Andhra Pradesh High Court and Bombay High Court , and ruled that the of the owner of the vehicle or the company of the vehicle insurer can not be held liable unless there's a negligence on the part of the owner or the driver of the vehicle.

In Shridhar V. United India Insurance Company, the apex court was of view that where an accident is caused due to oil spilled on the road, negligence would be on the part of the driver only , not upon the owner , or the other . In such a circumstances, the insurer would not be liable, the computation of the liability shall be on the basis of no fault principle.

While adjudicating in the case of Ishwarappa v/s. C.S. Gurusthanthappa, the court held that section 140 of the act in intended to provide an immediate relief to the victim or heirs and legal representative of the deceased person in an event of an accident. And so the claim under section 140, is paid at the threshold of the case proceedings.

Section 140 of the Motor Vehicle Act 1988

The act provides the provision for the payment of the compensation to the aggrieved , in case of death or permanent disability by the vehicle of defendant , by himself or the driver of any such vehicle. According to section 140, No fault liability is to be invoked when a death or permanent disability has been resulted from an accident arising out of a motor vehicle.

In any claim made under this act, the amount of compensation be payable as follows:

Where the accident causes the death of the a person, a fixed sum of Rs. 50,000/- &

If causes permanent disability of any person, a fixed sum of Rs.25,000/-

The sub-section (3) of the act makes it clear that, the burden of the pleading and fact whether or not wrongful act, negligence, or default was committed by the claimant or his heir or representative , the compensation under this section is not subjected to any burden of proof on the shoulders of the claimant. The compensation under this section is governed by No fault liability principle.

By reading section 140 and 163-A together , the intent of the act is crystal clear , that any claim raised under the section 163-A of this act, need not be subjected to be examined based on any proof or pleading at the hands of the claimants , and shall be provided relief under section 140.

Is the Section 140 to be applied retrospectively?

The matter of consideration regarding date for the determination of the compensation is the date of the accident. The amendment to increase the amount payable under the act was increased on 14/11/1994 from Rs.25,000/- to Rs.50,000/- for causing death. The following provision is not retrospectively, and so if any accident occurs before 14/11/1994 , the compensation shall be paid Rs. 25,000/- only.

For filing claim under sec. 140 , it is not mandatory for precedent that the primary claim petition under section. 166 be filled. Even though the the claim petition is not filled under or if the claim is dismissed failing the limitation period, an application for claim under sec. 140 cannot be dismissed on the similar ground.

Manjit Singh Vs. Rattan Singh, the court in the following case held that amended section.140 w.e.f. 14/11/1994 which has raised the amount of the compensation is applicable retrospectively. And so, for an accident leading to death, before the amended was made, the compensation was computed by the Tribunal for Rs.30,000/- was raised to Rs. 50,000/-. This verdict however needs reconsideration. The compensation shall be payable as per the law applicable as the time of accident took place.

Case Law:

The Oriental Insurance Co. Ltd. Vs. Seela Ratnan And Ors

Facts:

The issue was brought to the bench regarding amendment made to Section 140 in year 1994 in The Motor Vehicles Act, 1988.

The amendment aim to increase the compensation of accidental death and permanent disability.

The accident in the concerned case took place before the date of the amendment came to force.

Issues:

It is before the Hon'ble bench to decided that whether, Section 140 of the Motor Vehicles Act is applicable retrospectively?

Judgment:

The court in the above case ruled that , Section6(c) of the General Clause Act would be applied in the concerned case and the amendments made as in Section 140 of the Motor Vehicles Act, 1988 cannot be applied in the case retrospectively. And so any claim made before the amendment came into the force shall not be governed as per the amendments made, meanwhile shall be subjected to the compensation as per earlier provisions. "When an accident has occurred before the commencement of 1988 Act no fault liability can be granted as per Section 92-A of the repealed Act and not under Section 140 of the 1988 Act.

Supreme Court had considered the applicability of Section 6 of General Clauses Act to the provisions of the repealed Act in Gurcharan Singh Baldev Singh Yashwant Singh (1991) 6 JT (SC) 256 : (AIR 1992 SC 180). An application was filed by an operator for renewal of his permit under Section 58 of the Motor Vehicles Act, 1939.

The question then arose was whether, after coming into force of Motor Vehicles Act, 1988, the application became extinct and was rendered non-existent, in the eye of law, or whether it being a right within the meaning of Clause (c) of Section 6 of the General Clauses Act survived and continued despite repeal of Motor Vehicles Act, 1939, It was observed that the objective of Section 6(c) is to ensure protection of any right or privilege acquired under the repealed Act.

United India Ins. Co. Ltd. Vs. Kuldip Kaur

Fact:

The issues was brought to the bench on Hon'ble bench of High Court of Punjab Vs. Haryana, that whether the liability be imposed under Section 140 The Motor Vehicle Act, 1988 when an offending vehicle in not identified.

Judgment:

The court referred to section 140 (liability to pay the compensation in accident resulting death or permanent disability with no faults and section 161(special provision for payment of the compensation in

case of hit and run case with a motor vehicle of the Motor Vehicle Act, 1988 . The high court of Punjab & Haryana adjudicated that, no liability can be imposed under the aforesaid section , where the offending vehicle is unidentified.

Conclusion

The no fault liability under section 140 , of the Motor Vehicle Act , 1988, intend to provide the immediate relief to the aggrieved victim , or the heir or legal representative of the victim , of the accident caused by the Motor vehicle, resulting death or permanent disability. The compensation under section 140 of the act is Rs.25,000/- for the accident resulting permanent disability and Rs.50,000/- for the accident resulting death. It is noteworthy , that no burden of proof is laid upon the victim of the aggrieved party, neither the fact that they were negligent shall be subjected to decide the compensation.

While dealing with the claims under section 140 , of the Motor Vehicle Act, 1988 the court shall not consider whether the defendant was not negligent , and have taken due care to avoid the accident , or the fact that, the accident was not inevitable. It is also the matter of great relevance that, no claim can be filed under this act where the vehicle which caused the accident was not identified, meaning that no claim can be filed until the vehicle is well identified and known.

The court, on the various claims under this act, were of the view that increased claim shall be payable under this act shall not be paid retrospectively . The accident took place before the amendment brought to the force, shall not be paid with the increased compensation. The claim tribunal to deal with the claims under Motor Vehicle Act was also established to enable the cost-effective and speedy remedies to the loss of the victim.

The act was considered to be an assets in the regime of motor laws in India. With the introduction of the third party insurance clause and compensation under the provision of no-fault liability, the precedent that were set of the long years showed the widening of the various provision , intended to benefit the aggrieved parties , who made the claims under the act.

Third Party Insurance in India

In India, under the provisions of the Motor Vehicles Act, 1988, it is mandatory that every vehicle should have a valid Insurance to drive on the road. Any vehicle used for social, domestic and pleasure purpose and for the insurer's business motor purpose should be insured.

Insurance is a contract whereby one party, the insurer, undertakes in return for a consideration, the premium , to pay the other, the insured or assured, a sum of money in the event of the happening of a , or one of various ,specified uncertain events.

Insurance developed from the fourteenth century as a means of spreading huge risks attendant on early maritime enterprises; life and fire insurance developed later. The main classes of insurance are life and other personal insurance, marine insurance, accident or property insurance and liability insurance when the sum becomes payable when legal liability is incurred as for personal injuries or professional negligence to another.

Motor third-party insurance or third-party liability cover, which is sometimes also referred to as the 'act only' cover, is a statutory requirement under the Motor Vehicles Act. It is referred to as a 'third-party' cover since the beneficiary of the policy is someone other than the two parties involved in the contract i.e. the insured and the insurance company. The policy does not provide any benefit to the insured; however it covers the insured's legal liability for death/disability of third party loss or damage to third party property.

This paper is an Endeavour to explain the relevance of third party insurance? What is third party insurance? Who is a third party? Why third party insurance is compulsory for all vehicles under the Motor Vehicles Act, 1988? What are the salient features of third party insurance? These aspects of the third party insurance have been explained with the help of various case laws.

What is Third Party Insurance?

There are two quite different kinds of insurance involved in the damages system. One is Third Party liability insurance, which is just called liability insurance by insurance companies and the other one is first party insurance.

A third party insurance policy is a policy under which the insurance company agrees to indemnify the insured person, if he is sued or held legally liable for injuries or damage done to a third party. The insured is one party, the insurance company is the second party, and the person you (the insured) injure who claims damages against you is the third party.

Section 145(g) "third party" includes the Government. *National Insurance Co. Ltd. v. Fakir Chand*[1], third party should include everyone (other than the contracting parties to the insurance policy), be it a person traveling in another vehicle, one walking on the road or a passenger in the vehicle itself which is the subject matter of insurance policy.

Salient Features of Third Party Insurance

1. Third party insurance is compulsory for all motor vehicles. In *G. Govindan v. New India Assurance Co. Ltd.*[2], Third party risks insurance is mandatory under the statute. This provision cannot be overridden by any clause in the insurance policy.
2. Third party insurance does not cover injuries to the insured himself but to the rest of the world who is injured by the insured.
3. Beneficiary of third party insurance is the injured third party, the insured or the policy holder is only nominally the beneficiary of the policy. In practice the money is always paid direct by the insurance company to the third party (or his solicitor) and does not even pass through the hands of the insured person.
4. In third party policies the premiums do not vary with the value of what is being insured because what is insured is the legal liability' and it is not possible to know in advance what that liability will be.
5. Third party insurance is almost entirely fault-based.(means you have to prove the fault of the insured first and also that injury occurred from the fault of the insured to claim damages from him)
6. Third party insurance involves lawyers aid
7. The third party insurance is unpopular with insurance companies as compared to first party insurance, because they never know the maximum amounts they will have to pay under third party policies.

Motor Vehicles Acts,1939 and 1988

Motor Vehicles Act,1939 (4 of 1939) consolidates and amends the law relating to motor vehicles. This has been amended several times to keep it up to date. The need was, however felt that this Act should, now interlaid take into account also changes in the road transport technology, pattern of passenger and

freight movements, development of the road network in the country and particularly the improved techniques in the motor vehicles management.

The Motor Vehicles Act, 1988 which came into force on 1st July, 1988 and which is divided into XIV Chapters, 217 Sections and two schedules, makes it compulsory for every motor vehicle to be insured. Chapters X, XI and XII of the 1988 Act deals with compensation provisions. Sections 140 to 144 (Ch. X) deal with liability without fault in certain cases. Chapter XI (Ss. 145 to 164) deal with insurance of motor vehicles against third party risks.

Historical Background of third Party Insurance

Chapter VIII of the 1939 Act and Chapter XI of the 1988 Act have been enacted on the pattern of several English statutes which is evident from the report of Motor Vehicles Insurance Committee, 1936-1937. In order to find out the real intention for enacting Ss. 96 of the 1939 Act which corresponds to Ss. 149 of the 1988 Act, it is relevant to trace the historical development of the law for compulsory third-party insurance in England. Prior to 1930, there was no law of compulsory insurance in respect of third party rights in England. As and when an accident took place an injured used to bring action against the motorist for recovery of damages.

But in many cases it was found that the owner of the offending vehicle had no means to pay to the injured or the dependant of the deceased and in such a situation the claimants were unable to recover damages. It is under such circumstances that various legislations were enacted. To meet the situation it is for the first time the 'Third Parties' Rights Against Insurance Act, 1930' was enacted in England. The provision of this Act found place in S. 97 of the 1939 Act which gave to the third party a right to sue insurer directly. Subsequently, the road traffic Act, 1930' was enacted which provided for compulsory insurance for Motor Vehicles. The provisions of this Act were engrafted in S. 95 of the 1939 Act and S. 146 of the 1988 Act. It is relevant that under S. 38 of the English Act of 1930, certain conditions of insurance policy were made ineffective so far as third parties were concerned. The object behind the provision was that the third party should not suffer on account of failure of the insured to comply with those terms of the insurance policy.

Subsequently in 1934, the second Road Traffic Act was enacted. The object of this legislation was to satisfy the liability of the insured. Under this enactment three actions were provided. The first was to satisfy the award passed against the insured. The second was that, in case the insurer did not discharge its liability the claimant had the right to execute decree against the insurer. However, in certain events, namely, what was provided in section Ss. 96(2)(a) which corresponds to section 149 (2)(a) of the 1988 Act, the insurer could defend his liability.

The third action provided for was contained in S. 10(3) of the Road Traffic Act. Under this provision, the insurer could defend his liability to satisfy decree on the ground that insurance policy was obtained due to misrepresentation or fraud. This provision also found place in S. 149 (2)(b) of the 1988 Act. While enacting the 1939 Act and the 1988 Act, all the three actions were engrafted in S. 96 of the 1939 Act and Section 149 of the 1988 Act. However neither the 1939 Act, nor the 1988 Act conferred greater rights on the insurer than what had been conferred in English Law. Thus, in common law, an insurer was not permitted to contest a claim of a claimant on merits, i.e. offending vehicle was not negligent or there was contributory negligence. The insurer could contest the claim only on statutory defences specified for in the statute. Thus while enacting Chapter VIII of the 1939 Act or Chapter XI of the 1988 Act, the intention of the legislature was to protect third party rights and not the insurers even though they may be nationalized companies.

Prohibition on use of motor vehicles without statutory insurance policy, object of is to enable the third party suffering injuries from use of the motor vehicle to get damages irrespective of the financial capacity or solvency of the driver or the owner.

Relevant Provisions of Motor Vehicles Act, 1988

Chapter 11 (Section 145 to 164) provides for compulsory third party insurance, which is required to be taken by every vehicle owner. It has been specified in Section 146(1) that no person shall use or allow using a motor vehicle in public place unless there is in force a policy of insurance complying with the requirement of this chapter.[3] Contravention of the provisions of section 146 is an offence and is punishable with imprisonment which may extend to three months or with fine which may extend to one thousand rupees or with both (section 196). Section 147 provides for the requirement of policy and limit of liability. Every vehicle owner is required to take a policy covering against any liability which may be incurred by him in respect of death or bodily injury including owner of goods or his authorized representative carried in the vehicle or damage to the property of third party and also death or bodily injury to any passenger of a public service vehicle. According to this section the policy not require covering the liability of death or injuries arising to the employees in the course of employment except to the extent of liability under Workmen Compensation Act. Under Section 149 the insurer have been statutorily liable to satisfy the judgment and award against the person insured in respect of third party risk.

Insurance Companies have been allowed no other defence except the following:

- (1) Use of vehicle for hire and reward not permit to ply such vehicle.
- (2) For organizing racing and speed testing;
- (3) Use of transport vehicle not allowed by permit.
- (4) Driver not holding valid driving license or have been disqualified for holding such license.
- (5) Policy taken is void as the same is obtained by non-disclosure of material fact.

Section 152. Settlement between insurers and insured persons.

(1) No settlement made by an insurer in respect of any claim which might be made by a third party in respect of any liability of the nature referred to in clause (b) of sub-section (1) of section 147 shall be valid unless such third party is a party to the settlement.

(2) Where a person who is insured under a policy issued for the purposes of this Chapter has become insolvent, or where, if such insured person is a company, a winding up order has been made or a resolution for a voluntary winding up has been passed with respect to the company, no agreement made between the insurer and the insured person after the liability has been incurred to a third party and after the commencement of the insolvency or winding up, as the case may be, nor any waiver, assignment or other disposition made by or payment made to the insured person after the commencement aforesaid shall be effective to defeat the rights transferred to the third party under this Chapter, but those rights shall be the same as if no such agreement, waiver, assignment or disposition or payment has been made.

Legal defense available to the Insurance Companies towards third party:

The Insurance Company cannot avoid the liability except on the grounds and not any other ground, which have been provided in Section 149(2). In recent time, Supreme Court while dealing with the provisions of Motor Vehicle Act has held that even if the defense has been pleaded and proved by the Insurance Company, they are not absolve from liability to make payment to the third party but can receive such amount from the owner insured. The courts one after one have held that the burden of proving availability of defense is on Insurance Company and Insurance Company has not only to lead evidence as to breach of condition of policy or violation of provisions of Section 149(2) but has to prove also that such act happens with the connivance or knowledge of the owner. If knowledge or connivance has not been proved, the Insurance Company shall remain liable even if defense is available.

Driving License:

Earlier not holding a valid driving license was a good defense to the Insurance Company to avoid liability. It was been held by the Supreme Court that the Insurance Company is not liable for claim if driver is not holding effective & valid driving licensee. It has also been held that the learner's licensee absolves the

insurance Company from liability, but later Supreme Court in order to give purposeful meaning to the Act have made this defense very difficult.

In *Sohan Lal Passi's v. P. Sesh Reddy*[4] it has been held for the first time by the Supreme Court that the breach of condition should be with the knowledge of the owner. If owner's knowledge with reference to fake driving licence held by driver is not proved by the Insurance Company, such defense, which was otherwise available, can not absolve insurer from the liability. Recently in a dynamic judgment in case of *Swaran Singh* [5], the Supreme Court has almost taken away the said right by holding;

(i) Proving breach of condition or not holding driving licensee or holding fake licensee or carrying gratuitous passenger would not absolve the Insurance Company until it is proved that the said breach was with the knowledge of owner.

(ii) Learner's licensee is a licensee and will not absolve Insurance Company from liability.

(iii) The breach of the conditions of the policy even within the scope of Section 149(2) should be material one which must have been effect cause of accident and thereby absolving requirement of driving licensee to those accidents with standing vehicle, fire or murder during the course of use of vehicle.

This judgment has created a landmark history and is a message to the Government to remove such defense from the legislation as the victim has to be given compensation.

Nature and Extent of Insurer's Liability (section 147)

According to the provisions of this section the policy of insurance must be issued by an authorized insurer. It must be as per requirements as specified in subsection. It must insure against liability in respect of death or bodily injury or damage to property of a third party. Third party includes owner of the goods or his authorized representative carried in the vehicle and any passenger of a public service vehicle.

The policy of insurance must cover:

1. Liability under the Workmen's compensation Act, 1923 in respect of death or bodily injury to any such employee

(a) Engaged in driving the vehicle, or

(b) The conductor or ticket examiner if it is a public service vehicle ,or

2. Any contractual liability

Section 147 has to be given wider, effective and practical meaning so that it may benefit various categories of persons entitling them to claim compensation from the insurer or the insured or both. Insurer's liability commences as soon as the contract of insurance comes into force. The liability remains in existence during the operation of the policy. If the existing policy is renewed the risk is covered from the moment the renewal of the policy comes into force. If the accident occurs before the renewal comes into existence, the insurer cannot be made liable. It is the primary duty of the vehicle owner to prove that his vehicle was insured with a particular company. If he fails to comply with it he will have to pay the entire amount of compensation in the case. In case where there is a dispute in respect of the vehicle having been insured by an assurance company, the tribunal must give its finding in the matter, it is its duty to do so. After a certificate of insurance is issued it does not lie in the mouth of the insurer to deny his liability. If the insurer has been a victim of fraud he can recover the amount from the insured by a separate action against him.

Oriental Insurance Co. v. Inderjit Kaur

If the insurer has issued a policy to cover the bus without receiving the premium therefore, he has to indemnify third parties in respect of the liability covered by the policy. He cannot avoid the liability arguing that he was entitled to avoid or cancel the contract.

Liability for injury to certain persons or class of persons (other than gratuitous passengers and pillion riders)

The policy under the Act covers only third party risks. Insurer is not liable for any harm suffered by a passenger traveling in a private car neither for hire nor for reward. Similar is the position of a pillion rider on a scooter.

K. Gopal Krishnan v. Sankara Narayanan

In this case Madras High Court observed that a scooter-owner is not bound to take out a third party risk policy to cover the claim of the pillion rider that is carried gratuitously. If he is injured, the insurance company would not be liable unless policy covering such risk is obtained by the scooter-owner. A private carrier registered as such with R.T.O. and also in insurance policy, cannot be used for carrying any passenger or goods for hire or reward. However if it is so used and the employees of a party hiring the private vehicle belonging to the insured are injured in an accident the insurance company will not be liable.

Insurer's liability to Vehicle-owner

A contract of insurance is a personal contract between the insurer and the insured. It is for the purpose of indemnifying the insured for damage caused due to accident by the vehicle, to a third party. To make the insurer liable the policy of insurance must be in the name of the owner of the vehicle.[9] Owner of the vehicle as defined in Section 2(30) is a person in whose name the motor vehicle stands registered.

A person in possession of a vehicle under a hire-purchase agreement or an agreement of lease or hypothecation is also covered by the definition, no matter he has exercised his option to purchase the vehicle or not.

Section 157(1) makes it clear that when the owner of a vehicle transfers the ownership of the vehicle, the policy of insurance and the certificate of insurance shall be deemed to have been transferred in favor of the purchaser of the vehicle with effect from the date of its transfer. This deemed transfer shall include transfer of rights and liabilities of the said certificate of insurance and policy of insurance.

According to subsection (2) the transferee has to apply within 14 days from the date of transfer to the insurer for effecting necessary changes in the certificate and in the policy of insurance.

If the certificate of insurance and the policy are not transferred, the insurer could not be made liable even though the vehicle is transferred. It is to be remembered that an insurance policy is a personal contract between the parties for indemnifying the insured in case of an accident covered under the policy. If the vehicle is transferred by an insured to another person, the insurance policy lapses upon the transfer. In such a case the benefit of the policy is not available to the transferee, without an express agreement with the insurance company. When the insurance policy lapses it would not be available to cover the liability of the purchaser of the vehicle.

S.Sudhakaran v. A.K.Francis

There was an agreement for sale of a vehicle. The owner did not comply with the statutory provisions regarding transfer of a vehicle. He, however, allowed the vehicle to be used by the transferee. The owner had retained the insurance policy with him.

Held— The insurance company was not liable to indemnify the owner.

Liability in respect of damage to property [S.147(2)]

For damage to property of a third party under 1939 Act the limit of liability is Rs 6000 in all, irrespective of the class of the vehicle. Under 1988 Act the position as laid down by section 147 (2) in regard to liability is as under:

- (i) For death or personal injury to a third party, the liability of the insurer is the amount of liability incurred, i.e. for the whole amount of liability.
- (ii) For damage to property of a third party the liability of the insurer is limited to Rs. 6000 as was under the 1939 Act.

Liability of Insurer beyond the limits mentioned in the Act

Section 147 lays down the limits of liability of the insurer. However there is no bar for the insurer undertaking a higher liability i.e. liability for a greater amount than that mentioned in the Act. Thus the insured and the insurer can contract and can provide for a higher liability.

Conclusion

Thus I have studied and analyzed the third party liability insurance under the motor Vehicles Act, 1988. Third party insurance protects the interest of a third party who becomes the victim of accident or injury caused by the fault of the insured. So any liability arising on the insured by the third party is mitigated by the insurance company. Third party insurance is compulsory under the motor vehicles Act, 1988. As the third party insurance is mandatory so it cannot be overridden by any clause in the insurance policy.

It is the duty of insurers to satisfy the judgments and awards against persons insured in respect of third party risks. The insurance company is a 'State' within the meaning of article 12 of the Constitution. For this reason it cannot deny, discriminate or refuse third party insurance cover to State run vehicles because their actions are guided by Article 14 of the Constitution.

The compulsory nature of third party insurance is justifiable as it makes the process easier for the injured person to recover money from the insured. The defendant or wrongdoer cannot be exempted on the ground that he has become insolvent. If he owns a vehicle he is bound to pay to the injured directly or through his insurance company.